



ESSAYS IN AMERICAN HISTORY



HENRY FERGUSON



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AMERICAN HISTORY ***

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IN
AMERICAN HISTORY

BY
HENRY FERGUSON, M. A.

*Northam Professor of History and Political Science in
Trinity College, Hartford.*

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PREFACE.

THESE essays are presented to the public in the belief that though what they contain be old, it is worth telling again, and in the hope that by viewing the early history of the country from a somewhat different stand-point from that commonly taken, light may be thrown upon places which have been sometimes left in shadow.

The time has been when it was considered a duty to praise every action of the resolute men who were the early settlers of New England. In the glow of an exultant patriotism which was unwilling to see anything but beauty in the annals of their country, and in a spirit of reverence which made them shrink from observing their fathers' shortcomings, the early historians of the United States dwelt lovingly on the bright side of the colonial life, and passed over its shadows with filial reticence. It is evident that no true conception of any period is possible when so studied, and it is a matter for congratulation that at the present day the subject can be treated with greater impartiality, and that it is no longer necessary for American writers to make up for the political and literary insignificance of their country by boasting either of the vastness of their continent or of the Spartan virtue of their forefathers.

In the same manner, in earlier days, when the recollection of the struggle for independence was still vivid, patriotic Americans were unable to recognize anything but arbitrary tyranny in the attempts made from time to time by the English government to give unity and organization to the group of discordant and feeble settlements, or to see anything but what was base and servile in the sentiments that inspired those whom they nicknamed Tories. Now, under the influence of calmer consideration, men are beginning to admit that something may be said for men like Andros, who strove against the separatist spirit which seemed to New England to be the very essence of liberty, and even for those unfortunates who valued the connection with Great Britain more than they did the privileges of self-government, and who were compelled in grief and sorrow, from their

devotion to their principles, to leave forever the homes they loved. The war of secession has taught Americans to understand the term, and appreciate the sentiment, of loyalty. It is no longer an unmeaning word, fit only to be ridiculed in scurrilous doggerel by patriot rhymsters, as was the case a hundred years ago, but appeals to an answering chord in the heart of every man who remembers the quick heart-beats and the grand enthusiasm of those four years of struggle, the true heroic age of American history.

The paper upon *The Quakers in New England* is an enlargement and revision of an article printed in the *American Church Review*, in April 1889, and that upon *Sir Edmund Andros* has been printed by the *Historical Society of Westchester County, N. Y.*, before whom it was read in October 1892, but it has been revised and enlarged. Instead of burdening the pages with notes and references, they have been placed together after each essay, so that they may be readily used by those who desire to do so, and yet may not affront the eyes of those who do not desire them.

It is impossible to give credit for every statement to every historian who may have made it; it has been the desire of the author to indicate his principal sources of information, and he has not knowingly omitted any work upon which he has relied for the historical facts presented.

TRINITY COLLEGE, HARTFORD,
October 1894.

I.

THE QUAKERS IN NEW ENGLAND.

IN the year 1656, in the midst of the period of the Commonwealth, the good people of Massachusetts, who were enjoying a brief season of rest after their troubles with the Baptists and the Antinomians, heard to their horror that they were likely to be visited by certain fanatics of whom they had heard from their brethren in England. These were known to them by the invidious name of Quakers, and were confounded with Adamites, Muggletonians, and Ranters, strangely named sects which the confusion of the times had brought forth.¹

This remarkable body of men, whose history has presented such strange contrasts of wild enthusiasm and imperturbable stolidity, of fanaticism and quietism, of contempt for the world and its rewards on the one side, and of sordid love of peace and money-getting upon the other, had recently come into being as one of the natural results of the unsettling of religious faiths and practices which had accompanied the political revolution in England. The Quaker movement was a revolt at once from the enforced conformity of the Laudian establishment and from the intolerable spiritual oppression of the Calvinistic divines, whose little fingers, when they came into power, had been thicker than the loins of their predecessors.

The great Anglican prelates of the reign of Charles I. were unfortunate in the circumstances amidst which their lives were spent. They were liberal and tolerant in theology, and they were pilloried as bigots; they held an idea of what the Church of England should be, that was utopian in its comprehensiveness, and they are described by every New England writer of school histories or children's story-books as narrow minded enemies of freedom of thought. The system proposed by Andrewes and Montague was essentially that of Sir Thomas More: liberality in matters of belief, with uniformity in practice and in ritual. The Puritan divines, on the other hand,

were despotic in matters of faith and doctrine to a degree rarely equalled in the history of the human mind, while they insisted upon their right of refusing the system of worship which was established by law in the Church of England, and of choosing for themselves religious ordinances to suit their own tastes and fancies. They did not plead for liberty on the ground that the principle of compulsion in religious matters was wrong and illegitimate, but because the services of the Church of England were, in their opinion, unscriptural if not idolatrous. The one party was tolerant in doctrine, and despotic, tyrannical at times, in matters of ritual; the other claimed to be indifferent as to ritual, but was despotic in opinions. The church, by attempting to regulate public worship, was led in some instances to appear to be persecuting men for doctrinal differences; the Puritans, from their zeal for orthodoxy in doctrine, became, when the power was placed in their hands, the strictest possible disciplinarians. The tendency of the one party was to subject the church to the state, and thus make it an instrument of political authority; the other tended to the subjection of the state to the church, making the civil authority little more than the body by which the edicts of the ministers should be registered and their decrees should be enforced.

With the early history of Quakerism we have little to do. Its founder, George Fox, was the son of a weaver at Fenny Drayton (or Drayton in the Clay) in Leicestershire. He had been piously brought up by his parents, who were members of the Church of England, and passed a boyhood and youth of singular purity and innocence. When he was growing up to manhood he passed through a period of deep religious depression, and found no help from any of his friends or from the ministers of the parish churches in his neighborhood (who at this time were mainly Presbyterians) or from the newer lights of the rising separatist bodies. One counselled him to have blood let, another to use tobacco and sing psalms; and the poor distracted boy, whose soul was heavy with a sense of the wrath of God, found no comfort from any of them. A careful study of the Bible made him quick to see the weak points in the systems that surrounded him, and at last he found the comfort he sought in the sense of an immediate communion with God and an indwelling of the Spirit of Christ within the soul. For a time he led a solitary life, leaving home and friends and wandering over the country on foot, clothed in garments of leather, sleeping wherever he could find a lodging, and spending whole days sometimes in the hollows of great trees.

Soon it was “borne in upon him” that the presence of the Spirit and the inner light was as good a qualification for the office of preacher as that of being a graduate of Oxford or Cambridge, and he began his public ministry about the year 1646.²

With the externals of Quakerism we are all familiar: the morbid conscientiousness that forbade the use of the common forms of courtesy, the simple dress, the refusal to submit to the authority of magistrates or of priests in matters concerning religion, and the unwillingness to pay them the usual compliments due to their position. The true inner nature of Quakerism, which gave it its strength, lay not merely in its abhorrence of forms and formulas, its vigorous protest against any compulsion in matters either of religious thought or religious observance, but essentially in its consciousness of the need of the Divine presence and its belief in the fulfilment of the Saviour’s promise to send his Spirit into the world.

It was a faith for martyrs and enthusiasts, a faith which in its simple earnestness had wonderful power of conviction, but which was especially liable to counterfeits and pretenders, who could delude themselves or others into a belief in their inspiration, and who substituted a wild extravagance for the enthusiasm of the first believers. One cannot help regretting that Fox’s fate placed him in so uncongenial a century as the seventeenth and in so matter-of-fact a country as England. Had he been born in Italy in the middle ages, his name might rank with that of Francis of Assisi. But it was impossible to expect comprehensiveness or liberality from the Puritans of the day, all the less because of the abuses and fanatical actions by which Quakerism was parodied and made ridiculous. It was essentially an esoteric religion, and had, in consequence, the great disadvantage of being able to furnish no tests by which the true could be distinguished from the false, those inspired with a genuine religious enthusiasm from the fanatics and pretenders.

Their revolt from all established customs and usages, their disrespect for authority, and the boldness with which they rebuked and disputed with the preacher in the pulpit of the “steeple house” or with the justice on the bench, brought them at once into difficulties with the rulers in church and state, who showed themselves no more tolerant of dissent from their own favorite way of thinking and acting than were the most despotic of all the

Anglican prelates. They were imprisoned, fined, beaten, and exiled; in 1656 Fox computed that there were seldom less than a thousand Quakers in prison at once. They seemed inspired with a spirit of opposition; wherever they were not wanted, there were they sure to go. They visited Scotland and Ireland, the West India islands and the American colonies; one woman testified before the Grand Turk at Adrianople, two others were imprisoned by the Inquisition at Malta; one brother visited Jerusalem and bore his testimony against the superstition of the monks, others made their way to Rome, Austria, and Hungary, and a number of them preached their doctrines in Holland and Germany.³ Such enthusiasm, even in those in whom it was genuine, was very nearly akin to insanity; and in many instances the dividing line was crossed, and the votaries allowed themselves to commit grotesque and indecent actions, or to speak most shocking blasphemies and to receive an idolatrous veneration from the silly women who listened to their ravings. The disturbances of the times produced many other bands of fanatics who were frequently confounded with the Quakers, and gave to them the odium of their misdeeds. The Ranters, the Adamites, the Muggletonians, and the Fifth Monarchy Men were all akin to the Quakers in being opposed to the order established by law, and in professing to be guided by an inner light; they differed from them, however, in making their religious fanaticism very often a cloak for secret vice or for wild plots against the government. The temporary overthrow of the comprehensive church establishment of the judicious statesmen and reformers of Elizabeth's reign had opened the gates to a flood of irreligion and fanaticism. The ecclesiastical despotism established by the Westminster Assembly was more repugnant to Englishmen than the old church which had been suppressed, and the condition of England in religious matters during the Commonwealth forms one of the best apologies for the severe reactionary measures that were adopted when the king and the bishops were restored in 1660.

It was in the middle of this period that the episode of the Quaker troubles in New England occurred, an episode which has been given an unpleasant prominence in the colonial history of New England, partly from the bitterness of the feelings which were aroused on both sides, but especially from the bearing that it had upon the question of the people of Massachusetts for the powers and responsibilities of self-government. The

story is a sad one of misdirected earnestness and zeal on the one side, of mistaken consistency and fidelity to principle, however false, upon the other. We condemn while we admire; we wonder at the steadiness and constancy of both judged and judges, while we regret the tragic results that stained the new commonwealth with innocent blood. It is not surprising, however, that such a conflict took place, for as a recent writer of great learning and ability has well said of the relations of the Quakers and their opponents,—“the issue presented seemed to have a resemblance to the mechanical problem of what will be the effect if an irresistible body strikes an immovable body.”⁴

The colonial governments which had been established in New England in the first half of the seventeenth century were not, as is frequently assumed, homogeneous and similar, but differed from each other in their political status and to some extent in their political institutions, and very greatly in the spirit which governed and directed them.

Massachusetts had a charter obtained from the Crown for a trading company, and transferred to the colony by a daring usurpation; Rhode Island had a charter granted by the Long Parliament; Plymouth had obtained its territory by purchase from the old Plymouth Company, but its political existence was winked at rather than recognized; Connecticut and New Haven were, to all intents and purposes, independent republics, save for a somewhat doubtful acknowledgment of the supremacy of the king and of the Commonwealth that was his successor. All but Rhode Island were joined together in a federal league for mutual defence against external and internal enemies.

The circumstances of the settlement of the various colonies had been such as to render the colonists extremely tenacious of their own privileges, and extremely jealous of any interference from the other side of the ocean. The people of Massachusetts, especially, lived in constant dread of their much-prized charter being taken away from them by the king, from whom it had been obtained, or by the parliament, which considered that it was its province to meddle with and to regulate all things in heaven and on earth.

It is quite remarkable that the attitude of the colonies to the home government, during the period of the Commonwealth, no less than in the years which preceded it, was one of jealous suspicion. The charter colonies

feared that their privileges would be interfered with, the self-organized colonies were in dread of a *quo warranto* or a *scire facias*, which would disclose the irregularity of their organizations or the defectiveness of their titles.

The godly and judicious Winthrop, the statesmanlike founder and governor of Massachusetts, had died, sorrowing on his death-bed for the harshness in religious matters into which he had been forced; and in his place was the severe and fanatical Endicott, a man of gloomy intensity of nature, a stern logician, a man who neither asked nor granted mercy. The clergy were fanatically devoted to their religious and political peculiarities, and were inferior in wisdom and judgment to the great leader who had come out from England with the early settlers at the beginning of the colony. Cotton was dead, and was succeeded in his office of teacher by John Norton, who differed from his predecessor by the lack of the principal characteristics which had so greatly distinguished him: "Profound judgment, eminent gravity, Christian candor, and sweet temper of spirit, whereby he could very placidly bear those who differed from him in other apprehensions."⁵ Hooker had long since removed to Connecticut, where he had been largely instrumental in founding a more genial commonwealth upon a broader and more liberal basis. Wilson, the first pastor of the church at Boston, was indeed still living, but was a worthy associate of Endicott and Norton, and distinguished then, as he had always been, rather by zeal than by either discretion or Christian charity.

By a process of successful exclusions and banishments the community had been rendered tolerably homogeneous, or at least submissive to the theocratical system which had been established. Those who had been defeated in the struggle for existence had gone elsewhere to found new commonwealths, all with a greater amount of religious liberty than that of Massachusetts.

The first we hear of the Quakers in New England is in an order of the General Court appointing May 14, 1656, as a public day of humiliation, "to seek the face of God in behalf of our native country, in reference to the abounding of errors, especially those of the Ranters and Quakers."⁶

About two months later a ship arrived from Barbadoes, bringing as passengers two Quaker women, Mary Fisher and Ann Austin. As soon as

they arrived in the harbor, the Governor, the Deputy Governor, and four assistants met and ordered that the captain of the ship should be compelled to carry them back to Barbadoes; that in the mean time they should be kept in jail, and the books which they had brought with them should be burnt. During imprisonment they were subjected to great indignities and insults at the hands of the brutal jailer, apparently without warrant, being stripped naked and their bodies examined for witch-marks, with attending circumstances of great indecency. They were half-starved in prison, and then after a detention of about a month they were sent away. No sooner had they gone when another vessel arrived from England, bringing eight more, four men and four women, besides one man from Long Island, who had been converted during the voyage. Officers were sent on board the vessel, and the Quakers were taken at once to the jail, where they were kept eleven weeks, and then sent back to England, despite the protests of the shipmaster.⁷ During their detention they were examined before the magistrates, and they increased the abhorrence in which they were held by their rude and contemptuous answers, which gave the authorities a sufficient excuse for keeping them in prison. Their books were burned; and though some pains seems to have been taken to convince them of their errors by argument, it was in vain. One of the women, Mary Prince by name, made herself particularly obnoxious by the eloquence of her abuse. She reviled the governor from the window of the prison, denouncing the judgment of God upon him, wrote violent letters to him and to the magistrates, and when the ministers attempted to argue with her, she drove them from her as “hirelings, deceivers of the people, priests of Baal, the seed of the serpent, the brood of Ishmael, etc.”

While this second batch of Quakers was in prison, the Federal Commissioners were in session, and resolved to propose to the several General Courts that all Quakers, Ranters, and other notorious heretics should be prohibited coming into the United Colonies, and if any should hereafter come or arise, that they should be forthwith secured or removed out of all the jurisdictions.⁸ These recommendations were acted upon by all the General Courts at their next sessions: by Connecticut, October 2, 1656; Massachusetts, October 14, 1656; New Haven, May 27, 1657; Plymouth, June 3, 1657.

In Massachusetts the action of the General Court was most decided and severe. Shipmasters who brought Quakers into the jurisdiction were to be fined one hundred pounds, and to give security for the return of such passengers to the port from which they came. Quakers coming to the colony were to be “forthwith committed to the House of Correction, and at their entrance to be severely whipped, and by the master thereof to be kept constantly at work, and none suffered to converse or speak with them during the time of their imprisonment.” A fine of five pounds was imposed upon the importation, circulation, or concealment of Quaker books; persons presuming to defend heretical opinions of the said Quakers should be fined two pounds for the first offence, four pounds for the second; for the third offence should be sent to the House of Correction till they could be conveniently sent out of the colony; and what person or persons soever should revile the officer or person of magistrates or ministers, “as was usual with the Quakers,” should be severely whipped, or pay the sum of five pounds.⁹

It was not long before the law was put into operation. The first cases were Ann Burden and Mary Dyer. They were imprisoned for two or three months, and then Burden, after having all of her little property taken from her in fines and jail charges, was sent back to England, and Dyer was delivered to her husband, the Secretary of Rhode Island, upon his giving security not to lodge her in any town in the colony nor permit any to speak with her.¹⁰

Mary Clarke, however, who had come from England “to warn these persecutors to desist from their iniquity,” was whipped, receiving twenty stripes with a whip of three cords, knotted at the ends. Charles Holden and John Copeland, who had been sent away the year before, returned to the colony, and were whipped thirty stripes apiece and imprisoned, and Lawrence and Cassandra Southwick were imprisoned and fined for harboring them. Richard Dowdney, who arrived from England to bear his testimony, was scourged and imprisoned, and, together with Holden and Copeland, was reshipped to England.¹¹

The authorities now thought that their laws were too lenient, and in October 1657 they were made more rigorous. The fine for entertaining Quakers was increased to forty shillings an hour, and any Quaker returning

into the jurisdiction after being once punished, if a man, was to lose one ear, and on a second appearance to lose the other. If he appeared a third time, his tongue was to be bored through with a red-hot iron. Women were to be whipped for the first and second offences, and to have their tongues bored upon the third.¹² In May of the following year, a penalty of ten shillings was laid upon every one attending a Quaker meeting, and five pounds upon any one speaking at such meeting.¹³

In spite of these severe enactments the Quakers returned; and the more they were persecuted, the more they appeared to aspire to the distinction of martyrdom. Holden, Copeland, and John Rouse, in 1658, had their right ears cut off; but the magistrates were afraid of the effect upon the people of a public execution of the law, and hence inflicted the penalty in private, inside the walls of the prison, in spite of the protest of the unfortunates, after which they were again flogged and dismissed.¹⁴ In October 1658 a further step was taken in accordance with the advice of the Federal Commissioners, who met in Boston in September, and the penalty of death was threatened upon all who, after being banished from the jurisdiction under pain of death if they returned, should again come back.¹⁵ Massachusetts was the only colony to take this step, which indeed was carried in the meeting of the Commissioners by her influence against the protest of Winthrop of Connecticut; and the measure was passed by a bare majority of the General Court after long debate, and with the express proviso that trial under this act should be by special jury, and not before the magistrates alone. Captain Edward Hutchinson and Captain Thomas Clark, men whose names should be remembered, desired leave to enter their dissent from the law. The Court was urged on to this unfortunate action by a petition from twenty-five of the citizens of Boston, among whom we find the name of John Wilson, the pastor of the First Church. These represented that the “incurability” of the Quakers after all the means that had been taken was such “as by reason of their malignant obdurities, daily increaseth rather than abateth our fear of the Spirit of Muncer and John of Leyden renewed, and consequently of some destructive evil impending,” and asked whether the law of self-preservation did not require the adoption of a law to punish these offenders with death.¹⁶ In order to justify its action, the Court ordered that there should be “a writing or declaration drawn up and

forthwith printed to manifest the evils of the teachings of the Quakers and danger of their practices, as tending to the subversion of religion, of church order, and civil government, and the necessity that this government is put upon for the preservation of religion and their own peace and safety, to exclude such persons from among them, who after due means of conviction should remain obstinate and pertinacious.”¹⁷ This declaration was composed by John Norton, and printed at public expense.¹⁸

The rulers of the colony had now committed themselves to a position from which they could not recede without loss of dignity, and which they could not enforce without great obloquy. They evidently were under the impression that the mere passage of the law would be enough, and that they would never be obliged to proceed to the last extremity. But they miscalculated the perseverance and enthusiasm of the men with whom they had to deal, and were soon involved in a conflict of will from which there seemed to them to be no escape except by putting the law into effect. It would have been better for them to have heeded the wise advice that they had already received from Rhode Island, whose magistrates had replied to one of the former communications of Massachusetts requesting their co-operation in restrictive measures against the Quakers, in these remarkable words:

“We have no law among us, whereby to punish any for only declaring by words, etc., their minds and understandings concerning the things and ways of God, as to salvation and an eternal condition. And we, moreover, find that in those places where these people aforesaid in this colony are most of all suffered to declare themselves freely, and are only opposed by arguments in discourse, there they least of all desire to come. And we are informed that they begin to loathe this place, for that they are not opposed by the civil authority, but, with all patience and meekness, are suffered to say over their pretended revelations and admonitions. Nor are they like or able to gain many here to their way. Surely, we find that they delight to be persecuted by civil powers; and when they are so, they are like to gain more adherents by the conceit of their painful sufferings than by consent to their pernicious sayings.”¹⁹

The law was passed in October 1658, and at first it seemed to have accomplished its object. The first six Quakers who were banished after it had been put in force went away and made no attempt to come back; but in June 1659 four who were more resolute and determined appeared in Boston with the avowed intention of defying the law. They were William Robinson, Marmaduke Stevenson, Nicholas Davis, and Mary Dyer. They were arrested and sentenced to banishment (September 12th), with the threat that they should suffer death if they remained or returned to the colony. Nicholas Davis and Mary Dyer “found freedom to depart; but the other two were constrained in the love and power of the Lord not to depart, but to stay in the jurisdiction, and to try the bloody law unto death.”²⁰ They withdrew to the New Hampshire settlements, but in about four weeks returned to Boston prepared to die, and were joined there by Mary Dyer, who had decided to share their fate. They were arraigned before the General Court, which was then in session, and admitting that they were the persons banished by the last Court of Assistants, were sentenced to be hanged in a week from that time (October 19th).²¹ The authorities evidently were afraid of popular sympathy, for they gave orders for a military guard of one hundred men to conduct them to the gallows, while another military force was charged to watch the rest of the town, and the selectmen were instructed to “press ten or twelve able and faithful persons every night to watch the town and guard the prison.”

Neither side would yield: the Quakers had come back with the declared purpose of dying for their faith and for the principle of religious liberty; the authorities did not dare to withdraw from the position in which they had rashly placed themselves, and the leaders do not seem to have had any desire to do so. They felt that the question of their authority was at stake, and that if they yielded their power over the people would be gone. They were willing to claim for themselves and their institutions the protection of the laws of England, but they would not admit any appeal to those laws when they conflicted with the colonial regulations. They claimed to own the colony in full sovereignty, in virtue of their charter on the one hand and their deeds from the Indians on the other, and they argued that they had the same right to exclude obnoxious and dangerous persons, and to destroy them if they persistently thrust themselves upon them, that a householder

has of resisting a burglar, or a shepherd of killing the wolves that break into his sheepfold.

It is a great mistake to say that they had come to the colony from a zeal for religious liberty. What they had come for was to be in a place where they could order religious affairs to suit themselves. As Besse, the Quaker historian, shrewdly remarks: "They appear not so inconsistent with themselves as some have thought, because when under oppression they pleaded for liberty of conscience, they understood it not as the natural and common right of all mankind, but as a peculiar privilege of the orthodox."²²

The tragedy was performed on the twenty-seventh day of October 1659; the prisoners, walking hand in hand, were brought to the gallows by the soldiers. They were insulted in their last moments by the bigoted Wilson, and when they tried to address the people their voices were drowned by the beating of the drums. Robinson and Stevenson died bravely, and Mary Dyer mounted the ladder to meet her fate; her skirts were tied, the rope was about her neck, and she was on the point of being "turned off," when she was released by the magistrates in consideration of the intercession of her son, who had come up from Rhode Island to try to save his mother's life. She unwillingly accepted the grudging gift, and went back to Rhode Island.²³

The popular feeling was so strong against the magistrates for their severity, that they thought it best to put forth a declaration, in which they argued that their proceedings were justified by the law of self-defence, and by the precedent of the English laws against the Jesuits; and they calmly stated that what they had done was only to present the point of their sword in their own defence, that the Quakers who had rushed upon it had become "*felons de se*," and that their former proceedings and their mercy to Mary Dyer upon the "inconsiderable intercession" of her son "manifestly evinced that they desired their lives absent rather than their death present."²⁴

The bodies of the unfortunate men were treated with indecent brutality, and were buried naked beneath the gallows. Mrs. Dyer remained away for six months, and then the spirit moved her to return once more and die. Her husband wrote to Endicott to beg her life, but without avail. No mercy could be shown her as long as she defied the law. It is said that her life was

offered her if she would promise to keep out of the colony henceforth, but she declined to receive the favor.²⁵ “In obedience to the will of the Lord I came,” said she, “and in his will I abide faithful to the death.”

Meanwhile the prisons and the house of correction had been the fate of other delinquents, and the jailer and executioner had had plenty of employment with the scourge. The Southwicks, with their eldest son Josiah, were whipped, fined, and imprisoned for withdrawing from the public services and worshipping by themselves, and their two younger children were ordered to be sold as slaves to the West Indies in satisfaction of the fines imposed.²⁶ W. Shattuck was whipped, fined, and imprisoned. Sarah Gibbons and Dorothy Waugh were whipped. Hored Gardner, a woman with a sucking babe, and a young girl who came into the colony with her, were scourged with the “three-fold knotted whip, and during her tortures she prayed for her persecutors.”

William Brand was thrown into the House of Correction, and, refusing to work, was beaten constantly by the brutal jailer with a tarred rope an inch thick. The pathetic record says: “His back and arms were bruised black, and the blood was hanging as in bags under his arms, and so into one was his flesh beaten that the sign of a particular blow could not be seen, for all became as a jelly.”²⁷

William Leddra and Rouse, whose ears had been cut off, were ordered to be whipped twice a week with increasing severity until they consented to work, and were at last dismissed from the colony under pain of death if they returned.

Patience Scott, a girl eleven years old, was imprisoned as a Quaker, but discharged, after a period of detention, in consideration of her youth; but her mother, Catherine Scott, for reproving the magistrates for a deed of darkness, was whipped ten stripes, although she was admitted by them to be otherwise of blameless life and conversation.

Christopher Holden, who, in spite of losing his ears in 1658, had returned once more, was banished upon pain of death by the same court that had hanged Robinson and Stevenson.²⁸ Seven or eight persons were fined, some as high as ten pounds, for entertaining Quakers, and Edward Wharton, for piloting them from one place to another, was ordered to be whipped

twenty stripes, and bound to his good behavior. Divers others were then brought upon trial, “for adhering to the cursed sect of Quakers, not disowning themselves to be such, refusing to give civil respect, leaving their families and relations, and roaming from place to place vagabonds like”; and Daniel Gold was sentenced to be whipped thirty stripes, Robert Harper fifteen, and they, with Alice Courland, Mary Scott, and Hope Clifton, banished upon pain of death; William Kingswill whipped fifteen stripes; Margaret Smith, Mary Trask, and Provided Southwick ten stripes each, and Hannah Phelps admonished.²⁹ In November, William Leddra, who had been released, returned, and was at once arrested. On his trial the opportunity of withdrawal was again extended, but he refused to accept it, and was executed March 1, 1661. As he ascended the ladder he was heard to say: “All that will be Christ’s disciples must take up the cross,” and just as he was being thrown from its rounds, he cried in the words of Stephen, “Lord Jesus, receive my spirit.” Wenlock Christison, who had been before this sentenced to death, but allowed to leave the colony, had returned, and during Leddra’s trial he came boldly before the Court and told the astonished judges: “I am come here to warn you that ye shed no more innocent blood.” He was at once arrested, and was brought up for trial three months later. There was an unusual difference of opinion in regard to the case, and the condemnation was only secured by the violence of Endicott, who was able to browbeat the others into consent. But the sentence they passed was never executed. The people were tired of bloodshed, and the opposition which was shown in the General Court to any further proceedings was so great as to make a change in the law necessary.³⁰

The humanity of the delegates to the Court was probably considerably quickened by a sense of the dangerous position in which the colony stood since the restoration of Charles II., who, they might naturally fear, would call them to an account for their proceedings, especially as the colony had allowed nearly a year to pass without any recognition of the change in the political situation.

The General Court attempted to save its dignity by interposing a still greater number of shameful and unusual punishments between the first offence and the death penalty, and declared that, “being desirous to try all means with as much lenity as might consist with safety to prevent the intrusions of the Quakers, who had not been restrained by the laws already

provided, they would henceforth order that such intruders should be tied to a cart's tail and whipped from town to town toward the borders of the jurisdiction. Should they return after being dealt with thus thrice, they were to be branded with the letter R on their left shoulder, and be severely whipped and sent away again at the cart's tail. Should they again return, they were to be liable to the former law of banishment under pain of death."³¹

It is quite possible that this appeared to be lenity to men like Endicott and Norton, but it is very doubtful whether the Quakers so considered it. It did not prevent, though it anticipated, an order from the king directing that any Quakers imprisoned or under sentence should be released and sent to England for trial.³² To make this still more galling to the pride of the colony, it was sent by Samuel Shattuck, a Salem Quaker, who had been banished from the colony under pain of death if he should return, and who, we cannot doubt, thoroughly enjoyed his mission and the humiliation of Endicott. For a short time the order was obeyed and then the "lenient" laws were put in force again; and, as many delicately nurtured Quaker women found to their cost, the "tender mercies" of the saints were cruel. Palfrey remarks, with great gratification apparently, that "no hanging, no branding, ever took place by force of this law," but that "under its provisions for other penalties the contest was carried on for a considerable time longer."

It would be wearisome to cite all of the subsequent proceedings; a few of them will suffice to show that the treatment of the Quakers still continued to be extremely severe, and that in spite of it all they persisted in braving the threats of the magistrates. It was not until 1679, when religious toleration was forced against their wills upon the good Christians of Massachusetts, that the Quakers found any safety within the boundaries of the colony.

In 1661, when the Quakers were set free at the command of the king, some of them were whipped at the cart's tail twenty stripes apiece, on the ground that they were vagabonds.³³

In 1662, Josiah Southwick, who had returned from his banishment, was whipped at the cart's tail in Boston, Roxbury, and Dedham, and dismissed into the woods with a warning not to return. The magistrates apparently had

found that their old style of whipping was too humane; for the whip used on this and several subsequent occasions was made, not of cord, “but of dried guts like the bass strings of a bass viol,” with three knots at each end—a weapon which, according to contemporary testimony, made holes in the back that one could put pease into.³⁴

In December 1662 Ann Coleman, Mary Tompkins, and Alice Ambrose were stripped to the waist and whipped at the cart’s tail in Dover, Hampton, and Salisbury, and were forced to walk the entire distance in slush and snow up to their knees. The “lenient” sentence required indeed that they should be whipped in each town in the jurisdiction, but the constable at Newbury found in the warrant some flaw by which he was able to release them. On their return to Dover, they were seized by the constables by night, dragged face downwards over snow and stumps to the river, one of them at least was doused in the stream and dragged after a canoe, and they were only released because the storm was too severe for their tormentors to brave.³⁵ Ann Coleman, again, with four friends, was whipped through Salem, Boston, and Dedham.³⁶ Elizabeth Hooton, a woman of over sixty years of age, Fox’s first convert, was first imprisoned, and then carried two days’ journey into the wilderness, “among wolves and bears,” and left there to shift for herself. On returning, she was kept in a dungeon at Cambridge two days without food, tied to the whipping-post and flogged there, then taken to Watertown, where she was flogged with willow rods, flogged again at Dedham, and then carried into the woods as before. Coming back once more to fetch her clothes from Cambridge, she and a companion, “an ancient woman,” and her daughter were whipped in private, in spite of which we find her coming once more to Boston, and on that occasion she was whipped again at the cart’s tail.³⁷ Mary Tompkins, Alice Ambrose, and Ann Needham also appear again and again in the records of suffering. One Edward Wharton, who was most resolute in defying the authorities, was constantly under arrest, and even a bare enumeration of his floggings would fill a page.

In 1665 Deborah Wilson, for going naked through the streets of Salem “for a sign,” was whipped; but the constable executed his office so mercifully that he was displaced. There is a pathetic incident mentioned by Bishop, the Quaker historian, that “her tender husband, though not

altogether of her way, followed after,” as she underwent her punishment, “clapping his hat sometimes between the whip and her back.”³⁸

Eliakim Wardwell, at Newbury, was fined heavily in 1665 for entertaining Wenlock Christison; and this injustice in addition to the other cruel acts, so affected his wife Lydia that, although a modest and delicate woman, she came naked into the meeting at Newbury, as a testimony against them. She was seized and hurried away to the court at Ipswich, which sentenced her to be whipped at the nearest tavern post. Bishop says:

Without *Law* or *President* they condemned her to be tyed to the fence Post of the tavern, where they sat, which is usually their Court places, where they may serve their ears with Musick, and their bellies with Wine and gluttony; whereunto *she* was tyed stript from the *Waste* upwards, with her naked breasts to the splinters of the *Posts* and there sorely lashed, with *twenty* or *thirty* cruel stripes, which though it miserably tore and bruised *her* tender body, yet to the joy of *her* Husband and Friends that were Spectators, *she* was carried through all these inhumane cruelties, quiet and chearful, and to the shame and confusion of these unreasonable *bruit* beasts, whose name shall rot, and their memory perish.³⁹

Eliakim, her husband, some time after, for vindicating her character, was by order of the court at Hampton bound to a tree and whipped fifteen lashes. In 1675 a law was passed which made it the duty of the constables, under heavy penalties, to break up all Quaker meetings and to commit those present to the House of Correction, there to have the discipline of the house and be kept to work on bread and water, or else to pay five pounds.

In 1677 an order was passed requiring an oath of fidelity to the country, and legal liabilities were imposed upon all who refused the oath. This struck directly at the Quakers, and was believed by them, whether justly or not, to have been made for the purpose of vexing and plundering them.⁴⁰ A vigorous protest against it was made in writing by Margaret Brewster, who came from Barbadoes to bear her testimony against the law and to declare the evils that were coming upon the colony. Having, as she declared, “a foresight given of that grievous calamity called the Black Pox, which

afterwards spread there to the cutting off of many of the People. Wherefore she was constrained in a prophetic manner to warn them thereof, by entering into their publick assembly clothed in sackcloth and ashes, and with her face made black.” For this she and four of her friends were arrested and cast into prison upon the charge of “making a horrible disturbance, and affrighting the people in the South Church in Boston in the time of the public dispensing of the Word, whereby several women ... are in danger of miscarrying.” She was whipped at the cart’s tail twenty lashes, and the young women who were with her were forced to accompany her during her punishment. Twelve Quakers, who were arrested the same day at a Quaker meeting, were whipped, and fifteen the week following.⁴¹

In the other colonies the sufferings of the Quakers were not so severe, though in Plymouth they had to endure banishment, fines, and whippings. In Connecticut, thanks probably to the wisdom of John Winthrop, the only cases which occurred were met with banishment, and the Quakers seem to have respected the jurisdiction where they were mercifully treated. In New Haven there were several prosecutions; Southold on Long Island seems to have been the place most frequented by the Quakers, though they also appeared in Greenwich. The only case of extreme severity was that of Humphrey Norton, who had already borne his torturing in Massachusetts, where he had enraged the magistrates by his appeal to the laws of England. He was arrested at Southold and taken to New Haven, where he was “cast into Prison and chained to a Post, and kept night and day for the space of twenty Days with great Weights of Iron in an open Prison without Fire or Candles in the bitter cold Winter (December 1657), enough (reasonably) to have starved him,” as Bishop writes. When he attempted to reply to Davenport in the Court, he was not suffered to speak, but was gagged with “a great Iron Key, tied athwart his mouth.” After his trial was over he was whipped thirty stripes and branded H in the hand.⁴² Several who sympathized with or who entertained Quakers were punished with heavy fines. In New Netherlands they fared little better;⁴³ and in Virginia the much-flogged Mary Tompkins and Alice Ambrose found little mercy from the cavaliers, being put in the pillory and whipped with a cat-of-nine-tails so severely that blood was drawn by the very first stroke; and George Wilson, “in cruel irons that rotted his flesh, and long imprisonment,

departed this life for his testimony to the Lord.”⁴⁴ In Maryland they were subjected to fine and imprisonment for refusing to take an oath or to serve in the militia. Liberty of conscience was granted in 1688.⁴⁵

It was in New England, and especially in Massachusetts, that the persecution was general and severe. The magistrates, as a rule, defended their action, as necessary to the maintenance of their authority and to the preservation of order and orthodoxy; and their conduct has been extenuated and excused, if not actually defended, by modern New England historians.

It is not a pleasant history, but there is something to be said upon the side of the authorities even by one who has no admiration for them or sympathy with them. The Puritans had not come to New England for liberty of thought, but for liberty of action. Having failed, as they thought at the time, to secure the triumph of their views in the church and state of England, they preferred to leave the struggle and come to New England, where they could live under their own system without being obliged to contend or suffer for their faith—a point upon which the Quaker controversialists make some very sharp remarks.⁴⁶

They considered the territory which they held to be their own *peculium*, and claimed that by their charter they had acquired absolute sovereignty in its limits, subject to no appeal to England; and they realized that if appeal to England was granted, their absolute authority was at an end. One of the leading colonists is reported to have said: “If we admit appeal to the Parliament this year, next year they will send to see how it is, and the third year the government will be changed.” The settlement also had in their eyes a religious character; it was founded, as they boasted, for religion and not for trade, and they held that they had a right to dictate the religious usages and practices therein, as was shown by their treatment of Mrs. Hutchinson and Wheelwright, Roger Williams and Gorton, Child and Maverick, not to mention Morton of Merry Mount. They believed the Quakers to be a pernicious sect, confounding them with other fanatical bodies which they resembled, and they feared that the natural consequence of the claim which they made to immediate revelation would be communistic attempts at the overthrow of the established order, such as had been seen a hundred years before in Germany. From these premises the conclusion was a natural one, that their duty was to nip the evil in the bud, to crush the Quakers before

they became strong enough to be dangerous to the state. Their action in banishing the first that arrived, before any overt acts were committed, was undoubtedly technically illegal; but if the Quakers had been in reality what they fancied them, no one would have blamed them for their prompt decision. Besides, they had a law by which they were accustomed to banish heretics, and the Quakers might very well come under that description.

As regards the compelling shipmasters to carry them back to the port from which they had come, such a custom had prevailed from a very early date in the case of undesirable immigrants. Winthrop, in his History mentions the reshipping to England of a crazy pauper woman whom the parish of Willesden had sent over to the colonists in Massachusetts. The Quakers came in spite of banishment, and the more they were imprisoned and beaten the more daring became their defiance, the more violent their abuse. They spared neither priest nor magistrate, and the floods of denunciation which they poured out were portentous. It is not to be wondered at that a stern and severe people, living a hard and cruel life of constant struggle with the elements, and in the constant dread lest their privileges should be assailed, should have been cruel in their treatment of these incorrigible offenders.

Judged by the common standard of the age, the cruelty of the treatment of the Quakers is not so remarkable as to be singled out above all other cruelties for reprobation. The Quakers themselves were cruel at times. George Fox himself is said to have been a witch-finder; and a son of the Samuel Shattuck who bore the king's mandate to Endicott appears in the Salem witchcraft trials as a prominent witness against some of the unfortunates.⁴⁷ The folly and fatuity of the treatment adopted is more of a point to notice. In the colonies where the Quakers were let alone they caused no trouble. Palfrey's sneer, that there was no order to disturb in Rhode Island, may be justified perhaps as regards that colony, but Connecticut certainly was a well-ordered commonwealth. In Massachusetts, on the contrary, the same persons kept coming again and again, and the severer the punishments the madder became their actions. It should be remembered that the acts usually mentioned as justifying the Puritans' severity, such as the performances of the naked women at Salem and Newbury, of the men who broke bottles on the pulpit steps, and of the woman who smeared her face with black and frightened the matrons in the

Old South church, were not committed until after the persecution had been carried on for years, until scores of women had been stripped naked and flogged by the authorities, until men had had their ears cut off, and until three men and one woman had been put to death upon the gallows. The persecution was a blunder, and the details of it made it a blunder of the most atrocious description. Power was put into the hands of local and irresponsible magistrates to sentence men and women to these shameful and unusual punishments, and brutal constables and jailers were entrusted with the enforcement of the law without any due supervision. The most painful part of the whole history is the attitude of the Puritan clergy, in Massachusetts especially. They were bitter and bigoted, hounding on the magistrates to their cruel work, and insulting the unfortunate wretches when they came to suffer. Quaker instinct rightly, no doubt, fixed upon John Norton as the “Fountain and Principal unto whom most of the cruelty and bloodshed is to be imputed.”⁴⁸

For the constancy of the Quakers themselves, their endurance and their fortitude, one can feel nothing but admiration. One remembers how, centuries before, men who like them were willing to die rather than to deny their faith had been called the enemies of mankind, and accused of a perverse and execrable superstition. It must be admitted, however, that their behavior was often of a kind that would not be allowed to-day any more than it was then, although it is to be hoped that our modern statecraft would find milder and more efficient means of repression than did our predecessors in New England; yet when one remembers how the Mormons were treated in Illinois and Missouri, and how the mob destroyed a Roman Catholic convent in Massachusetts, within the memories of living men, we may think it perhaps prudent not to be too sweeping in our condemnation.

The fundamental difficulty in the Puritans’ position was their illegal and unconstitutional government. To maintain that, they were led to deny to other Englishmen their rights, and to assert an independence of the home authorities which was little short of actual separation.

The second evil principle in their government was the union of church and state, or rather the subjection of the state to the church, a church moreover in which the people had no rights except by favor of the ministers, a church that was a close corporation and imbued with the spirit

of the law of Moses rather than that of the gospel of Christ. In church, as well as in state, there was a consciousness that their existence was illegal and illegitimate; that, in spite of their protests to the contrary, they had separated from their fellow-Christians in England and had formed a polity for themselves; hence, just as they felt it necessary to manifest their political authority by acts of severity upon any who questioned it, so they deemed it necessary to maintain their orthodoxy by persecuting those who differed from them in religion. They were ill at ease both politically and religiously, and they sought to disguise the fact from themselves, by making proof of all the power that they possessed. Hence it was that the conflict arose which has stained with innocent blood the early history of the land. It is not to be wondered that the Quakers should see, in the horrible death of Endicott and the miserable end of Norton,⁴⁹ the hand of an avenging Providence, or that they should believe that for a distance of twenty miles from Boston the ground was cursed so that no wheat could ripen because of a blood-red blight that fastened upon it.⁵⁰ But we, who live at a time when we can view the history of the struggle with calmness and impartiality, may respect the grim determination of the severe magistrates who felt it their duty, at whatever cost, to keep that which was committed to their trust free from the poison of heresy and fanaticism, while we sorrow at the blindness which hid from their eyes the folly and the cruelty of their proceedings. We may sympathize with the tortured Quakers, whom we now know to be harmless enthusiasts, yet without approving or extenuating their mad actions, their abusive language, or their grotesque indecencies; and we may hope that, though at enmity in this life, yet, as Browning wrote of Strafford and Pym,

“in that world
Where great hearts led astray are turned again,”

both now are able to respect each other's loyalty of purpose and fidelity to their respective conceptions of truth.

NOTES.

¹ *Vide infra*, Note 6.

² George Fox, *Journal*. It is well to notice that of the ministers mentioned by Fox by name or parish, Nath. Stevens, the rector of Fenny Drayton, was a Presbyterian of some eminence, and was ejected for non-conformity in 1662. So also was Matthew Cradock, the “priest of Coventry,” who was a distinguished non-conformist divine. The priest at Mansetter, who advised tobacco and psalm-singing, kept his living during the whole period of the Commonwealth, and so may be presumed not to have been a “Churchman” in the commonly received sense of the term. “One Macham,” of whom Fox speaks, and who seems to have treated him with more sympathetic kindness than any of the others, was a loyal Churchman and was sequestered in 1645, as a penalty for his adherence to the bishop and the king to whom he had sworn allegiance. It is rather surprising to find historians in general, even those who should be better informed, assuming that, because these men were filling the parishes of the Church of England, they were, therefore, Church of England clergymen.

³ Bishop, George, *New England Judged*, London, 1661, pp. 14–25.

⁴ Geo. E. Ellis, *Memorial History of Boston*, vol. i. p. 181.

⁵ Hubbard’s *History of New England*, p. 553.

⁶ *Massachusetts Records*, iv. (1), 276.

⁷ Bishop, 5–13.

⁸ Hazard, *Historical Collections*, ii. 349. *Rhode Island Records*, i. 374.

- ⁹ *Mass. Records*, iv. (1), 277.
- ¹⁰ Bishop, 38, 39.
- ¹¹ Bishop, 40, 42.
- ¹² *Mass. Records*, iv. (1), 308. Bishop, 50.
- ¹³ *Mass. Records*, iv. (1), 325.
- ¹⁴ Bishop, 72, 73.
- ¹⁵ *Mass. Records*, iv. (1), 345, 346.
- ¹⁶ *Mass. Archives*, vol. x. p. 246.
- ¹⁷ *Mass. Records*, iv. (1), 348. (In payment for this work Norton received five hundred acres of land, a good price for a sermon. *Ibid.*, p. 397.)
- ¹⁸ *The Heart of New England Rent at the Blasphemies of the Present Generation*. Printed by Samuel Green, Cambridge in New England, 1659. The arguments used in this declaration are so characteristic of the spirit of the times that the following extract may be useful. The author has been demonstrating that the Quakers were heretical on various points of the faith, and that the Scriptures authorize the punishment of false believers. He continues:

“But other Scriptures omitted, I shall here transcribe only two more, both of which are eminently pregnant with this truth: wherein also are cases put between the cause of God and our near relations, on purpose to provide against obstructions in this great business of religion.

The first we have *Deut. xiii. per totum*.

Relating to all times succeeding that constitution; ‘*If thy brother, the son of thy mother, or thy son, or thy daughter, or the wife of thy bosom, or thy friend, which is as thine own soul, entice thee secretly, saying, Let us go and serve other gods, which thou hast not known, thou, nor thy fathers; Thou shalt not consent unto him, nor hearken*

unto him; neither shalt thine eyes pity him, neither shalt thou spare, neither shalt thou conceal him.’ vers. 6, 8. The second we have Zech. xiii. 1, 3. Expressly relating unto the times of the Gospel. In that day, viz.: after the Coming of the Messiah in the time of the Gospel when the families of the tribes shall mourne Chapt. xii. 11. The familie of the house of David apart, & the familie of the house of Nathan apart, etc. There shall be a fountain opened, i. e. the doctrine of Christ under Moses’ dispensation is compared to a fountain veiled, 2 Cor. iii. 13, etc. Under the Gospel dispensation to a fountain opened. The vail of the Temple & the ceremonial law being taken away. And it shall come to pass that when any shall yet Prophecie, then his father & his mother that begat him, shall thrust him through, when he prophecieth. These words [thrust him through] may be understood either of a Capital punishment judicially dispensed, or of any other smart punishment piercing though not Capital.

* * * * *

“Wee through grace abhorre prejudicing the liberty of conscience the least measure, and account such report of us to be a slander. And through the same grace; Wee both dread, and beare witness against, liberty of heresy, liberty to Blaspheme the Blessed Trinity, the Person and Office of Christ, the holy-Scripture, the tabernacle of God, and those that dwell in heaven. Howsoever fallaciously transformed into, and misrepresented under the plausible vizard of liberty of conscience falsely so called. We say Religion is to be perswaded with Scripture-reasons, not Civil weapons: with Arguments, not with punishments. But blasphemies immediate and heresies carried on with an high hand, and persisted in are to be suppressed with weapons and punishments; where reasons, and arguments cannot prevail.

We distinguish between Heresie (Quiet and alone, Turbulent, i. e. incorrigible) accompanied with soliciting the people to apostacy from the Faith of Christ to defection from the churches, to Sedition in the Commonwealth. And that after due meanes of conviction, and Authoritative prohibition.

We subject not any to Civil or Corporal punishment for heresie, if *quiet and alone*. We do not inflict any Church-censure in case of heresie, without doctrinal conviction on the Church's part, and contumacy on the delinquent's part foregoing.

In case of *Heresie incorrigible*, in conjunction with endeavours to seduce others thereunto, and tending to the disturbing of Publick-order, we acknowledge it to be the pious Wisdom of the Magistrate to proceed gradually, and where gentler meanes may rationally be looked at as effectual, there to abstain from the use of any severer remedie.

And according to this method, hath been the gradual proceeding of the Magistrate here, with those (hitherto incorrigible) *Quakers*, who from England have unreasonably and insolently obtruded themselves upon us. 1. Instructing them. 2. Restraining them untill an opportunity for their returne. 3. Publishing a law to warne and prohibite both them and all others of that sect, from Coming into this jurisdiction: otherwise to expect the house of Correction. And in case they returned yet again, then to loose one of their eares, etc.

At last upon experience of their bold contempt of these inferior restraints, and that after their being sent away again and again, they continue to return yet again and again; to the seducing of diverse, the disturbance, vexation and hazard of the whole Colonie. The Court finding the Law passed, to be an insufficient fence against these persons, proceeded to a Sentence of Banishment.

Their restraint before the Law published, was but restraint in the Prison, until an opportunity of shipping them away. They who after the Law was published, would that notwithstanding, break in upon us from England, or other forraign parts, by Rode-Island, after their correction received, and discharging their dues, might return again to the Island, if they pleased. The wolfe which ventures over the wild Sea, out of a ravening desire to prey upon the sheep, when landed, discovered and taken, hath no cause to complain, though for the security of the flock, he be penned up, with the door opening unto the fold fast shut; but having another door purposely left open, whereby

he may depart at his pleasure either returning from whence he came, or otherwise quitting the place.

Their *Sentence of Banishment* as Circumstanced, by an Impartial and equal eye, may be looked upon as an Act which the court was forced unto *se defendendo*, in defence of Religion, themselves, the Churches, and this poore State and People from Ruine: which the principles of confusion, daylie and studiously disseminated by them, threatened to bring all unto, if not seasonably prevented. *Exile from a wilderness*, from a place of exile; though voluntarie, from a place; confinement whereunto would indeed justly be called exile, is an *easie exile*.” (Pages 48, 49, 53, 54.)

¹⁹ *Rhode Island Records*, i. 376–378. See also the letter of the General Assembly, 378–380.

²⁰ Bishop, 95.

²¹ *Mass. Records*, iv. (1), 383.

²² *The Sufferings of the People called Quakers*, by Jos. Besse, London, 1753, ii. p. 177.

²³ Bishop, 89–95, 109.

²⁴ Hubbard’s *History of New England*, p. 173. See also an *Address to the King* (Charles II.), Dec. 19, 1660, in which the colonial authorities argue as follows: “Concerning the Quakers, open and capitall blasphemers, open seducers from the glorious Trinity, the Lord’s Christ, our Lord Jesus Christ, etc. the blessed gospell, and from the Holy Scriptures as the rule of life, open enemies to government itself as established in the hands of any but men of their oune principles, malignant and assiduous promoters of doctrines directly tending to subvert both our churches and state, after all other meanes for a long time used in vajne, wee were at last constreined, for our oune safety, to pass a sentence of banishment against them, vpon pajne of death. Such was their daingerous, impetuous, & desperat turbulency, both to religion & the state civil & ecclesiastical, as that how vnwillingly soever, could it have binn avoyded, the

magistrate at last, in conscience both to God and Man, judged himself called for the defense of all, to keep the passage with the point of the sword held towards them. This could do no harm to him that would be warned thereby: their wittingly rushing themselves thereupon was their own act, & we, with all humility, conceive a crime bringing their blood on their own head. The Quakers died, not because of their other crimes, how capital soever, but upon their superadded presumptuous & incorrigible contempt of authority; breaking in upon vs notwithstanding their sentence of banishment made known to them. Had they not binnestrestreigned, so far as appeared, there was too much cause to feare that we ourselves must quickly have dyed, or worse; and such was their insolency, that they would not be restrained but by death; nay, had they at last but promised to depart the jurisdiction, and not to returne without leave from authority, we should have binn glad of such an opportunity to have sayd they should not dye.” *Mass. Records*, iv. (1), 450–453. Bishop, 113.

²⁵ *Mass. Records*, iv. (1), 419.

²⁶ *Mass. Records*, iv. (1), 366. Bishop, 90, 91.

²⁷ Bishop, 44–48, 52–54.

²⁸ *Mass. Records*, iv. (1), 391.

²⁹ Bishop, 111. *Mass. Records*, iv. (1), 411.

³⁰ Bishop, Second Part, 14, 26, 30–35.

³¹ *Mass. Records*, iv. (2), 2–4, May, 1661.

³² Bishop, Second Part, 38, 39. The Declaration presented to the King by the Quakers may be found in the Preface to Besse’s *Sufferings of the People called Quakers*, I. xxx., xxxii.

³³ *Mass. Records*, iv. (2), 24.

³⁴ Bishop, Second Part, 52.

³⁵ *Ibid.*, 58, 65.

³⁶ *Ibid.*, 112.

³⁷ *Ibid.*, 90–105.

³⁸ *Ibid.*, 74.

³⁹ *Ibid.*, 68, 69.

⁴⁰ Besse, ii. 259.

⁴¹ Besse, ii. 260–264.

⁴² Bishop, 154, 155.

⁴³ Bishop, Second Part, 105–108.

⁴⁴ Bishop, Second Part, 46, 120.

⁴⁵ Besse, ii. 387.

⁴⁶ “And you shewed your Spirit, who ran away from England, and could not abide the sufferings of your purse, and a Prison, and when you were got beyond Sea, then you could Hang, and Burn, and Whip, God’s Creatures, and the true Subjects of *England*; yet you would have the name of Christians who have cast away all Humanity and Christianity, by your fury, rage, and *Nebuchadnezzar*’s spirit; who are worse than the very *Indians*, whose name stinks both among *Indians* and *Christians*, which is become a proverb and a common Cry, The bloody Crimes of *New England*, a company of rotten Hypocrites which fled from *Old England* to save their purses and themselves from Imprisonment, and then can Hang, and Burn, and Whip, and spoil the Goods of such as come out of England to inhabit among them, only for being called Quakers.... Are these the men that fled for Religion all people may say, that now Hang, Burn, Imprison, Cut, Fine, and spoil the Goods, and drink the blood of the innocent. God will give you a Cup of trembling, that you shall be a by-word, and a hissing to all your neighbours.” Bishop, Second Part, 146, 147.

⁴⁷ See [Note 83](#), on the next Essay.

⁴⁸ Bishop, 67.

⁴⁹ Bishop, Second Part, 139. Besse, ii. 270.

⁵⁰ Hutchinson, *History of Massachusetts-Bay*, i. 223.

II.

THE WITCHES.

THE story of the witchcraft delusion in New England is a sequel and companion-piece to the history of the conflict with the Quakers. Both exhibit the least attractive side of our forefathers, and both point the moral that the intermeddling by ecclesiastics in matters of public policy is dangerous to the state. It is a strange tale of superstition and of panic, painful to dwell upon, but necessary to a proper comprehension of the characters of the leaders of New England, and of the conditions under which the struggling colonies developed their strong and distinct individuality. It should always be remembered that belief in witchcraft was not a peculiarity of New England, and that the reason the colonists there have been judged so hardly for their panic is that men have felt that they had claimed to be superior to the men of their generation, and thus should be measured by a higher standard. Their claim had some justification. The leaders of thought in New England had advanced in some directions far beyond their contemporaries; in political insight and political adroitness they have had few equals in any period; but they were hampered and burdened by the very religion which to their fathers had been a gospel of liberty and a source of inspiration. This had become a theology with its dogmas and its rules; the devout and earnest ministers who had contended for their faith in England, or had braved the perils of the seas and the loneliness of the wilderness to be free to worship God as they chose, had given place to the second generation, who had never known suffering, and were therefore ignorant of mercy; men who were enthusiastic indeed, but not so much enthusiastic for religion as for their creed; not so zealous for Christ as for their own peculiar way of worshipping him. The result had been a general lowering of spiritual tone, which was recognized and freely acknowledged and deplored by the best men of the period. It seems inevitable that this hardening and narrowing should follow ages of contest and struggle. When the faith becomes a war-cry, it necessarily loses much

of its spirituality. Beliefs for which one age has suffered become crystallized into formulas for the next, and divines wonder at the hardness of men's hearts in refusing obedience to what once indeed had been a law of life, but by being made a commandment has become a law unto death.

So, while our New England forefathers were clever politicians, shrewd and adroit men of affairs, practical and full of ingenious expedients, intelligent and clear-headed about their secular business, they retrograded in religion, and became formalists and controversialists. Theological orthodoxy supplanted intelligent Christianity, and New England religion sank into a dreary series of wranglings about Cambridge platforms and Saybrook platforms, half-way covenants and whole-way covenants, old lights and new lights, consociations and associations, until it became, for a time at least, more arid and lifeless than ever had been the Church of England, against the formalism of which they were continually protesting. It is true that a few isolated cases of witchcraft are found occurring in the early history of the colonies, and it was then that the severe laws were enacted; yet the serious trouble, the great panic, did not come until the first generation, "those men who had seen the works of the Lord," had been gathered unto their fathers. One cannot imagine John Cotton playing the part of his namesake Cotton Mather, or John Winthrop, superstitious as he was, in the place of Stoughton. Even Wilson and Norton, who exulted in the blood of the Quakers, thought witch-finding a cowardly yielding to popular folly. The responsibility of the men of the first generation lies rather in the character of the religious training they gave their successors, a gloomy religion, which in themselves had been mitigated by a piety, sincere if fanatical, and perhaps also by some recollection of the brighter experiences of their childhood's days in the more genial religious life of England, a life their children had never known.

It is, then, not astonishing that our forefathers in New England should have been victims to a common delusion of their times. We may even say that the circumstances of their lives were such as to render them especially liable to it; for though the hardships of the early history of the settlement grew less as time went on, the life in New England was, at the best, lonely and depressing. The colonists lived dreary lives of laborious and uninteresting toil, with few physical comforts, and with poor and unvaried diet. They had few amusements, little or no recreation, and they were

constantly in face of difficulties, constantly exposed to danger. Their houses were on the verge of the mysterious forest, where strange sights and sounds were to be seen and heard, where dwelt the Indians, often hostile and always a source of uneasiness. They had few books, and those they had were not of a character to draw them away from the contemplation of themselves. The Bible they had, it is true, but to read it for any purpose except that of spiritual exercise would have been deemed profane. Sermons of abnormal length and dryness, controversial treatises, ponderous alike literally and figuratively, and, as we shall see later, ghastly and blood-curdling accounts of memorable providences, formed their principal literature. The settlers had been for the most part emigrants from quiet country towns and villages in England, put down in the unknown wilderness, to work out, under the pressure of religious enthusiasm, a new social and religious polity. The life was small, narrow, and squalid, only redeemed from utter sordidness by gleams of religious idealism and by the stern resolution of the better class of the settlers to keep themselves and their neighbors in the paths of righteousness. Their religion was a sombre Calvinism, giving more prominence to the terrors of the law than to the comforts of the gospel. Living as they did in scriptural thought, speaking in scriptural phraseology, dwelling constantly upon the similarity of their position with that of the children of Israel, it is not surprising that they should have carried their intense literalism into every particular. Their external relations, their religious and political systems, were ruled by the law of Moses as they imagined it from their somewhat uncritical study of the Old Testament. Their Christianity was profoundly internal and introspective, something which was between each individual soul and the Almighty, rather than a law of social life. The result of this was twofold. They were led to ascribe to their own convictions the character of divine revelations, and were also rendered intensely morbid, sometimes exalted above measure and sometimes as irrationally despondent. They felt that they were the chosen people of the Lord, doing a great work for him, in "setting up the candlestick of a pure church in the wilderness to which the like-minded might resort"; and this feeling led them to believe that they were especially exposed to the malice and spite of the devil, who desired to thwart their purpose. They saw special providences in every common occurrence that made for their welfare or that seemed to vindicate their theological prejudices, the envy and spite of the devil in every misadventure

or threatening circumstance. Cotton Mather may be taken as a characteristic specimen of the more intelligent and devout thinkers among the men of the second generation, and for him the whole daily life of the colony was a spiritual warfare. The very object of his greatest work, the “Magnalia Christi,” is to show the special workings of Divine Providence in favor of the people of Massachusetts, and to exhibit how they had battled against “principalities and powers, against the rulers of the darkness of this world, against spiritual wickedness in high places.” The savage Indians were supposed to be devil-worshippers, and to serve him at their “pow-wows” in the dark recesses of the unbroken forest. Every storm, every meteor, every unnatural birth, was a portent.⁵¹ It is not strange that under such conditions a strong belief in the reality of witchcraft should have existed, especially when the delusion was general in Europe as well as in America.

The belief in the power of evil spirits to interfere with man has been held in every age and in all parts of the world. It is a survival of that fear of the unseen, which filled the souls of men in those early ages when, ignorant of the forces of nature, they felt the universe about them to be hostile and ascribed all unfamiliar sensations to the agency of some invisible enemy. It is not strange that such a belief should have arisen. Man’s commonest experiences were those of hostility and pain; wild animals were hostile, his wilder fellow-men were still more hostile; from both he suffered injuries that were inflicted consciously and with evil intent; by analogy—the earliest, as it is the latest, form of reasoning—the other evils he suffered must be also the acts of conscious beings. The twinges of rheumatism were no less real than the pain from the blow of a foeman’s club; it was only natural to reason that they had been inflicted by an unseen enemy.

The fear of the unseen, so characteristic of primeval man, has left many traces in language, religion, and custom. Like many another instinct inherited from savage life, it remains lurking in the human mind, and at certain times comes to the surface. It has developed itself in two directions. On the one hand it has led to religion, to a faith in a supernal Protector with whom the darkness and the light are both alike; on the other, to a grovelling fear of evil spirits, which has been the cause of the belief in magic, sorcery, and witchcraft. The fear of Jehovah was, for Israel and for the world, the beginning of wisdom. The “seeking unto wizards that peep and mutter” is the parody of religion, which seems always to exist by its side.

It is probable also that the belief in evil spirits may have had, in some cases, a different origin. It has been often pointed out on historical as well as on philological grounds that, in many cases, the conquest of one tribe by another has degraded the religion of the conquered into a secondary and dishonorable position. When the Saxon convert renounced Woden, Thunor, and Saxnote and all their words and works, the gods of Asgard still remained, in the belief of both convert and converter, as malignant enemies of Christianity. Whether from a primitive fear or a degraded polytheism, the result has been the same; man tends to surround himself with a host of invisible foes.

The monotheistic religions, especially, have waged a bitter warfare upon this form of polytheism, as derogating from the honors due only to the highest. Judaism, Christianity, and Islam have all declared war against the witch and the magician, at times by stern legislation, at times by wise teaching of the unreality and nothingness of the pretences of those who claim supernatural powers.

Perhaps the most strange fact in the history of the subject, and a remarkable example of the impossibility of anticipating every result of an action, is that the very efforts which were made by the enlightened lawgivers of Israel to eradicate this debasing superstition have been in later times the provocation of the continued recurrence of the delusion. The words of the law of Israel have been used to prove the reality of the existence of the offence it had attempted to obliterate, while the severity of the punishments employed among a people just rescued from barbarism has been made an excuse for equal severity under circumstances the most widely different.

Even now such superstitions are extremely common among the negroes of the southern portion of the United States, and of the West India Islands, as they are among the Slavs in Bohemia and Russia, and among the ignorant in every land. Even among the educated classes there is a more than half-serious belief in "charms," "mascots," and "hoodoos," which is laughed at but acted upon. The superstitions about Friday, the number thirteen, and many others of the same nature, are still acted upon all over the world, and the belief in the evil eye is not confined to any one class or nation. Spiritualistic materializations and the marvels of Hindu theosophy

are modern examples of this same recurrence to the fears and follies of our savage ancestors.

In the seventeenth century, it was only a few emancipated spirits who did not so believe, and they were looked upon with horror by the majority of religious men as Sadducees and unbelievers. No less an authority than King James himself, the British Solomon, had written a most “learned and painful” treatise to prove the necessity of such a belief for all Christian people, a treatise in which he expounded satisfactorily, to himself at least, all the most recondite minutiae of the subject.⁵²

In his reign, by Act of Parliament, witchcraft had been made punishable by death,⁵³ and the scandalous case of Lady Essex’s divorce had been decided on grounds of “maleficium versus hanc.”⁵⁴ Still more recently, as the wise and godly Baxter relates, during the period of the Commonwealth, the learned Calamy had looked on with approval, while Matthew Hopkins, the witch-finder, tortured some poor wretches, among whom was one unfortunate dispossessed clergyman of the persecuted Church of England, into confessing revolting absurdities.⁵⁵ Still later, after the Restoration, the usually judicious Sir Matthew Hale had condemned and burned two women as witches, in the very Suffolk from which so many of the New Englanders had come, on evidence of the same character as that upon which American courts had to decide.⁵⁶ If these erred in believing in witchcraft, they erred in good company, with all the most orthodox teachers of religion and philosophy in Europe, Protestant and Catholic as well. Even Selden, who had no belief in witchcraft himself, justified the severity which was exercised against those condemned of that offence, by arguing that if a man thought that by turning his hat around and saying “Buz” he could kill a man, he ought to be put to death if he made the attempt, no matter how absurd the claim might be. Sir Thomas Browne, the well-known author of the *Religio Medici*, gave his testimony as an expert at the trial of the Suffolk witches, upon the side of the reality of witchcraft.⁵⁷ When the student of the early annals of the Colonies realizes the extent of this superstition, and at the same time the literal character of the religion of the majority of the settlers in New England, their bitter hatred of theological opponents, and their readiness to believe evil in regard to them; when he appreciates how

harsh and mean and unlovely was the life that most of them lived, and observes that, side by side with an exalted religious enthusiasm, the lowest and most abhorrent forms of indecency and vice prevailed, he will no longer be inclined to wonder at the existence in such a community of the witchcraft delusion, but will rather be amazed that, with such a people and among such surroundings, its duration was so short and its victims so few.

Although the crime of witchcraft was especially named in the colonial statutes, and the penalty of death imposed upon offenders, it was some time before a case was detected; and the early settlers seem usually to have acted most cautiously in this matter. Connecticut has the unenviable pre-eminence of having furnished the first victim, if Winthrop may be believed. He notes: "One of Windsor was arraigned and executed in Hartford for a witch" in March, 1646–7.⁵⁸ Then followed, in 1648, the execution of Margaret Jones at Charlestown, Mass., whose fate Winthrop also describes. She was tested according to the most approved maxims of witch-finders in England, being stripped and searched for witch-marks, or the teats by which it was believed the devil's imps were nourished. The search paid no regard to decency, and when the inquisitors found some small excrescence they were fully satisfied of the guilt of the accused, and she was accordingly hanged.⁵⁹ In the same year the founders of the liberties of Connecticut put to death, at Hartford, one Mary Johnson, with whom, it is related, "Mr. Stone labored with such success that she died in penitence, confessing her abominable crimes of familiarity with the devil."⁶⁰ In 1650, a Mistress Lake was hanged at Dorchester, and a Mistress Kendall at Cambridge, showing that not all the superstitious had migrated from those places to Hartford and Windsor.⁶¹ In 1651, Mary Parsons of Springfield was hanged for infanticide; she was generally accused of being a witch, but on trial before the General Court was cleared, owing to the insufficiency of the testimony;⁶² and Hugh Parsons, her husband, who was tried and found guilty by the Court of Assistants in 1652, was re-tried and acquitted by the General Court, "which, after perusing and considering the evidence, ... judged that he was not legally guilty of witchcraft, and so not to dye by law."⁶³ These instances of careful examination, as well as the small number of the cases, show that in the first twenty-five years there was no general panic, and that the authorities were inclined to proceed with a deliberation which contrasts

very favorably with the tone of feeling in England at this time. In 1651, Goodwife Bassett was hanged at Stratford,⁶⁴ and John Carrington and his wife of Wethersfield, probably at Hartford,⁶⁵ and in 1653, Goodwife Knapp suffered at Fairfield.⁶⁶ In Massachusetts there were no more cases until 1656, in which year Mistress Hibbins, a woman of position, whose husband had sat as an assistant at some of the earlier trials, was hanged in Boston. It is noticeable in her case that though the magistrates had refused to accept the verdict of the first jury that had found her guilty, the General Court, to whom the case came in regular course, condemned her.⁶⁷ Her execution shocked the wiser portion of the community, and even men of the narrow religious views of Norton and Wilson, though they did not venture openly to oppose the popular demand for her life, were heard to say in private that they had hanged a woman whose chief offence was in having more wit than her neighbors.⁶⁸

After her death there were no more executions in Massachusetts for over thirty years, though the increasing frequency of marvellous occurrences and suspicious cases promised ill for the future. Good sense as yet controlled public affairs, in this direction at least. In Connecticut witch-finding still continued; in 1558 the wife of Joseph Garlick of Easthampton (L. I.) was tried for this offence; in 1659 there was an alarm in Saybrook; and in 1662, one Goody Greensmith of Hartford was convicted, on her own confession, of having had carnal intercourse with the devil, and was hanged for the offence; two other women were condemned with her but “made their escape”; her husband was not so fortunate and was put to death. Mary Barnes of Farmington was indicted January 6th, 1662–3, and was probably executed with the Greensmiths.⁶⁹

Other cases occurred, but it is believed that this was the last execution for witchcraft in Connecticut. The Gallows Hill in Hartford was, however, long remembered, and has not even yet lost its unsavory reputation. The political changes incident to the reception of the charter, by which the colony of New Haven was calmly absorbed by its astute and ambitious neighbor, seem to have occupied men’s minds sufficiently to keep them from any great amount of activity in this direction. Yet, in 1665, Elizabeth Seger was found guilty of witchcraft at Hartford, but set at liberty, and,

1669, Katharine Harrison of Wethersfield was tried and condemned; the verdict, however, was overruled and the prisoner released by the Special Court of Assistants;⁷⁰ four women were tried in 1692, at Fairfield, one of whom was condemned to death, but not executed; two women were indicted at Wallingford, and a woman was tried at Hartford as late as 1697, but acquitted.⁷¹ It has sometimes been said that the arrival of Andros and the loss of the charter in 1687 was the only thing that prevented a serious outbreak of the delusion in Connecticut.

When the delusion revived in Massachusetts it was with increased force and virulence. Its recrudescence may be directly traced to the publication and general circulation in the colony of a book by Increase Mather, entitled “An Essay for the recording of Illustrious Providences,” etc., which contained a detailed account of all the marvels that Divine benevolence or wrath had wrought in the last thirty or forty years.⁷² At about the same time appeared the account of the trials in England under Sir Matthew Hale⁷³ and of the remarkable mania which had raged in Sweden in 1669.⁷⁴ These horrible stories became the subject of conversation, of meditation in private, and of sermon and prayer in public. They were apparently read or related to the young as edifying and instructive literature; for, from this time forward, children in New England began to repeat the phenomena that had prevailed on the other side of the Atlantic.

The colony was in a very excited and discontented condition. The beloved patent upon which the Commonwealth of Massachusetts had been so boldly reared had been taken away from them, and they had been brought under the government of England. Their “purity of doctrine” was more than threatened, as not only had they been compelled to desist from persecuting Quakers, but they had also been constrained to allow the hated *Book of Common Prayer* to be read in public, and to permit men to worship God according to its rubrical provisions. More than this, the king’s governor had actually polluted one of their meeting-houses by using it for the performance of the services of the national church. It seemed indeed to many of the men who were now prominent in the room of their wiser fathers, that Satan was making a desperate attack upon the colony; and their minds were predisposed to believe any marvels the result of diabolical agency.

The first manifestation of the revived delusion appeared in 1688, in the family of John Goodwin, a sober and prosperous mechanic of Boston. His children, all of whom were said to be remarkable for “ingenuity of character,” and who had been religiously brought up, and were “thought to be without guile,” suddenly exhibited the most alarming symptoms. One of them, a young girl, had given some offence to an old Irishwoman of bad character, and had been repaid with vigorous abuse and vituperation. Shortly afterwards she began to fall into fits, which were deemed by her friends and neighbors to have something diabolical about them. Soon the same complaint attacked also her sister and her two brothers, and the terrified observers reported that they were all “tormented in the same part of their bodies at the same time, though kept in separate apartments, and ignorant of one another’s complaints.” They were free from trouble at night and slept well. Their afflictions always came on in the daytime and in public. Their diabolical visitants were apparently instructed in theology, and displayed a depraved taste in literature that was intensely scandalizing to the pious Cotton Mather, who interested himself most deeply in the strange affliction of the children. He relates that they would throw the children into a senseless condition if they but looked on the outside of such good books as the *Assembly’s Catechism* or Cotton’s *Milk for Babes*, while they might read with complete impunity *Oxford Jests*, popish or Quaker books, or the *Book of Common Prayer*.⁷⁵ The other symptoms were yet more alarming, physically, if not spiritually. “Sometimes they would be deaf, then dumb, then blind, and sometimes all these disorders together would come upon them. Their tongues would be drawn down their throats, then pulled out upon their chins. Their jaws, necks, shoulders, elbows, and all their joints would appear to be dislocated, and they would make most piteous outcries of burnings, of being cut with knives, beat, etc., and the marks of wounds were afterwards to be seen.” The ministers of Boston and Charlestown came to the house, and kept there a day of fasting and prayer, with the happy result of curing the youngest of the children. The others continued as before; and then, the clergy having failed, the magistrates took up the case. The old woman whose violent tongue had apparently had some connection with the first outbreak of the complaint, was arrested and thrown into prison, and charged with witchcraft. She would neither deny or confess, but “appeared to be disordered in mind,” and insisted on talking Gaelic, though she had been able to talk English before. The physicians examined her, and

reported that she was *compos mentis*, and on their report the poor creature was hanged—a serious blot on the usually judicious administration of Sir Edmund Andros; so unlike him that one is inclined to suspect he must have been absent from Boston when this foolish crime was perpetrated. The children gradually recovered, grew up, “experienced religion” in the usual way, and never confessed to any fault or deceit in the matter. Hutchinson writes that he knew one of them in after years, who had the character of a very sober, virtuous woman.⁷⁶

As these cases may be referred to the circulation of the record of the former marvels and illustrious providences, so now in their turn they became the provoking causes of many others; for a full and particular account of these was printed, first in Boston, and then, almost immediately afterward, in London, with an introduction from no less a person than Richard Baxter. This, together with the other relations, was circulated throughout the colony, and led to a still greater outbreak of the delusion.⁷⁷ Men thought about witches and talked about witches, and very naturally soon came to believe that all the accidents and disasters and diseases, which they could not explain by common natural causes, were the result of demoniac agency.

The strong rule of Andros had ended in revolution and disturbance; but, much to their disappointment, the people had been obliged to accept a new charter under which the rule of the hierarchy was still restrained by the appointment of the governor by the crown. The leaders, astute as ever, succeeded in securing the appointment of Sir William Phips, an ignorant and underbred sailor, hoping to be able to influence him easily, and thus to continue their authority. The lieutenant-governor was Stoughton, one of themselves, whose narrowness of mind and bitter prejudices made him a man upon whom they could rely implicitly. But before the charter arrived, the colony was thrown into a ferment of excitement by the dreadful occurrences at Salem village (now Danvers), which, to the minds of the majority of the population, indicated unquestionably that the enemy of souls was making a most desperate attack upon the community.

The trouble broke out in the family of the minister of the village, Parris by name, who had shortly before had serious difficulties with some of his congregation.⁷⁸ His daughter and his niece, girls ten or eleven years old,

began to make the same complaints that had been made by the Goodwin children in Boston three years before. The physicians found themselves at a loss, and hence were quite convinced that the ailments were supernatural, and declared that the children were bewitched. An Indian woman named Tituba, a servant in the house, tried some experiments of a somewhat disgusting nature, which she claimed would discover who the witch was that was tormenting them. When the girls knew what she had done, they immediately cried out that Tituba appeared to them, pricking and tormenting them, and straightway fell into convulsions. The woman, alarmed at this, confessed what she had been doing, but stoutly maintained that, though she knew how to find out witches she herself was none. The condition of the children excited much attention, and the more they were investigated the worse they grew, and soon several others were seized with the same symptoms. These all had their fits, and when in them would accuse not only the Indian woman, but also two old half-witted crones in the neighborhood, one of whom was bed-ridden as well as imbecile. The three were committed to prison, where Tituba confessed that she was a witch and accused the others of being her confederates. They soon had company in the jail, as two others, women of character and position, Mistress Cory and Mistress Nurse, were complained of; and when they were brought to examination, all the children “fell into their fits” and insisted that the accused were tormenting them. The women naturally denied this outrageous charge, but in spite of their denial were committed to prison, and with them, so great was the infatuation and panic, a little child of only four years of age, who, as some of the girls insisted, “kept biting them with her little sharp teeth.”

Panic, like rumor, thrives by what it feeds on; and from day to day new victims were accused and committed, until the prisons were crowded. More than a hundred women, many of them of good character and belonging to respectable families in Salem, Andover, Ipswich and Billerica, were arrested, and after an examination, usually conducted by Parris, were thrown into the jails to await their formal trial.⁷⁹ Many of these, in order to escape, confessed whatever they were charged with, and generally in their confessions tried to win favor for themselves by accusing some one else.⁸⁰ Neighborhood quarrels, old sores, spite, envy, and jealousy added their bitterness to the prevailing madness. It seems incredible that any rational

beings could have been found to give credence to the farrago of nonsense that was solemnly sworn to; yet it was the most marvellous tales that found the readiest credence. One confession may be cited as a sample, to illustrate what was the force of panic terror in the midst of this apparently civilized community.⁸¹

“The examination and confession (8 Sept. 92) of Mary Osgood, wife of Captain Osgood of Andover, taken before John Hawthorne and other their Majesties justices.

“She confesses that about 11 years ago, when she was in a melancholy state and condition, she would walk abroad in her orchard; and upon a certain time she saw the appearance of a cat, at the end of the house, which yet she thought was a real cat. However, at that time it diverted her from praying to God, and, instead thereof, she prayed to the devil; about which time she made a covenant with the devil, who, as a black man, came to her, and presented to her a book, upon which she laid her finger, and that left a red spot. And that upon her signing, the devil told her he was her God, and that she should serve and worship him, and, she believes, she consented unto it. She says further, that about two years ago, she was carried through the air, in company with Deacon Frye’s wife, Ebenezer Baker’s wife, and Goody Tyler, to Five-Mile Pond, where she was baptized by the devil, who dipped her face in the water and made her renounce her former baptism, and told her that she must be his, soul and body, forever, and that she must serve him, which she promised to do. She says ... that she was transported back again through the air, in company with the forenamed persons, in the same manner as she went, and believes she was carried upon a pole.... She confesses she has afflicted three persons, John Sawdy, Martha Sprague, and Rose Foster, and that she did it by pinching her bed-clothes and giving consent the devil should do it in her shape, and the devil could not do without her consent. She confesses the afflicting persons in the court by the glance of her eye.... Q. Who taught you this way of witchcraft? A. Satan, and that he promised her abundance of satisfaction and quietness in her future state, but never performed anything; and that she has lived more miserably and more discontented since than ever before. She confesses further, that she herself, in

company with Goody Parker, Goody Tyler, and Goody Dean, had a meeting at Moses Tyler's house, last Monday night, to afflict, and that she and Goody Dean carried the shape of Mr. Dean, the minister, to make persons believe that Mr. Dean afflicted. Q. What hindered you from accomplishing what you intended? A. The Lord would not suffer it to be that the devil should afflict in an innocent person's shape.⁸² Q. Have you been at any other witch meetings? A. I know nothing thereof, as I shall answer in the presence of God and of His people: but said that the black man stood before her, and told her, that what she had confessed was a lie; notwithstanding, she said that what she had confessed was true, and thereto put her hand. Her husband being present, was asked if he judged his wife to be any way discomposed. He answered that having lived with her so long he doth not judge her to be any ways discomposed, but has cause to believe what she has said is true."

When the new charter arrived and the new government went into operation, the Governor and Council appointed Commissions of Oyer and Terminer for the trial of witchcrafts. Their action was of more than questionable legality, as by the charter the power of constituting courts of justice was reserved to the General Assembly, while the Governor and Council had only the right of appointing judges and commissioners in courts thus constituted. The Court, however, was established, and was opened at Salem in the first week of June 1692.⁸³ At its first session only one of the accused was brought to trial, an old woman, Bridget Bishop by name, who had lived on bad terms with all her neighbors, and consequently had no friends. She had been charged with witchcraft twenty years before, and although her accuser had acknowledged on his death-bed that his accusation had been false and malicious, the stigma of the charge had always remained. Consequently all the losses her neighbors had met with, in cattle, swine, or poultry, all the accidents or unusual sicknesses they had had, were attributed to her spite against them, and were now brought forward as evidence against her. This testimony, together with the charges made by the possessed children, who continued to reveal new horrors from day to day, and the confessions of other women who to save themselves accused her, was confirmed to the satisfaction of the Court by the discovery

of a “preternatural excrescence,” and she was convicted and executed.⁸⁴ The further trials were postponed until the end of the month, and in the interval the Governor and Council consulted the ministers of the province as to the proper course to pursue. In their reply they recommended caution and discretion, but concluded their advice by saying, “Nevertheless we cannot but humbly recommend unto the government the speedy and vigorous prosecutions of such as have rendered themselves obnoxious, according to the direction given in the laws of God and the wholesome statutes of the English nation for the detection of witchcrafts.”⁸⁵

The ministers had as little doubt of the laws of England being available for their purpose as they had of what they considered to be the laws of God; yet it is very doubtful whether, at the time of Bishop’s trial and execution, there was any law in existence which authorized their proceedings. The old colonial law was no longer in force; and witchcraft not being an offence at common law, the only law by which their action could be justified was the statute of James I., which must therefore have been considered as in force in the colony. It is probable that the execution was utterly illegal. Before the next cases were tried, the old colonial statute was revived and made again the law of the province.

The trials were resumed in July, and were conducted in the same manner as in the case of Bishop, but with even greater harshness. In one case, that of Mrs. Nurse, the perversion of justice was most scandalous. The accusations were so absurd, and her character and position so good, that the jury brought in a verdict of not guilty. So great, however, was the indignation of the populace, and so serious the dissatisfaction of the Court, that the cowardly jurors asked permission to go out a second time, and then brought in a verdict of guilty, which was accepted. The poor woman, whose deafness had prevented her hearing and answering some of the most serious charges, was solemnly excommunicated by Mr. Noyes, the minister of Salem, and formally delivered over to Satan, and, with four others, was hanged. It was long remembered that when one of them was told at the gallows by Noyes that he knew she was a witch, and that she had better confess, and not be damned as well as hanged, she replied that he lied, that she was no more a witch than he was a wizard, and that, if he took away her life, God would give him blood to drink;⁸⁶ and it was believed in Salem that

the prediction was literally fulfilled, and that Noyes came to his death by breaking a blood-vessel in his lungs, and was choked with his own blood.

It would be needlessly revolting to relate the details of the subsequent trials, in which the Court, driven by the popular panic and the prevailing religious ideas, perverted justice and destroyed the innocent.⁸⁷ Nineteen persons in all were executed, all of whom, without exception, died professing their innocence and forgiving their murderers, and thus refused to save their lives by confessing crimes which they had not committed and could not possibly commit.⁸⁸ Besides those who suffered for witchcraft, one other, Giles Cory, was put to death with the utmost barbarity. When arraigned for trial he refused to plead, and was condemned to the *peine forte et dure*, the only time this infamous torture was ever inflicted in America. It consisted in placing the contumacious person on a hard floor, and then piling weight after weight upon him, until he consented to plead or was crushed to death. A nearly contemporary account relates that when, in the death agony, the poor wretch's tongue protruded from his mouth, the sheriff with his cane pushed it in again; and local tradition and ballad told how in his torment he cried for "more rocks" to be heaped on him to put him out of his misery.⁸⁹ This was the last of the executions. The Court of Oyer and Terminer sat no more, and in the interval between its adjournment and the opening of the sessions of the "Supreme Standing Court," in the following January, time was given for consideration and reflection.⁹⁰

But it may be questioned whether consideration and reflection would have put a stop to the delusion without the operation of another and more powerful cause. Thus far, the accused persons had been generally of insignificant position, friendless old women, or men who had either affronted their neighbors or, by the irregularity of their lives, had lost the sympathy of the community.⁹¹ But with their success, the boldness or the madness of the accusers increased; some of the most prominent people in the colony, distinguished in many cases by unblemished lives, were now charged with dealings with the devil, and even the wife of the Governor fell under suspicion. The community came at last to its senses, and began to realize that the evidence, which till then had seemed conclusive, was not worthy of attention. Confessions were withdrawn, and the testimony of neighbors to good character and life was at length regarded as of greater

weight than the ravings of hysterical girls or the malice of private enemies. So it came about that before long those who were not prejudiced and committed by the part they had played, acknowledged that they had been condemning the innocent and bringing blood-guiltiness upon the land. Even Cotton Mather, who had been largely responsible for the spread of the delusion, was compelled to admit that mistakes had been made, though he still maintained that if a further investigation had been held in the cases of many who were set free, their guilt might have been made apparent. Some that had served on the juries that had condemned the victims put forth a paper admitting their delusion and begging pardon of God and man for their mistake.⁹² The impressive story of Sewall's penitence, and public confession of his fault in the South Church in Boston, is well known; more consistent and logical was the declaration of the stern-tempered Stoughton, that when he sat in judgment he had the fear of God before his eyes, and gave his opinion according to the best of his understanding; and, although it might appear afterwards that he had been in error, yet he saw no necessity for a public acknowledgment of it.⁹³

Parris, whose part in these acts of folly and delusion had been the most prominent of all, and who was strongly suspected of having used the popular frenzy to ruin some of his personal antagonists, was compelled to resign his position and leave the people whom he had so grossly misled.⁹⁴ Noyes, whose delusion had been at least sincere, made public confession of his fault, and was forgiven by his congregation and by the community that had erred with him. Thus ended one of the most painful episodes in the early history of New England.

The other colonies in America were not so entirely free from this superstition that they should reproach the Puritans for it as a special and peculiar product of their religious system. There were cases in New York, Pennsylvania, Maryland, and Virginia, though there is no record of any one having been put to death for the offence in those colonies. In Pennsylvania, under the prudent instructions of William Penn, who seems to have been less superstitious than the Massachusetts Quakers, the jury brought in a verdict that the person accused was guilty of "being suspected of being a witch," and, fortunately, at that time suspicion was not punishable.⁹⁵ In New York, a certain Ralf Hall and his wife were tried in 1665, but were

acquitted, and an attempt, in 1670, to create an excitement in Westchester over Katharine Harrison, who had moved thither from Connecticut, was sternly suppressed.⁹⁶ There were trials for witchcraft in Maryland in the last quarter of the seventeenth century; and in Virginia in 1705, thirteen years later than the Salem trials, a witch was ducked by order of court.⁹⁷

It is hard to decide how much of all this was panic and how much deliberate fraud and imposture. There is no reason to suspect anything worse than pure superstition in the early cases in Massachusetts and Connecticut; but the marvellous attacks of the Goodwin children in Boston and of the Parris girls in Salem seem to belong to a different category.⁹⁸ It is almost incredible that the girl who played so cleverly upon the vanity and the theological prejudices of Cotton Mather was not fully aware of what she was doing; and the fact that the Parris children accused persons with whom their father had previously had trouble, renders their delusion extremely suspicious. The great St. Benedict is reported to have cured a brother who was possessed by the devil by thrashing him soundly; and it is much to be regretted that the Protestantism of the New Englanders prevented their knowing and experimenting with the saint's specific, which, in all ages of the world, has been admitted to be wonderfully efficacious. It has been held by many that the testimony at Salem was deliberately fabricated; Hutchinson, writing at a time when men who could remember the trials were yet living, is strongly of that opinion. The case does not, however, seem as clear as that of the Goodwins; and of them Hutchinson, as has been said, reports that they were estimable women who had never acknowledged any deception on their part.

The phenomena of mental disease are so strange and complicated that at the present day men are not as ready to set everything down to fraud as they were a hundred years ago. It is possible to account psychologically for all the phenomena recorded, without being obliged to adopt any very violent hypothesis. Even if at the outset the children in either case were pretending, it is quite as conceivable that they should have passed from pretence of nervous symptoms to the reality, as it is to think that absolute fraud would pass so long undetected. The symptoms described are such as would be recognized by any alienist to-day, and could be duplicated out of the current medical journals. It may also be noticed that many of the

possessed were girls just coming to maturity, and thus of an age when the nervous system was passing through a period of strain.

The rapidity with which the panic spread was most remarkable, and it is painful to notice the abject terror into which the population was thrown. Parents accused their children, and children their parents, and, in one case at least, a wife her husband. Some men were tied neck and heels until they would confess and accuse others.⁹⁹ It was a period of the most pitiful mental and spiritual cowardice, and those that were most directly responsible for the shameful condition of affairs were men who, from their learning and their position, should have been the leaders and sustainers of the popular conscience in soberness of mind and charity. But the ministers of New England had emphasized the necessity of a belief in witchcraft as a part of the Divine revelation. The Old Testament spoke of witches, and had said, "Thou shalt not suffer a witch to live," while the New Testament supplied the idea of diabolical possession; hence they argued, with a style of argument not yet disused, that any one who denied the existence of witchcraft was a Sadducee and an impugner of the truth of God's Word. Soon the reasoning was extended to prove that any one who denied that the particular phenomena under discussion were caused by witchcraft was an enemy of religion. The ministers, as has been said, have an unenviable prominence in the accounts of this disastrous delusion. They were as forward in destroying the witches as their predecessors had been in persecuting the Quakers. They hounded on the judges and juries in their bloody work, they increased the popular excitement by their public fasts and prayers and sermons, they insulted the victims on the scaffold. It is no wonder that, under such leadership, the population was excited to madness. It was only when they found their own families and friends accused by those on whose testimony others as innocent had been destroyed, that they were able to recognize that the accusations were absurd and the evidence worthless. Yet it may be said on their behalf that they were not really as far in advance of the majority of their contemporaries as they imagined they were, and it is to their credit that, when their eyes were opened, they were opened thoroughly and not closed again. Cases of witchcraft now disappeared from New England, while in other lands, where there was the same sombre Calvinism but less enlightenment, as in Scotland, the delusion continued for many years.¹⁰⁰

The theological spirit now devoted itself to barren questions of little moment, around which wordy battles raged and hatreds developed, only less destructive than those in the previous century because the divines were no longer the rulers of the state. Religion sank into a barren formalism, which had no noble or time-honored forms to redeem it from utter indifference. From this deplorable condition it was roused by three influences which led to a spiritual revival: the Episcopal movement in Connecticut, the preaching and writings of Jonathan Edwards in western Massachusetts, and the preaching of Whitefield. The dry bones once more lived, and the descendants of the Puritans manifest by their earnest activity and deep spirituality how stout and strong was the stock from which they have inherited many of their most precious characteristics. They may be thankful that the old bigotry has not returned, and that they are now saved from all danger of interfering with public affairs by the complete separation of church and state.

Panic terror of the supernatural, whenever it has occurred, has been a parody of the prevailing form of religion. When the religious ideas are at once narrow and introspective, when the social life is poor and unsatisfying, and when there is also a profound ignorance of bodily and mental physiology, we have the combined conditions for the ready and serious development of religious panic. Such were the circumstances of the witchcraft delusion that followed the religious revival due to the preaching of the Franciscan friars; such were the circumstances in Sweden in the seventeenth century, and in Scotland in the eighteenth; such were the circumstances in New England at the period we have considered. The isolated cases which appeared in various countries from time to time were the result of superstition and ignorance. That they did not cause a panic may be attributed in some cases to the better social condition; in others, to the presence in the community of men of sense and character who prevented the spread of delusion and calmed, instead of exciting, the minds of their fellows. It is one of the saddest features of the Salem trials, that though prominent men whose influence might have been expected to be exercised on the side of soberness, disbelieved in the reality of the "possession" and criticised privately the methods employed, yet they allowed the delusion to proceed to its tragical extent without interposing their authority to prevent or at least to denounce it. Brattle, in his account of the delusion, written in October 1692, mentions many by name who agreed with him in

condemning the proceedings of the justices in Salem, and the judges of the Court of Oyer and Terminer, but looked on while the unfortunates were tormented into confession and put to death at the demand of popular frenzy.¹⁰¹

Though we talk of the progress that the race has made in learning and enlightenment, it is alarming to notice how ineradicable are the superstitions of mankind, how germs which men deem dead really lurk dormant for ages, and then develop themselves with startling rapidity when they find the proper menstruum. Man, like other animals, seems to exhibit a tendency from time to time to revert to the original type, and to reproduce the physiognomy of long-perished races, with their fears and their hatreds, their low spiritual conceptions and their dominant animal passions. It is the work of education, of civilization, and of religion to strive against this tendency. We can only hope that as men have, in spite of this, made steady progress in many directions, and have conquered and are conquering the animal that is in them, they may in time get the better of all the evil legacies which their primeval ancestors have bequeathed them. Modern science has removed the fear of the plague in all civilized countries and is lessening the danger of the cholera; in like manner, we may hope the old terrors will also in time be swept away, and man be freed from any danger of their recurrence.

NOTES.

- ⁵¹ Even Winthrop, the governor of Massachusetts, wise and good as he was, recorded in his *History* his direful forebodings occasioned by the appearance of a monstrosity which the unfortunate Mary Dyer, who was afterwards hanged as a Quaker, had brought into the world. *History of New England*, i. 261–3.
- ⁵² *Demonologie, in forme of a dialogue*, 1st Ed., Edinburgh, 1597, 4to.
- ⁵³ 1 Jac. I. c. 12.
- ⁵⁴ *State Trials*, vol. ii. pp. 786–862.
- ⁵⁵ Baxter, Richard, D. D., *The Certainty of the Worlds of Spirits*, p. 53.
- ⁵⁶ *A Tryal of Witches*, printed 1682, published with a treatise of Sir Matthew Hale's on *Sheriffs' Accompts*, London, 1683. Sir Matthew's charge was to the following effect: "That he would not repeat the Evidence unto them, least by so doing he should wrong the Evidence on the one side or on the other. Only this acquainted them, That they had Two things to enquire after. *First*, whether or no these children were bewitched? *Secondly*, whether the Prisoners at the Bar were Guilty of it. That there were such Creatures as Witches he made no doubt at all; For, *First*, the Scriptures had affirmed so much. *Secondly*, The Wisdom of all Nations had provided laws against such persons, which is an argument of their confidence in such a Crime. And such hath been the judgment of this Kingdom, as appears by that Act of Parliament which hath provided Punishments proportionable to the quality of the offense. And desired them strictly to observe their Evidence; and desired the great God of Heaven to direct their Hearts in this weighty thing they had in hand: For to condemn the

Innocent, and to let the Guilty go free, were both an abomination unto the Lord.” (pp. 55, 56.)

⁵⁷ *A Tryal of Witches*, pp. 41, 42.

⁵⁸ Winthrop, ii. 307. Stiles, *Ancient Windsor*, i. 447.

⁵⁹ Winthrop, ii. 326. Hutchinson, *Hist. of Massachusetts-Bay* (London, 1765–1768), i. 150. *Mass. Rec.*, ii. 242, iii. 126, seems to refer to this case, though no names are given.

⁶⁰ Mather, Cotton, *Late Memorable Providences*, pp. 62–65. *Magnalia*, Book vi. ch. 7.

⁶¹ W. S. Poole, in *Memorial History of Boston*, ii. 133 note. Hutchinson, ii. 10.

⁶² *Mass. Rec.*, iv. (1), 47, 48.

⁶³ *Mass. Rec.*, i. (1), 96.

⁶⁴ *Conn. Colonial Records*, i. 220; cf. *New Haven Col. Rec.*, ii. 78.

⁶⁵ *History of Hartford County (Conn.)*, *Sketch of Wethersfield*, by S. Adams.

⁶⁶ *New Haven Col. Rec.*, ii. 78. Lydia Gilbert, of Windsor, was indicted for witchcraft, March 24th, 1653–4, but there is no record of the issue of her trial. Stiles, *Ancient Windsor*, i. 449, 450.

⁶⁷ *Mass. Records*, iv. (1), 269.

⁶⁸ Hutchinson, i. 187, 188.

⁶⁹ *Conn. Col. Rec.*, i. 573. Mather, *Remarkable Providences*, 139. Walker, Geo. Leon, D. D., *History of the First Church in Hartford*. Hutchinson, ii. 16, 17.

⁷⁰ Judd, *History of Hadley*, 233. *Conn. Col. Rec.*, ii. 172. For her subsequent troubles in N. Y., *Documentary Hist. of N.Y.*, iv. 87.

⁷¹ Calef, *More Wonders of the Invisible World*. *Conn. Col. Rec.*, iii. p. v. and 76, 77 note.

⁷² Hutchinson, ii. p. 18. "But in 1685, a very circumstantial account of all or most of the cases I have mentioned was published, and many arguments were brought to convince the country that they were no delusions nor impostures, but the effects of a familiarity between the devil and such as he found fit for his instruments."

⁷³ *A Tryal of Witches*, London, 1682.

⁷⁴ Horneck, in Glanvil's *Saducismus Triumphatus*, London, 1681.

⁷⁵ It will be remembered, that much against the will of the Puritan leaders, they had been compelled by the royal authority to allow the use of the service of the Church of England, which they and their friends in England had fancied some years before that they had destroyed. For a similar instance of combined bigotry and superstition, cf. Winthrop's history of the mice and the Prayer Books. *Hist. of New England*, ii. 20.

⁷⁶ Mather, Cotton, D. D., *Late Memorable Providences*. *Magnalia Christi*, Book vi. ch. 8. Hutchinson, ii. 20.

⁷⁷ *Late Memorable Providences*, London, 1691; 2d Impression. Calef, *More Wonders of the Invisible World*, postscript.

⁷⁸ Calef, *More Wonders*, p. 90. Hutchinson, ii. 11. Upham, *The Salem Witchcraft*.

⁷⁹ Brattle, *Mass. Hist. Soc. Collections*, v. 62, 70, 71. The way in which Parris conducted the investigations may be seen from the following extracts from the examination of Elizabeth How, May 31st, 1692:

"Mercy Lewis and Mary Walcot fell in a fit quickly after the examinant came in. Mary Walcot said that this woman the examinant had pincht her & choakt this mouth. Ann Putnam said that she had hurt her three times.

What say you to this charge? Here are three that charge you with witchcraft.

If it was the last moment I was to live, God knows I am innocent of anything in this nature.

Did you not take notice that now when you lookt upon Mercy Lewis she was struck down?

I cannot help it.

You are charged here. What doe you say?

I am innocent of anything of this nature.

Is this the first time that ever you were accused?

Yes, Sir.

Do you not know that one at Ipswich hath accused you?

This is the first time that ever I heard of it.

You say that you never heard of these folks before.

Mercy Lewis at length spake and charged this woman of with hurting and pinching her.

And then Abigail Williams cryed she hath hurt me a great many times, a great while & she hath brought me the book.

Ann Putnam had a pin stuck in her hand. What do you say to this?

I cannot help it.

What consent have you given?

Mercy Warren cryed out she was prickt & great prints were seen in her arms.

Have you not seen some apparition?

No, never in all my life.

Those that have confessed they tell us they used images and pins, now tell us what you have used.

You would not have me confess that which I know not.

She lookt upon Mary Warren & said Warren violently fell down.

Look upon this maid viz: Mary Walcot, her back being towards the Examinant.

Mary Warren and Ann Putnam said they saw this woman upon her. Susan Sheldon saith this was the woman that carryed her yesterday to the Pond. Sus. Sheldon carried to the examinant in a fit & was well upon grasping her arm.

You said you never heard before of these people.

Not before the warrant was served upon me last Sabbath day.

John Indian cryed out Oh she bites & fell into a grievous fit & so carried to her in his fit, & was well upon her grasping him.

What do you say to these things? they cannot come to you.

I am not able to give account of it.

Cannot you tell what keeps them off from your body?

I cannot tell, I know not what it is.

That is strange that you should do these things & not be able to tell how.

This is a true copy of the examination of Eliz. How taken from my characters written at the time thereof.

Witness my hand

Sam. Parris.”

Woodward, *Records of Salem Witchcraft*, II., 69–94.

⁸⁰ Brattle, *ut supra*, 65, 72, 78.

⁸¹ This confession is cited from Hutchinson, *History of Massachusetts-Bay*, ii. pp. 31–33.

⁸² This was the commonly received opinion, and though opposed by Increase Mather, was much insisted on by Stoughton, the lieutenant-governor, and proved the destruction of many; as, if an innocent person could not be personated, it followed that those who were

accused by the possessed were certainly guilty. Cf. Brattle, *Mass. Hist. Soc. Collections*, vol. v. 61 ff., on spectral evidence, and the bigotry and unfairness of Stoughton. Increase Mather, *Some Cases of Conscience concerning Evil Spirits*.

⁸³ Hutchinson, ii. 49. Mather, Cotton, *Wonders of the Invisible World*, 65–70.

⁸⁴ It is interesting, though painful, to find as a prominent witness against Bishop, one Samuel Shattuck, the son of the Quaker who, thirty years before, had delivered to Endicott the order from Charles II. which had freed himself and his friends from the extremes of Puritan cruelty.

⁸⁵ Mather, Increase, D. D., *Cases of Conscience concerning Evil Spirits*, Postscript.

⁸⁶ Calef, *More Wonders of the Invisible World*.

⁸⁷ Brattle, *Mass. Hist. Soc. Collections*, v. 66, 67. The case of Elizabeth How, mentioned above, is a good example of the way in which neighborhood quarrels and church quarrels were dragged in. She had had a falling out with a family by the name of Perley some two years before, and they now came forward with depositions that she had bewitched their cows so that they gave no milk, and one of their children so that it pined away. “After this,” swears Samuel Perley, “the abovesaid goode how had a mind to ioyn to ipswich church thai being unsatisfied sent to us to bring in what we had against her and when we had declared to them what we knew thai see cause to Put a stop to her coming into the church. Within a few dais after I had a cow wel in the morning as far as we knew this cow was taken strangli runing about like a mad thing a litle while and then run into a great Pon and drowned herself and as sone as she was dead mi sons and miself towed her to the shore, and she stunk so that we had much a doe to flea her.”

The ministers of Rowley investigated the case of the Perley child, and were evidently convinced that the parents had put the idea into the child’s head, and gave plain testimony to that effect, and several

neighbors came forward with testimony to the prisoner's good character. But a fresh collection of marvels was adduced by a family of the name of Comins or Cummins who accused her of bewitching their horses, and other neighbors, not to be outdone, testified to other strange occurrences, and the court condemned her and she was executed on the sixteenth of July. She was, however, only convicted upon the evidence obtained in Parris's investigation, though the testimony of her Ipswich neighbors undoubtedly had great weight with the jury. The other trials are of much the same character, some revealing a most fiendish animosity on the part of neighbors or relatives, and leaving a very painful impression of the condition of country life in New England at that time. For testimony as to the cowardice of friends and neighbors and the confessions extorted from weak-minded persons, see letter of Francis Dane, Sen.; Woodward, *Records*, II., 66–68.

⁸⁸ Brattle, *ut supra* 68, 69.

⁸⁹ Drake, *Annals of Witchcraft*, 193.

⁹⁰ Increase Mather says: "In *December* the court sat again at *Salem* in *New England*, and cleared about 40 persons suspected for witches, and condemned three. The evidence against these was the same as formerly, so the Warrant for their Execution was sent, and the *Graves digged* for the said three, and for about five more that had been condemned at *Salem* formerly, but were Repeived by the Governour.

In the beginning of *February*, 1693, the Court sate at Charlestown, where the Judge exprest himself to this effect. *That who it was that obstructed the Execution of Justice, or hindered those good proceedings they had made, he knew not, but thereby the Kingdom of Satan was advanc'd, etc. and the Lord have mercy on this Country;* and so declined coming any more into Court. In his absence Mr. D ——— sate as Chief Judge 3 several days, in which time 5 or 6 were cleared by Proclamation, and almost as many by Trial; so that all were acquitted....

So that by the *Goodness of God* we are once more out of present danger of this Hobgoblin monster; the standing evidence used at

Salem were called, but did not appear.

There were others also at Charlestown brought upon their Tryals, who had formerly confessed themselves to be witches; but upon their Tryals deny'd it; and were all cleared; So that at present there is no *further prosecution of any.*" *A Further Account of the Tryals*, London, 1693, p. 10.

The court apparently met December 31st, and sat into January, which would account for the apparent discrepancy in regard to the time of its session.

⁹¹ The authorities were accused of great partiality in allowing, in several cases, persons accused by the afflicted to escape, when they were either related to them or their personal friends. Brattle, pp. 69, 70.

⁹² Calef, *More Wonders*, p. 144.

⁹³ Calef, p. 144. Hutchinson, ii. 61.

⁹⁴ Calef, pp. 55–64.

⁹⁵ Smith, *History of Delaware County*, 152, 153.

⁹⁶ *Documentary History of the State of New York*, iv. 85–88.

⁹⁷ Barber, *Historical Collections, Virginia*, 436–438.

⁹⁸ Hutchinson, ii. 62.

⁹⁹ Calef, p. 105. Brattle, *as above*, pp. 72, 78.

¹⁰⁰ Hutchinson, ii. 22.

¹⁰¹ Brattle, *as above*, p. 75.

III.

SIR EDMUND ANDROS.

THE casual reader of the usual American histories will receive from them an impression that Sir Edmund Andros was a merciless tyrant, whose administration was only redeemed from being utterly disastrous by its imbecility. Even Doyle in his first volume of *The English in America* describes him as a wretched "placeman," though in his later volumes he somewhat modifies this unfavorable criticism and describes him as respectable but stupid. Yet the fact remains, that the authorities in England held him sufficiently in esteem to send him to New York as lieutenant-governor under the Duke of York, and to New England as governor and captain-general of the united Dominion, which included New York and New Jersey as well as New England proper; and after a complete revolution in politics in England Andros was the man selected for the best position in the gift of the Board of Trade and Plantations, the governorship of Virginia. A man who had served the Stuarts well and faithfully, even incurring the odium which naturally attached to the agents of their unpopular measures, must have exhibited something more than dull stupidity, to recommend him to the officials of the Revolution. The career of a public servant under so many administrations must, at any rate, be of interest to all students of American history.

It is the unfortunate fate of many excellent and useful officials, that, in the performance of their duty to the state, they are obliged to render themselves personally unpopular. It may freely be admitted that the British crown was generally unfortunate in the selection of its representatives in the American colonies; but, by a strange injustice of history, many of the utterly bad ones have had their faults forgotten or condoned, while one of the most able and efficient of them all, in spite of the careful and scholarly works in which his character has been vindicated, remains pilloried in the popular histories of the American colonies as a tyrant and oppressor.

The caustic pens of the Mathers and the bitter spite of the early New England historians have drawn for us an Andros whose haughty and vindictive face rises before the mind whenever the name is mentioned. Local patriotism in Connecticut has created a series of poetical myths in regard to his administration, which tend to obscure the sober truth of history. New York has more grateful memories of the governor who secured and extended her dominion and by his wise and steady policy protected her from her most dangerous foes. Virginia is less grateful as yet, the unfortunate quarrel of Andros with the clergy sufficing to obscure the many material benefits conferred on clergy and laity alike by his wise administration. It is a curious fact, that both in Virginia and in New England Andros failed to please the ecclesiastics, different as they were; but, by those who are not prejudiced in favor of spiritual domination, this will hardly be considered as a reproach.

The true reason of the hatred of Andros in New England, and of his failure for so long to obtain justice in New York, was that he was the agent appointed to carry out the plan of uniting the scattered and discordant colonies into one strong Dominion. The separatist spirit of those who preferred their petty local privileges to the benefits of the union, that spirit which has been so dangerous to the country throughout the whole course of its history, was at that time successful, owing to the entirely disconnected circumstance that the consolidation was urged by the ministers of a king who was misgoverning his people in England. In carrying out these measures, the letter of the law seemed to the colonists to be strained to the utmost as against what they considered their popular rights, and the fate of corporations in England alarmed the similar chartered bodies in America. James II., by his foolish and wicked projects in England, discredited his really statesmanlike object in America; the union, so desirable in itself, was discredited by the methods used to effect it, and the narrow theory of colonial integrity and independence survived to plague the descendants of the men who maintained it. It is important always to discriminate between the object sought and the means used to effect it. Had the consolidation been successful, James would be looked back upon as a public benefactor, and the motto from Claudian upon the seal of the Dominion, "*Nunquam libertas gratior exstat*" which reads like a mockery, would have been as dear to a united people as the "*E pluribus unum*" which they afterwards adopted.

New England historians have always found it difficult to admit that there could be any good in a man who adhered to the fortunes of the Stuarts, or who worshipped in the church over which Laud had been primate. But the time that has elapsed since the period of struggle should have mitigated, if not utterly extinguished, the ancestral hostility of Puritan and Prelatist. Men are learning (under the influence of commemorative festivities) to revise their opinions in regard to the harshness and unloveliness of the Fathers of New England; and it is to be hoped that, before long, justice may be done to the honesty of conviction and conscientiousness of purpose that inspired those who have been so long described as “malignants.” Is it too much to hope that men will be able to see that the Englishmen who charged with Rupert, and the Englishmen who prayed and smote with Oliver, were both contending for a principle which was dearer to them than life—the principle of stern resistance to the violation of constitutional law? If we honor the men who hated the arbitrary government of the Stuarts, it is unfair to condemn those who hated the far more arbitrary government of the Rump and the Protector.

Edmund Andros was born in London, December 6, 1637, of a family that was eminent among the adherents of Charles I.¹⁰² His father, Amias Andros, was the head of the family; he possessed an estate upon the island of Guernsey, and was royal bailiff of that island. His mother was Elizabeth Stone, whose brother, Sir Robert Stone, was cup-bearer to the unfortunate Elizabeth the dispossessed Queen of Bohemia and Electress Palatine, and was also captain of a troop of horse in Holland.

At the time of Edmund’s birth, his father was marshal of ceremonies to the king;¹⁰³ and the boy was brought up in the royal household, very possibly on terms of intimacy with the young princes whom he afterwards served, who were only slightly his seniors. For a time he is said to have been a page at court; but if this be true, it must have been when he was extremely young, as court life ceased to have charms, if not absolutely to exist, after the civil war broke out in 1642, and at this time the boy was but five years old.

Faithful to the fortunes of his masters in discouragement and defeat, we find the lad in Guernsey with his father, defending Castle Cornet manfully against the Parliament, and, after its surrender, receiving his first lessons in

the field in Holland under Prince Henry of Nassau. (It is a curious fact, trifling in appearance, but possibly not without significance, that during the last year of the Commonwealth, and at the time of the restoration, Increase Mather was chaplain of some of the troops in Guernsey, and may have, even at that early date, formed the bitter prejudice that is so evident in his later actions.)¹⁰⁴ The services of the Andros family were so conspicuous in this period of trial and discouragement, that Edmund with his father and his uncle were specially exempted by name from a general pardon that was issued to the people of Guernsey by Charles II. on his restoration, on the ground that they “have, to their great honor, during the late rebellion, continued inviolably faithful to his majesty, and consequently have no need to be included in this general pardon.”¹⁰⁵

The young soldier, who found himself restored to home and safety at the age of twenty-three, had passed a stormy youth; his natural boyish loyalty had been strengthened by what he had suffered on account of it. He had seen those whom he most respected and revered dethroned and exiled, living as pensioners on the grudging bounty of inhospitable princes. He had seen the legal government of England subverted by force of arms by men whose professions of their respect for law were never louder than when they were overthrowing it, and had seen England ground down under the harsh rule of a military despotism. He had seen the orderly and regular services of the Church of England proscribed, its ministers turned out of their parishes to make room, not only for severe Presbyterians and iconoclastic Independents, but for ranting sectaries who made the name of religion a by-word and a mockery. It cannot be wondered that the young cavalier grew up deeply impressed with the horrors of rebellion and usurped authority, and with the conviction that much might be sacrificed for the sake of lawful and regular government, or that, being as he was a member of the church that had been proscribed and persecuted during the reign of the self-styled “godly,” he should have been rendered all the warmer in his attachment to her orderly and decent rights and ceremonies, as by law established.

It should be remembered that the severity shown to the Dissenters at the Restoration came largely from their close association with the civil war and the government of the Commonwealth. The cloak of religion had been made to cover the overthrow of the liberties of Parliament, the killing of the

king, and the rule of Cromwell; and it is not unnatural, though most regrettable, that the victorious cavaliers should have failed to make the proper distinction between dissent and rebellion.

A knowledge of these early conditions of the life of Andros is necessary for a comprehension of his character. They show the influences which tended to form in him his most notable characteristics: loyalty to his sovereign, a passion for regularity and legal methods in the management of affairs, and a zeal for the Church of England. The promotion of the young soldier followed quickly, as he continued to display the fidelity and capacity of which his boyhood had given promise. His uncle's position in the household of the Queen of Bohemia determined the direction of his promotion, and the nephew was made gentleman-in-ordinary in the same household in 1660, a position more honorable than remunerative, which was soon terminated by her death in 1662. His military training was developed by the war with the Dutch, in which he won further distinction and made his first acquaintance with America and American affairs.¹⁰⁶ The position he had held in the court of the exiled queen won him a wife in 1671, in the person of a young kinswoman of the Earl of Craven, who had been the devoted servant, if not the husband, of Elizabeth.¹⁰⁷ This Lord Craven was the one officer of the army who remained faithful to James II. to the last, and, though eighty years old, put himself at the head of his regiment of body-guards to defend the king from insult, when William of Orange was already in London.

The court positions held by Andros in the reign of Charles II. are not those of a brilliant young cavalier, or a roystering blade of the Restoration who only cared for place and plunder, wine and women; they indicate rather that passionate devotion to the house of Stuart, which the most worthless of that line were always able to inspire, devotion generally recompensed by gross ingratitude. His marriage was evidently, from the prominence Andros himself gives to it, a high connection for a simple country gentleman to make, but it did not have the effect of detaching him from a soldier's life; for in the same year he appears still as major of the regiment that had been in Barbadoes, and even at that time he had obtained the reputation of being well versed in American affairs.¹⁰⁸

When this regiment was disbanded, Major Andros received a new commission in a dragoon regiment that was raised at that time for Prince Rupert, in which his four companies were incorporated, the first English regiment ever armed with a bayonet.¹⁰⁹ This was the period when the proprietors of Carolina were drawing up their remarkable feudal constitution and dividing up lands and titles among themselves. Lord Craven, who was one of the proprietors, seeing the interest that Andros took in American affairs, procured him a patent conferring upon him the title and dignity of a margrave, together with four baronies containing some forty-eight thousand acres, to support the title. This gift, however, was only valuable as a token of his friend's esteem.

At his father's death in 1674, he succeeded him in his seigniorship of Sausmarez and in the office of bailiff of Guernsey.¹¹⁰ He was not, however, fated to dwell in quiet and cultivate his father's acres; for at the end of the second Dutch war, when his regiment was mustered out of service, he was selected, probably on account of his familiarity with colonial affairs, to receive the surrender of New York and its dependencies, in accordance with the treaty of peace. The territory thus recovered had been granted by Charles II., at the time of its first seizure in 1664, to his brother, the Duke of York; and Andros, who must have been personally known to them both, was now appointed lieutenant-governor of the palatine province. His commission bears date of July 1, 1674.¹¹¹ He was well fitted for the position. His residence in Holland had made him familiar with the people with whom he was chiefly to deal, and his acquaintance with American affairs stood him in good stead in matters of general policy, as his administration soon disclosed; while his connection with the court and with the royal family enabled him to act as a confidential agent of the Duke. He arrived in New York in November accompanied by his wife, and after some formalities entered upon his government. His treatment of the conquered Dutch was marked with great tact and judgment, and rarely has the transfer of a colony of one nation to the rule of another been effected with so little friction or disturbance.¹¹²

In regard to the serious problem of the treatment of the Indians he was far-sighted enough to continue the wise and judicious policy of his predecessors in regard to the powerful and dangerous confederation of the

Iroquois or Five Nations. The importance of this can hardly be over-estimated in its bearing upon the subsequent history of the country. It is true that this policy was not original with him; he took it as a legacy from the Dutch in 1674, as Nicolls had done ten years before; but it may be said that the honest and judicious administration of Indian affairs did much to save the English colonies from being wiped out of existence by a general Indian war.¹¹³ If the Iroquois had been roused to go on the war-path, as were the unfortunate Indians of New England, it is hard to see what could have saved the scattered settlements. And again, if Andros, by a tortuous and deceitful policy like that of the United Colonies towards the New England Indians, had thrown the Iroquois into the arms of the French, who were only too anxious for reconciliation with them, there is little probability that the valor of Wolfe would ever have had a chance for success on the Plains of Abraham.

As a provincial governor Andros made many enemies; but they were mainly in the colonies lying adjacent to his own. The patent of New York was very extensive, and covered territory which the neighboring colonies claimed had been already ceded to them.¹¹⁴ Connecticut had vague claims all the way to the South Sea, and had been devoting its energies during the short space of its history to edging along its frontier further and further to the westward, in spite of the indignant protests of the Dutch. Settlements had been formed on Long Island, which was undoubtedly beyond its limits. Now, the dispute was between rival colonies of the same country; and considering the uncertainty of the title of Connecticut, Andros must be allowed to have acted with propriety and moderation. He succeeded in making good the title of the Duke to Long Island and Fisher's Island, where the Connecticut authorities were attempting to exercise jurisdiction; but the boundary line upon the mainland remained an unsettled question even down to our own times. At Saybrook, Andros did his duty in asserting formally his principal's claim, but was wise enough not to press a question which would have caused great difficulties between the Colonies.¹¹⁵

With the New Jersey settlers he had still more difficulty, as they had various grants and patents from the Duke himself to plead for their justification; but he pursued a straightforward course, standing up, as he was bound to do, for the rights of his principal, unless they could be legally

shown to have been granted away. His passion for regular and orderly business methods soon manifested itself, and his letters reveal the indignation of a man of affairs at the utterly unbusiness-like ways of the people with whom he had to do.¹¹⁶

Besides his commission as Governor of New York, he had undoubtedly private instructions as to how he should comport himself towards his uneasy neighbors, the New England colonies. He was anxious to keep on good terms with Connecticut, as New York was largely dependent upon that colony for provisions; and his letters to the Connecticut authorities are mostly of a friendly character, though written in a tone of superiority which undoubtedly gave serious offence. On hearing that the people of Hartford were harboring one of the regicides, he addressed a very sharp letter to the colonial authorities, to which they replied in a tone of injured innocence, which is quite edifying, asking him for the names of those who had so maligned their loyalty.¹¹⁷

It was impossible for the Connecticut Republicans to realize the profound horror which the execution of Charles had caused, and the depth of the feeling of hatred and repugnance which the perpetrators of that audacious act had inspired. Even after William and Mary were on the throne, and James II. was an exile, it was found that a regicide, of the character and position of Ludlow, dared not show himself in England; and during the Restoration period the feeling was intense. The act was regarded by the majority of Englishmen as sacrilege, as well as murder, for it had destroyed not only what was called the sacred majesty of the king, but the sacred majesty of the legal government. To Andros the news that Goffe and Whalley were escaping justice by the connivance of the authorities was horrible, and must have suggested doubts, if he had not found them already, of the policy of allowing men who would have been excluded from all office in England to rule the king's colonies in America.

A more serious difficulty arose with Massachusetts, whose authorities had ventured to send commissioners to the Mohawks to treat directly with them as an independent nation—an act at utter variance with the policy of the Dutch and English, who regarded them as under their authority, and which, therefore, was liable to plunge the colony in war.¹¹⁸ The ostentatious assumption of independence by the colony of Massachusetts, its claim to be

free from the laws of England, and the spirit displayed by many of its leaders, which must have seemed seditious to the legal mind of Andros, made it necessary for him to watch very carefully any affairs in which they were concerned. His attitude brought upon him the hostility of the colony, and its authorities asserted, and constantly reiterated, the charge that it was at Albany, by his connivance, that Philip's Indians had procured supplies of arms.¹¹⁹

This charge, naturally, was most offensive to the loyal spirit of Andros, who had fretted a good deal under his forced inactivity in the war; and he repeatedly denied it, challenging his accusers for proof of their assertions, proof which they were absolutely unable to supply. They continued, however, to insinuate this malicious statement, and it was long believed by the people of Massachusetts, and led undoubtedly to much of the hostility between them and Andros during his subsequent rule in New England.¹²⁰ In spite of their aspersions, he continued steadily in his prudent policy, keeping the Mohawks quiet on one side, and, by vigorous measures against the Indians in Maine, protecting his personal enemies from inroads upon the other.¹²¹ His government of New York was successful; the country remained in peace; its quiet contrasted strongly with the troubles in New England, and the revenues of the colony were honestly collected and wisely administered. To those who hold the commonly received opinion of Andros, it will seem strange to find that he urged upon the Duke of York the desirability of allowing the colonists the privileges of a representative assembly.¹²² In November 1677, he returned to England on a leave of absence, remaining there until May of the following year.

While in England he received the honor of knighthood, a sign that his labors were appreciated, and gave, in the form of answers to the inquiries of the Committee for Trade and Plantations, statements in regard to American affairs which are of great value as exhibiting the condition of the colonies, and especially of New York, at that time. His replies about New England are such as we might expect from a man of his character and position, and disclose no hostility.

He says: "The acts of trade and navigacon are sayed, & is generally beleaved, not to be observed in ye Collonyes as they ought"—a statement which is certainly moderate if not grammatical; and also: "I doe not find but

the generality of the Magistrates and people are well affected to ye king and kingdome, but most, knowing noe governmt then their owne, think it best, and are wedded and oppiniated for it. And ye magistrates & others in place, chosen by the people, think that they are obliged to assert & maintain sd Government all they cann, and are Church members, and like so to be, chosen, and to continue without any considerable alteracon and change there, and depend upon the people to justifie them in their actings.” For a description of a puritan republic by a royalist and churchman, this is remarkably fair and correct.¹²³

The last two years of his government in New York were vexed with difficulties with some of the English merchants of the province, who were probably pinched by Andros’s strict and methodical, and possibly also narrow and literal, administration of the revenue laws. He was openly accused by them, and by other discontented parties, to the Duke of York as dishonest in his management of the revenue, and was summoned home to answer to the charges. A special commissioner, who was absurdly incompetent for the position, was sent to investigate the accounts, and he took the side of the merchants in his report.¹²⁴ Andros, however, was able to answer satisfactorily every charge against him, and boldly demanded a thorough examination of all his acts as governor. He was examined before Churchill and Jeffreys, neither of whom would have been likely at that time to have let any one go free who had defrauded the Duke, and they reported that Andros “had not misbehaved himself, or broken the trust reposed in him by his royal highness in the administration of his government, nor doth it appear that he hath anyway defrauded or mismanaged his revenue.”¹²⁵

Though completely exonerated, he was not at this time reinstated in the governorship, and the next five years of his life were passed in England at court, where he obtained an honorable position in the household, and in his estates in Guernsey, to which in 1684 the island of Alderney was added by royal grant at a rent of thirteen shillings.¹²⁶ In 1685 he received a military command once more, and served in the campaign in the west of England against Monmouth; and the silence of the enemies in regard to any acts of cruelty at this time is a high tribute, for, if they had known of any, they would undoubtedly have held him up for abhorrence as a persecutor.¹²⁷

Later in the year he was made lieutenant-colonel of the Princess Anne of Denmark's regiment of horse, under the command of the Earl of Scarsdale.

The accession of James, under whom he had acted previously, made it likely that Andros would again receive employment. In spite of the fact that he was a devoted adherent of the Church of England, the king, who was attempting to restore the Roman worship, gave him his full confidence, and entrusted him with the work of carrying out a project which had been for some time before the minds of the colonial authorities in England—the consolidation of New England into a single province. This was no new idea of James II., but had been discussed for several years; and it was a plan that had much to recommend it.

As early as 1678, the Lords of Trade and Plantations had been brought to see the need of a general governor and a fit judicature in the colonies, for the determining of differences; and in 1681 Culpepper had urged the project. A preliminary measure had been adopted of appointing a general revenue officer for all the American colonies, with the power of selecting his own subordinates.¹²⁸ The notorious Randolph, a man of strict honesty and probity of life, but unable to see more than his own side of any question, was appointed deputy surveyor-general over the New England colonies, and devoted his energies to obtaining the forfeiture of the patent of Massachusetts. The astuteness and bribery of the Massachusetts agents were able to defer the evil day until the autumn of 1684, when the charter was vacated.¹²⁹ This left Massachusetts in the hands of the crown; the next problem was to obtain the vacating of the more regular charters of Connecticut and Rhode Island. Writs of *quo warranto* were issued, and sent to the colonies respectively; and the submission of Rhode Island, after some decent protests, was obtained.¹³⁰

Andros was chosen by the king for the important post of governor-general, not, as Palfrey insinuates, because he was peculiarly disagreeable to Massachusetts, and so likely to carry out the objects of the king; but because the king knew him personally, and knew him to be a man of capacity and integrity. It is absurd to suppose that James, who was an experienced man of business himself, and more familiar with colonial affairs than any king of England before or since, would have intentionally selected a man for the purpose who would endanger the success of the

undertaking. Colonel Kirke, who had been actually designated as governor, had been withdrawn as disagreeable to New England. It is unnecessary here to enter into any arguments to show the advantage that would have accrued to the colonies if this judicious plan had been successful. New England might have been spared much wasteful legislation and ruinous financial experiments, and would have been joined together in one strong province, instead of being composed of several weak and jealous colonies; the union, the benefits of which it took the colonists so long to learn, would have been facilitated; and a strong and united front would have been presented to the French, who were beginning now to threaten the existence of the English colonies. The Stuarts, it is true, were pensioners and allies of the King of France in Europe, but in America they were his natural and inevitable enemies; and James, who, unlike his brother, felt deeply the shame of his vassalage to the French, was anxious to prevent any extension of French power in America.

Andros arrived in Boston in December 1686, and was received in a most loyal and even enthusiastic manner.¹³¹ A large portion of the Massachusetts people had grown weary of the rule of the oligarchy, and Andros was welcomed as bringing with him the protection of English law. His government had been constituted in detail in his commission, and he at once proceeded to organize it and to levy the taxes necessary for its support. Deprived of the representative assembly in which the semblance of free government had been preserved, one of the towns attempted to resist the tax. The leaders of the movement were tried fairly and legally, and were fined and imprisoned for their attempt at resistance.¹³² After this no attempts were made to dispute the laws of the new government, until the revolution which overthrew all legal authority in the colony broke out in 1689.

It was very important for Andros that the submission of Connecticut should be obtained without conflict, as Massachusetts, like New York, was largely dependent upon the neighboring colony for food. The Connecticut authorities fenced and parried, interposed delays, and showed themselves, as they always did, clever men of business, exhibiting qualities that doubtless raised Governor Treat and Secretary Allyn in Governor Andros's estimation. Finally, however, when further resistance was dangerous, a letter was sent which could be construed either as a surrender or as not a

surrender, so that they might have a safe retreat in any case; and on the strength of this letter Andros assumed the government.¹³³ The period that follows is sometimes described as the “usurpation,” but there is nothing in the history of the times to give one the impression that the government of Andros in Connecticut was not as regular and legal a government as the colony ever had. If Andros had not been overthrown in Massachusetts by a carefully-prepared rebellion, which left the colonies without a governor, it is not likely that either Connecticut or Rhode Island would have ventured to resume its charter. Andros came to Connecticut in October 1687, travelling by way of Providence and New London, and from New London across country through what are now Salem, Colchester, and Glastonbury, to the Rocky Hill ferry. He was attended by a “company of gentlemen and grenadiers to the number of sixty or upwards,” and was met at the ferry by a troop of horse “which conducted him honorably from the ferry through Waterfield (Wethersfield) up to Hartford.”¹³⁴ Of the transactions at Hartford we have the dramatic story of local tradition, the only proof of which was the existence of an oak tree said to have been the receptacle of the charter. For this romantic story there is absolutely no contemporary authority, and the details are very improbable. The charter very possibly may have been concealed, and very possibly in the Charter Oak, but the incidents of the familiar story are, if known, not mentioned by any writers of the time.¹³⁵ The records of the colony contain simply the formal but expressive entry: “His Excellency, Sr Edmund Andross, Knt., Capt. General & Govr of his Maties Territorie and Dominion in New England, by order from his Matie James the second, King of England, Scotland, France & Ireland, the 31 of October, 1687, took into his hands the government of this colony of Conecticott, it being by his Matie annexed to Massachusetts & other colonys under his Excelencies Government. FINIS.”¹³⁶

Bulkeley, in the “*Will and Doom*,” relates that Andros was met at Hartford by the trained bands of divers towns who united to pay him their respects.

“Being arrived at Hartford,” he continues, “he is greeted and caressed by the Govr and assistants, and some say, though I will not confidently assert it, that the Govr and one of his assistants did declare

to him the vote of the Genl Court for their submission to him. However, after some treaty between his Excellency and them that evening, he was, the next morning, waited on and conducted by the Govr, Deputy Govr, Assistants and Deputies, to the Court Chamber, and by the Govr himself directed to the Govr's seat, and being there seated (the late Govr, Assistants and Deputys being present & the Chamber thronged as full of people as it was capable of), His Excellency declared that his Majesty had, *according to their desire*, given him a commission to come and take on him the government of Connecticut, and caused his commission to be publicly read. That being done, his Excellency showed that it was his Majesty's pleasure to make the late Govr and Captain John Allyn members of his council, and called upon them to take their oaths, which they did forthwith, and all this in that public and great assembly, *nemine contradicente*, and only one man said that they first desired that they might continue as they were."

"After this his Excellency proceeded to erect courts of Judicature, and constituted the said John Allyn, Esq. & Judge of the inferiour Court of Common Pleas for the county of Hartford, and all others who before had been assistants, & dwelling in the same County, he now made Justices of the Peace for the said County.

"From hence his Excellency passed through all the rest of the countys of N. Haven, N. London and Fairfield, settling the Government, was everywhere chearfully and gratefully received, and erected the King's Courts as aforesaid, wherein those who were before in the office of Govr, Deputy Govr and Assistants were made Judges of the Pleas, or Justices of the Peace, not one excepted nor (finally) excepting, but accepting the same, some few others being by his Excellency added to them in the several Countys, not without, but by & with their own advice and approbation, and all sworn by the oaths (of allegiance and) of their respective offices, to do equal justice to rich and poor, after the Laws & Customs of the Realm of England, and of this his Majesty's dominion."

"The Secretary, who was well acquainted with all the transactions of the General Court, and very well understood their meaning and intent in all, delivered their common seal to Sir E. A."¹³⁷

Connecticut under Andros passed a period of peace and quiet. Governor Treat and secretary Allyn were made members of the council and judges, besides being entrusted with military commands, and everything went on quietly. There was an evident disposition to favor Connecticut, and every reason why it should be favored. We hear of no complaint against the government or the laws. The worst hardship recorded is the settling of intestate property according to English law, instead of the customs of the colony. It is true that town meetings were forbidden except once a year, but there were frequent sessions of the courts held, so that the citizens were not deprived of all the common interests of their lives. With Allyn the governor was on most friendly terms, modifying several regulations at his suggestions, and entrusting him largely with the management of Connecticut affairs.¹³⁸ To make a proper catalogue of miseries, the Connecticut historian, Trumbull, is obliged to borrow and relate doleful stories from Massachusetts, not asserting that they happened in Connecticut, but certainly producing that impression.¹³⁹

There were many reasons why Connecticut did not resent the government of Andros as much as was the case in Massachusetts. In the first place, Connecticut had had a lawful government and a law-abiding people; its charter had not been taken away as a punishment, but as a political necessity; while Massachusetts had been fighting for a system of more than questionable legality, and in a spirit which might well seem to the royal officials to be seditious. Connecticut had enjoyed a form of government in which the people had really controlled public affairs; in Massachusetts the government had been in the hands of an oligarchy, who resented most bitterly their deposition from power as robbing them of their peculiar privileges. In Connecticut the ecclesiastical system at this time was judicious and moderate; the radical tendencies of the New Haven colony had been held in check by the wiser policy of Hartford. Persecution had never been a feature of Connecticut religion, and its history is not disgraced with the accounts of frequent religious quarrels, excommunications, and expulsions which are so familiar to that of the neighboring colony. In Massachusetts Andros found himself opposed and thwarted in every way that the angry leaders could devise; in Connecticut, though men were attached to their self-government and resented its loss, he was received with respect and consideration. One is led to suspect that, with all their pride in

their charter and love of their liberties, the leading men of Connecticut were shrewd enough to see the advantages that they received from the new arrangement. They saw the arrogance of their old rivals of the “Bay Colony” humiliated; they had the pleasure of seeing Hampshire county compelled to come to Hartford to court, and they felt themselves favored and trusted by the governor. Besides all these considerations, from the situation of Connecticut, lying as it did between Massachusetts and New York, it was much to Andros’s interest that he should keep the colony well disposed, and he took some trouble to do so.

And, after all, what do the charges of tyranny and misgovernment amount to, even in Massachusetts? The real *gravamen* of all the charges is, that the charter had been taken away, and the people of Massachusetts did not enjoy those laws of England which they had always claimed as their birthright. The personal charges against Andros were so frivolous that the colonial agents did not dare to put their hands to them when the case was brought to trial in England, and, by their failure to appear, confessed that they were false and malicious. It is not likely that Andros was always conciliatory. That a population of dissenting Whigs should put difficulties in the way of public service of the Church of England, as by law established, must have been to Andros unendurable, and it is absurd to represent his use of a meeting-house in Boston for the religious services of the national church as an instance of malignant despotism.¹⁴⁰ It is far from improbable that Andros was compelled against his will to be as civil as he was to the American non-conformists, because his master was trafficking with them in England. While Increase Mather was intriguing with the king and receiving friendly messages from Father Petre, and while men like Alsop and Rosewell and Penn were basking in the favors of the court at Whitehall, a governor of New England, even if he had wished, could not venture upon any acts of oppression in America.¹⁴¹ In fact, Andros’s actions in insisting on the services of the English Church in Boston may be considered among the most creditable in his history, and exhibit the character of the man. He risked offending the king, and did offend the puritans, in order to show respect to that historic church of his nation, which king and puritan alike desired to overthrow.

It is quite probable that Andros was at times rough in his language. Without justifying him in this, it may be pleaded that it certainly was not an

uncommon fault of military men; and besides, there were a good many things that must have made the use of strong language a relief. He did not have a very high appreciation of Indian deeds; but few honest men to-day, legal or lay, would differ from him. He reviled the palladium of New England liberties, the towns; but perhaps in this he was in advance of his age. He reorganized the court system, established tables of fees, and changed the method of proving wills; but here the blame is not his; but if any one's, it should lie upon the king who established the province, or the council who passed the laws. The truth seems to be that Andros was shocked and scandalized at the loose, happy-go-lucky way of doing business that had, up to this time, served the colonies; and he labored in New England, as he had in New York, and as he afterwards did in Virginia, to give his province a good, efficient, general system of administration. What made it objectionable to the colonies was not that it was bad, but that it was different from what they had had. The man who does his arithmetic upon his fingers would count it a hardship if he were compelled to use the much more convenient processes known to better educated men. The case was the same in New England. They did not want to be improved; they had no desire for any more efficient or regular administration than they were accustomed to. They preferred managing their own affairs badly to having them done for them, were it ever so well. It is not difficult for us to appreciate their discontent.

It is harder for us to put ourselves in Andros's place, and to feel with him the disgust of an experienced and orderly administrator at the loose and slipshod methods that he saw everywhere; the indignation of the loyal servant of the king at hardly concealed disloyalty and sedition; the resentment of a devoted member of the national Church of England at the insults heaped upon it by the men who had failed in their previous attempt to destroy it.

Andros failed to conciliate Massachusetts. An angel from heaven bearing King James's commission would have failed. A rebellion against his power was carefully prepared, doubtless in concert with the Whig leaders in England; and when the news of the English Revolution came, Massachusetts broke out also, arrested the governor, destroyed the government, and set up an irregular government of its own.¹⁴² The object of this revolution was evidently to overthrow the Dominion of New England,

and to resume separate colonial independence before the new English authorities had time to communicate with Andros. There is no reason to think that Andros would have tried to hold the country for James. Respect for the law was, with him, the reason for his loyalty to the crown; and though he was personally attached to the Stuarts and had acted under James for many years, he was governor of the Dominion, not for James Stuart, but for the king of England.

The popular leaders were indeed afraid, not that Andros would oppose the revolution in England, but that he would accept it, and be confirmed by William and Mary in the same position he had held under James, and that thus the hated union of the colonies would be perpetuated. Their revolution was only too successful. They had their own way, and the events in Salem in 1692 were a commentary on the benefits of colonial autonomy.

In Rhode Island and Connecticut the old charters were reassumed. In Connecticut, as there had been little break when Andros came, so now there was little trouble when he departed. Secretary Allyn had managed the affairs of the colony before the “usurpation”; Secretary Allyn had been the chief intermediary between Andros and the people; Secretary Allyn continued to manage Connecticut affairs after Andros had gone. The particularists succeeded in getting possession of the government, in spite of the opposition of a strong minority, and Connecticut, like Massachusetts, returned to her insignificant but precious independence.¹⁴³

Andros succeeded in escaping once, but was arrested in Rhode Island, and returned by the magistrates there to the revolutionary leaders in Boston. By these he was kept in prison for nearly a year, and then sent to England, where, as has been said, no one appeared against him.¹⁴⁴ Hutchinson complains that the Massachusetts agents were misled by their counsel, Sir John Somers. When one considers that Somers was one of the greatest lawyers the bar of England has ever known, one is inclined to believe that he knew his clients’ case was too bad to take into court.¹⁴⁵

The government of William and Mary found nothing to condemn in Andros’s conduct, and showed their appreciation of his services by sending him out, in 1692, as governor of Virginia, adjoining to the office at the same time the governorship of Maryland.¹⁴⁶

He exhibited here the same qualities that had characterized his government in New York and New England; intelligent aptitude for business, love of regularity and order, zeal for honest administration, and consequently some degree of severity upon offenders against the navigation laws who were often men of good birth and position, and last, though not least, a great dislike of the interference of meddling ecclesiastics with matters of state. He reduced the records of the province to order, finding that they had been seriously neglected; and when the State House was burned, he provided a building for them, and had them again carefully sorted and registered. He encouraged the introduction of manufactures and the planting of cotton, and established a legal size for the tobacco cask, an act which protected the merchants from arbitrary plundering by custom house officials in England, but which was used by his enemies to form the basis of an accusation of defrauding the revenue. He was on the best of terms with the prominent men of the Dominion, and he left behind him a pleasant memory in Virginia among the laity, and among those of the clergy who were not under the influence of Commissary Blair. The quarrel with Blair was an unfortunate one, for, though meddlesome and dogmatic, he was working for the higher interests of the colony; but the evidence he himself supplies of the temper of his proceedings explains Sir Edmund's antipathy.

He was recalled to England in 1698, and was worsted in his contest with Blair, having been unfortunate enough to bring upon himself the resentment of the Bishop of London. The record of the trial is preserved at Lambeth, and has been printed in this country, and a perusal of it will convince most readers that Sir Edmund received very hard usage, and might have complained, in the words of the lawyer who was defeated in a contest with Laud, that he had been "choked by a pair of lawn-sleeves."¹⁴⁷

The rest of his life was passed at home. The government still showed their confidence in him by appointing him the Governor of Guernsey.¹⁴⁸ He lived quietly, passing a peaceful old age, and died in February, 1714 at the age of seventy-six. His continued interest in the welfare of the colonies, in the service of which he had passed so many years, is evidenced by the fact that his name appears among the members of the Society for the Propagation of the Gospel in Foreign Parts.¹⁴⁹

Removed from the prejudices of his own day and generation, and regarded in the impartial light of history, Sir Edmund Andros appears not as the cruel persecutor that he seemed to the Mathers and the Sewalls, nor as the envious Sanballat that Blair's fervent Scotch imagination pictured him, but as a single-hearted, loyal English gentleman, of the best type of those cavaliers, devoted to church and king, who, in their horror at the results of puritanism and liberalism in England, were willing to sacrifice if necessary some degree of personal liberty in order to secure the dominion of law.¹⁵⁰

Judging from what we know of him, we should have looked to see him, had he been in England instead of in America at the time of the Revolution, by the side of many fellow Tories maintaining the liberties and the religion of his country. In America, far from the scene of conflict, his duty was to support the government of the king; but the claim of the colonists that, by arresting him, they prevented him from "making an Ireland of America," is disproved by his immediate and loyal acceptance of the results of the Revolution, and by the confidence the new government immediately reposed in him.¹⁵¹

The French authorities in Canada, who were in a position to judge his character correctly, have left on record their opinion that it was hopeless to expect assistance from him against his countrymen in the struggle between the two nations that broke out after the abdication of James II. The Chevalier de Callières, Governor of Montreal, wrote to the Marquis de Seignelay as follows:

"Chevalier Andros, now Governor-General of New England and New York, having already declared in his letter to M. de Denonville that he took all the Iroquois under his protection as subjects of the crown of England, and having prevented them returning to M. de Denonville to make peace with us, there is no longer reason to hope for its conclusion through the English, nor for the alienation of the Iroquois from the close union which exist with those (the English), in consequence of the great advantage they derive from thence, the like to which we cannot offer for divers reasons.

"Chevalier Andros is a Protestant as well as the whole English colony, so that there is no reason to hope that he will remain faithful to

the King of England (James II.), and we must expect that he will not only urge the Iroquois to continue the war against us, but that he will also add Englishmen to them to lead them and seize the posts of Niagara, Michillimackinac and others proper to render him master of all the Indians, our allies, according to the project they have long since formed, and which they were beginning to execute when we declared war against the Iroquois, and when we captured seventy Englishmen who were going to take possession of Michillimackinac, one of the most important posts of Canada.”¹⁵¹

It is gratifying to notice that at last his character and services are beginning to be better appreciated in the provinces over which he ruled; and we may hope that in time the Andros of partisan history will give place, even in the popular narratives of colonial affairs, to the Andros that really existed, stern and proud and uncompromising, it is true, but honest, upright, and just; a loyal servant of the crown, and a friend to the best interests of the people whom he governed.

NOTES.

¹⁰² The principal authority for the facts of Andros's life before he became governor of the Duke of York's province is a biographical sketch in the *History of Guernsey*, by Jonathan Duncan, Esq., London, 1841, written by the late Mr. Thomas Andros of Guernsey, who died in 1853. This sketch was copied in *N. Y. Colonial Documents*, ii. 740, and has been used by W. H. Whitmore in his memoir of Sir Edmund Andros, in the first volume of *The Andros Tracts*. Mr. Whitmore has added to the sketch some few additional facts collected from a pedigree at the Heralds' Office and from private family papers. His memoir is the most convenient, as it is the fullest and most accurate, life of Andros that has appeared. The *History of Guernsey*, by Ferdinand Brock Tupper, contains a few additional facts in regard to him, but of trifling importance. *Vide* pp. 367, 377, 392. See also *Chronicles of Castle Cornet* by the same author.

¹⁰³ Duncan, *History of Guernsey*, p. 89.

¹⁰⁴ *Memoir of the Life of the late Reverend Increase Mather, D. D.*, London, 1725, pp. 10–12.

¹⁰⁵ Whitmore, *Andros Tracts*, I. ix. Duncan, p. 106.

¹⁰⁶ Pedigree, in *Andros Tracts*, I. vi. Duncan, p. 588. From *Calendar of State Papers, Am. and W. Indies*, we learn that Andros saw service in the West Indies, being major in a regiment of foot, commanded by Sir Tobias Bridge, which left England in March, 1667, and arrived in Barbadoes in April. He returned to England in 1668, as bearer of despatches and letters to the government, and was in England in September of that year. Whether he returned to Barbadoes is not evident, but he was in England in Jan., 1671, and throughout the year. The regiment was disbanded and four companies sent to England,

arriving there Oct. 5, 1671, and were incorporated in the new dragoon regiment being raised for Prince Rupert, to which Andros received his commission Sept. 14, 1671. This chronology is irreconcilable with that given in the pedigree or by Duncan.

¹⁰⁷ For relations of Lord Craven and Elizabeth, see Miss Benger's *Memoir of the Queen of Bohemia*.

¹⁰⁸ Duncan, p. 588. *Calendar of State Papers, America and the West Indies* (1661–1668), 1427, 1436, 1439, 1476, 1760, 1761, 1762, 1824, 1839, (1669–1674), 394, 545.

¹⁰⁹ Duncan, pp. 588–89. *America and W. Indies* (1669–1674), 554, 559, 625, 639, 791. Mackinnon, *Origin and Services of the Coldstream Guards*, i. 185.

¹¹⁰ Tupper, *History of Guernsey*, 2d Ed., London, 1876. He says (p. 392): “Edmund Andros had succeeded his father as bailiff (*bailli*) in 1674, with power to nominate a lieutenant during his long non-residence; he was also a colonel of dragoons, and after his return from his successive North American governments, he was constituted lieutenant-governor of Guernsey by Queen Anne, who dispensed with his executing the office of bailiff and accepted Eleazar Le Marchant as lieutenant-bailiff.” Apparently he had some trouble at first from the governor of the island, Christopher, Lord Hatton, for we find (p. 377) a royal order sustaining Andros, and forbidding Lord Hatton to disturb him in the office of bailiff.

¹¹¹ *N. Y. Col. Doc.*, iii. 215. The boundaries stated in this Commission are as follows: “All that part of ye Maine Land of New England beginning at a certaine place called or knowne by ye name of St. Croix next adjoyneing to new Scotland in America and from thence along ye sea Coast unto a certaine place called Pemaquin or Pemaquid and soe up the River thereof to ye furthest head of the same, as it tendeth northwards and extending from thence to the River Kinebequi and soe upwards by ye shortest course to ye river Canada northwards. And also all that Island or Islands comonly called or knowne by ye several names of Matowacks or Long Island

scituate lying and being towards ye West of Cape Codd and ye Narrow Higansetts abutting upon ye maine land betweene ye two rivers there called or knowne by ye severall names of Conecticut and Hudsons River together also with ye said river called Hudsons River and all ye land from ye West side of Conecticut River to ye East side of Delaware Bay, and also all those severall Islands called or knowne by ye name of Martine mynyards and Nantukes otherwise Nantukett, together with all the lands islands soiles rivers harbours mines mineralls quarryes woods marshes waters lakes fishings hawking hunting and fowling and all royalties and profitts comôdities and hereditaments to the said several islands lands and premisses, belonging and apperteyning with their and every of their appurtenancies.”

¹¹² For Andros’s own account of the first three years of his administration, see *N. Y. Col. Doc.*, iii. 254–257. For the surrender of New York, *Documentary History of New York*, iii. 43; Andros’s report on state of the province, i. 60.

¹¹³ That this was recognized by men qualified to judge, *vide* letter from Lieutenant-Colonel Talcott to Andros, *Connecticut Colonial Records* (1678–89), p. 399; *vide* also *Doc. Hist. N. Y.*, i. 99; *Conn. Col. Rec.* (1665–78), pp. 397, 404, 461, 492. For Andros’s own official report of the assistance he rendered New England in Philips’s war, see *N. Y. Col. Doc.*, iii. 264, 265. For remarks upon the contrasted Indian policies, see Brodhead, *Hist. New York*, ii. 281–290.

¹¹⁴ *Conn. Col. Rec.* (1678–89), p. 283. *N. Y. Col. Doc.*, iii. 236.

¹¹⁵ *Conn. Col. Rec.* (1665–78), pp. 260, 334, 335, 339–43, 578–86. *N. Y. Col. Doc.*, iii. 254.

Governor Dongan’s jealousy of Andros makes his statement of Andros’s intentions ten years before questionable authority, especially when it is remembered that at the time he made the statement he was busily engaged in trying to persuade the people of Connecticut to ask to be annexed to New York, rather than to Massachusetts under Andros. Under these circumstances, one cannot help suspecting his testimony as to memoranda left behind by

Andros, who was one of the most cautious and methodical of men. *N. Y. Col. Doc.*, iii. 415. If Andros intended to surprise the post, he certainly was very ill-judged to send notice of his claim beforehand. For the best account of these proceedings, see Brodhead, *Hist. of N. Y.*, ii. 284–286.

¹¹⁶ Brodhead, *Hist. of New York*, ii. 303–306. *New Jersey Archives*, i. 156–347.

¹¹⁷ *Conn. Col. Records* (1678–89), 283–285.

¹¹⁸ *Mass. Rec.*, iv. (2), 359–361. Brodhead, *History of New York*, ii. 127.

¹¹⁹ *N. Y. Col. Doc.*, iii. 257 ff.

¹²⁰ *N. Y. Col. Doc.*, iii. 254, 258, 259, 266, 267. See also Randolph's report in the same vol. 242. Hutchinson, *Coll.*, 476, 490. Brodhead, ii. 290. Mather's *Brief History of the War*, 117, 129, 254.

¹²¹ *N. Y. Col. Doc.*, iii. 264, 265.

¹²² *N. Y. Col. Doc.*, iii. 235, 256.

¹²³ *N. Y. Col. Doc.*, iii. 260–265.

¹²⁴ *N. Y. Col. Doc.*, 279–284, 302–308. For Andros's answer, 308–313.

¹²⁵ *N. Y. Col. Doc.*, iii. 314–316.

¹²⁶ Duncan, 589. *N. Y. Col. Doc.*, ii. 741. Hutchinson, *Coll.*, 542.

¹²⁷ Whitmore, *Andros Tracts*, I. xlix., Note D. "In an old pedigree written about A. D. 1687 by Charles Andros uncle of the governor, and still preserved in the family, we find:

‘The 13th April 1683, the King, Charles II. gave the charge of Gentleman in ordinary of his privy chamber’ to Sir Edmund, and ‘the 6th day of the month of June 1685, the King, James II. gave a Commission to the above Sir Edmund Andros to command a troop of Cavalry to go against the rebels in England.’ This refers of course to

Monmouth's Rebellion. 'In August, 1685, he was made Lieut.-Colonel of Lord Scarsdale's cavalry.'"

¹²⁸ Palfrey, *Hist. of New England*, iii. 319, 334. In 1678, Andros had written Blathwayt that there would be danger of Indian difficulties, "so long as each petty colony hath or assumes absolute power of peace and war, which cannot be managed by such popular governments as was evident in the late Indian wars in New England." *N. Y. Col. Doc.*, iii. 271. Earlier still, Gov. Winslow of Plymouth had told Randolph that New England could never flourish until its several colonies were placed under his Majesty's immediate government (Hutchinson, *Coll.*, p. 509), and Randolph had urged the matter upon the council in his celebrated report. Hutch., *Coll.*, 477–503.

¹²⁹ *Mass. Hist. Soc. Coll.*, 4th Series, vol. ii.

¹³⁰ *Rhode Island Col. Records*, iii. 175–197. Chalmers, *Political Annals*, 278.

¹³¹ Whitmore, I. xxvii. *Cambridge Almanac*, 1687.

¹³² Whitmore, I. xxvii. Goldwin Smith, in his recent work on *The United States*, seems to suppose that this occurred in New Hampshire.

¹³³ *Conn. Col. Records* (1678–89), 376–378.

¹³⁴ *Conn. Col. Records* (1678–89), 389.

¹³⁵ Chalmers, *Political Annals*, 297, 298. *General History of Connecticut*, by a Gentleman of the Province (Rev. S. Peters, D. D.), London, 1781.

Peters's account is as follows: "They resigned it (the charter) in *propria forma*, into the hands of Sir Edmund Andros at Hertford, in October, 1687, and were annexed to the Mass. Bay colony, in preference to New York, according to royal promise and their own petition. But the very night of the surrender of it, Samuel Wadsworth of Hertford, with the assistance of a mob, violently broke into the apartments of Sir Edmund, regained, carried off and hid the charter in the hollow of an elm, and in 1689, news arriving of an insurrection

and overthrow of Andros at Boston, Robert Treat, who had been elected in 1687, was declared by the mob still to be Governor of Connecticut. He daringly summoned his old Assembly, who being convened, voted the charter to be valid in law, and that it could not be vacated by any power, without the consent of the General Assembly. They then voted, that Samuel Wadsworth should bring forth the charter; which he did in a solemn procession, attended by the High Sheriff, and delivered it to the Governor. The General Assembly voted their thanks to Wadsworth, and twenty shillings as a reward for stealing and hiding their charter in an elm.”

¹³⁶ *Conn. Col. Rec.* (1678–89), 248.

¹³⁷ Bulkeley, Gershom, *Will and Doom*, in *Conn. Col. Rec.* (1678–89), 390, 391.

¹³⁸ *Conn. Col. Rec.* (1678–89), 393 note, 404 note.

¹³⁹ Trumbull, *History of Connecticut*, i. 371–375.

¹⁴⁰ For Andros’s own account of the transaction, see *N. Y. Col. Doc.*, iii. 722–726. *Andros Tracts*, iii. 20, 21. *R. I. Col. Rec.*, iii. 281.

¹⁴¹ It is interesting to notice in this regard, that the chief complaint Increase Mather made against Andros, in his interview with James II., was that he did not sufficiently observe the king’s Declaration of Indulgence. Mather, Cotton, D. D., *Life of Increase Mather*, p. 41, London 1725. *Parentator*, pp. 109–116 (reprinted in part in *Andros Tracts*, iii. 121–187). Cf. Randolph’s account in *N. Y. Col. Doc.*, iii. 578; also, Chalmers, *Pol. Annals*, 426.

¹⁴² Whitmore. *Andros Tracts*, i. 1–10. Hutchinson, i. 374–377. *N. Y. Col. Doc.*, iii. 722, 726. Palfrey, *History of New England*, iii. ch. xiv., xv. That the revolution was carefully prepared and planned, see Mather, Samuel, *Life of Cotton Mather*, p. 42, and *N. Y. Col. Doc.*, iii. 587, 588 (Deposition of Philip French), New York, 1689.

“The above said Mr. Philip French further declared that being on board the ‘Prudent Sarah,’ Benjamin Gillem Mastr coming from England in company with Sir Willm Fips. heard him speak severall

times the words following to this effect, ‘that he did say the first fishing boat he mett he would hire and goe privately ashore and rise a company without beating of drum, and that he would take the packets sent to Sr Edmund and not deliver them to him, except he appeared in Councill, and there would secure him.’

“That about the same time upon the said voyage he heard Sr Willm Fips say that he appeared before the Lords, and one of them starting up asked him whether they would stand by the rights of their Charter, or for the abuses they had received from Sir Edmund Andros; it was answered, by the right of their charter.

“And about the same time this Deponant heard him say, that they (which this Deponant supposes were the Lords or the Cômmons assembled in Parliament) told him, that if they did give them trouble to hang Sir Edmund, they deserved noe funds.”

¹⁴³ *Conn. Col. Rec.* (1678–89), 250, 455–460.

¹⁴⁴ *N. Y. Col. Doc.*, iii. 723. Whitmore, *Andros Tracts*, iii. 22, 23, 41–43 (for his escape and capture, 95–102).

¹⁴⁵ Hutchinson, i. 394.

¹⁴⁶ Beverly, *History of Virginia*, i. 37. C. W. (Charles Wolley), A. M., *A Two Years’ Journal in New York*. For an unfavorable account, *Coll. Mass. Hist. Soc.*, v. 124–166, “An Account of the Present State and Government of Virginia.” The Sainsbury Papers, in the State Library at Richmond, Va., are transcripts and abstracts from the London originals, of all official papers of this period, relating to Virginia, and an examination of them made in 1892, through the kindness of the State Librarian, gave strong corroboration of the view of Andros’s administration presented by Wolley and Beverly, and presented Blair and his friends in a less amiable light than they have presented themselves. Cf. Meade, *Old Churches and Families of Virginia*, i. 107, 108. Perry, *History of the American Episcopal Church*, vol. i. chapter vii.

¹⁴⁷ Perry, *Historical Collections of the American Colonial Church: Virginia*.

¹⁴⁸ Whitmore, I. xxxiv. Duncan, 130, 131, 589. “In 1704, under Queen Anne, he was extraordinarily distinguished by having the lieutenant-governorship of Guernsey bestowed on him, whilst he also continued bailiff, his duties, as such, being dispensed with for the time, he having power given to him to appoint his lieutenant-bailiff, who was likewise authorized to name a deputy.”

¹⁴⁹ Whitmore, I. xxxv.

¹⁵⁰ Duncan, 589. “Sir Edmund was for many years at the head of a mixed and adventurous population, in newly settled and important colonies, distant from the mother country, a station at all time arduous, but immeasurably so in the age of revolutions in which he lived, when the institutions longest established were not exempt from the common jeopardy, and unusual energy was called for in all, wherever situated, by whom the royal authority was to be asserted. He resolutely encountered the duties and responsibilities of his high office throughout the long course of his career, and was successful in resisting, in his military as well as in his civil capacity, the intrigues and hostilities of the neighboring French and Indians, to which he was continually exposed. By some of the chroniclers of the period, who wrote, doubtless, not uninfluenced by its partisanship, he has been represented, in his earlier government under James the Second, as an abettor of tyranny; but by others of them, appearing to have possessed the best means of judging of the circumstances under which he acted, his conduct has been liberally estimated. His later administration, under William the Third, is allowed to have been irreproachable. All the colonies advanced greatly in improvement whilst under his charge; and the fact that he was distinguished by the marked approval and successive appointments of his several sovereigns, after, no less than before, the Revolution, cannot but be interpreted as the strongest testimonial in his favor, and highly to the honor of his reputation.”

Chalmers remarks (*Political Annals*, i. 422): “The charges of greatest magnitude were not the faults of the governor, but of the constitution; the smaller accusations arose from actions directly contrary to his instructions. Did he act contrary to them and to his

commission, he had been the most faithless of servants, and most criminal of men. But he did not. For, when the agents of the province impeached him before William, they accused him not of acting inconsistent with either, but of having exercised an authority unconstitutional and tyrannous. His conduct was approved of by James; and he was again appointed a colonial governor by William, because he equally appeared to him worthy of trust. Unhappily oppressed by a real tyranny, the colonists of those days beheld every action with diseased eyes, and their distempers have descended in a great measure to their historians, who have retailed political fictions as indubitable truths.” And again: “What a spectacle does the administration of Andros hold up to mankind for their instruction; under a form of government, plainly arbitrary and tyrannous, more real liberty was actually enjoyed than under the boasted system, which appeared so fair.”

¹⁵¹ *Doc. Hist. of N. Y.*, i. 179.

IV.

THE LOYALISTS.

THE opportunity of uniting together the colonies was lost when the government of England, under William and Mary, condoned the rebellion in Massachusetts, and allowed Connecticut and Rhode Island to resume their charters. From that time onward, union under the royal authority was impossible, even in the face of the pressing dangers of the French and Indian wars, to which for over sixty years the colonies were almost continuously exposed. Futile attempts were made, but in face of such a triumph of individualism nothing could be accomplished. When the conference at Albany, in 1754, put forth a plan of federation, drawn up by Benjamin Franklin and studiously moderate in its provisions, it was rejected with indignation by the colonies, as tending to servitude, and by the authorities in England, as incurably democratic.¹⁵² Yet the attempt that had been made had, at least, one result: it had created what we may call an imperial party, the members of which were devotedly attached to the connection with Great Britain, and opposed to that narrow spirit so prevalent in the colonies, which esteemed nothing as of value in comparison with their local customs and local privileges. This party grew strong in New York, where the extravagances of Leisler's insurrection had called for stern chastisement, and was also well represented in New England. The new charter of Massachusetts, which gave it a governor appointed by the crown, while preserving its Assembly and its town organizations, had tended to encourage and develop, even in that fierce democracy, those elements of a conservative party which had been called into existence some years before by the disloyalty and tyranny of the ecclesiastical oligarchy. Thus, side by side with a group of men who were constantly regretting their lost autonomy, and looking with suspicion and prejudice at every action of the royal authorities, there arose this other group of those who constantly dwelt upon, and frequently exaggerated, the

advantages they derived from their connection with the mother country. In Connecticut there was a strong minority that had opposed the re-assumption of the charter after the overthrow of Andros; and in all the royal provinces an official class was gradually growing up, that was naturally imperial rather than local in its sympathies. The Church of England, also, had at last waked up to a sense of the spiritual needs of its children beyond the seas, and by means of the Society for the Propagation of the Gospel was sending devoted and self-sacrificing missionaries to labor among the people of the colonies.¹⁵³ The influence of this tended inevitably to maintain and strengthen the feeling of national unity in those of the colonists who came under the ministrations of the missionaries. In the colony of Connecticut, especial strength was given to this movement by an unexpected religious revolution, in which several of the prominent ministers of the ruling congregational body, and many of the best of the laity, forsook their separatist principles and returned to the historic church of the old home.¹⁵⁴ The wars with the French, in which colonists fought side by side with regulars, in a contest of national significance, tended upon the whole to intensify the sense of imperial unity; although there can be no doubt that the British officers generally, by their contemptuous speeches and by their insolent manner towards the colonials whom they affected to despise, prepared the way for the eventual rupture of sentiment between the colonies and England.¹⁵⁵

It is hardly an exaggeration to say that neither navigation laws nor the Stamp Act nor parliamentary interference had as much to do in alienating the affections of Americans from the mother country, as had the ill-mannered impertinence of the British officers and the royal officials. This insolence, when joined to Grenville's bungling and exasperating attempt to extend imperial taxation to the colonies, had the result of uniting for a time nearly all Americans in opposition to the measures proposed by the advisers of the king, and enabled them to win a great constitutional victory over the attempt to impose stamp duties upon them. The division into two distinct parties, though as has been pointed out the groups had been gradually forming and drawing apart from one another, did not really come into definite existence until the further impolitic measures of successive ministries had strengthened the hands of those who were traditionally disposed to resist the authority of England.

It is very hard for us to put ourselves in the place of men of a century ago, and to think their thoughts and surround ourselves in imagination with their environment; we naturally carry back much of the nineteenth century into the eighteenth. We know the America of to-day, a vigorous, healthy, prosperous, mighty nation, reaching from sea to sea, filled with a busy people, adorned with the achievements of a hundred years, hallowed by many sacred memories. The American flag has floated proudly through the smoke of battle in every quarter of the world, and for a hundred years men have seen in it the symbol of a country and a fatherland. It is difficult for us to realize that, before 1776, these influences had no power; there was then no nation, no country, no fatherland, no flag, nothing but a number of not over-prosperous colonies, with but little love or liking for one another. Even the strongest Americans did not venture to use the word *nation* or its derivatives, but called their congress, even after the formal separation from England, simply the Continental Congress. The very considerations which show us how wonderful and even sublime were the faith and the devotion of the leaders of the American revolution, will also show us how natural it was, how almost inevitable it was, that other men, whose connection with England was closer and more intimate, whose habits of mind were conservative rather than progressive, who had been brought up to fear God and honor the king and to think more about their duties than about their rights, should cling with devotion to the cause of the mother-country and condemn the revolution as a "parricidal rebellion."

Besides this highest motive, which influenced the best and the purest-minded among the opponents of colonial separation, there were undoubtedly other motives of lower character, which affected some men in their decision, and disposed them to loyalty. The political power of all the colonies had been largely in the hands of those who were known as the "better sort," usually gentlemen of good family, rich and well educated; in some of the colonies official position had been treated as the special prerogative of a few distinguished families who contended with one another for its possession: none of the colonies, not even Connecticut, was democratic as we understand the term to-day. In some cases the revolutionary movements and impulses came from a class which wished to occupy public positions from which they had been excluded, and in others from dissatisfied and discontented men of birth and family, who were tired of being out in the cold, while their rivals were enjoying the pleasures and

emoluments of office.¹⁵⁶ Thus in New York, the history of the revolution is closely bound up with the family feuds of the De Lanceys on the one side with the Livingstons on the other. In Massachusetts, the quarrel between Governor Bernard and the Otises did much to increase the patriotism of the latter family; and until the very breaking out of hostilities, the contest within the colony was between a majority of the well-to-do merchants and lawyers of Boston on the one side, and the least stable elements of the populace, under the leadership of one of the most skilful of political agitators, Samuel Adams, upon the other.

There is no doubt that, in Massachusetts at least, most well-to-do persons considered the agitation at first to be merely political, the usual device of the “outs” against the “ins”; they laughed at the loud talk of some of the orators, and considered that it was put on for effect.¹⁵⁷ When, in addition to this, the cause of American rights was disgraced, year after year, by riots, murder, arson, and sedition, those who were entrusted with the responsibilities of office, however much they sympathized with the abstract principles that were upheld by the popular leaders, were prejudiced against the concrete application of them.¹⁵⁸ We should also remember that, down to the time of the battle of Bunker Hill, if not later, all parties united in the most loyal and devoted language. The rights that were claimed were not the rights of Man, but of “natural-born subjects of the king of Great Britain”; the king was always described as “the best and most generous of monarchs,” and separation was never mentioned as a possibility in any public utterance. War was looked forward to by some of the most eager as a means of bringing the ministry to terms, or as an unavoidable necessity if the unconstitutional taxation was persisted in; but, up to the very last, most men agreed with Richard Henry Lee, who said to Adams, as they parted after the first Continental Congress in 1774: “All offensive acts will be repealed—Britain will give up her foolish project.”¹⁵⁹

When the most ardent American patriots used this language, and used it sincerely, it is not remarkable that those who formed the opposing political party, who were conservative when these were the radicals, should have felt that they were bound by their duty to their king and country, or that they should also have felt that the disorderly actions and the factious attitude of some of the extreme patriots in Massachusetts and elsewhere were simply

sedition. These convictions were undoubtedly strengthened by the abominable treatment which many of them personally received. They were not apt to look with greater favor upon a cause whose votaries had tried to recommend it to their liking by breaking their windows, plundering their houses, constantly insulting them, their wives and their daughters, to say nothing of tarring and feathering them, or of burning them in effigy. The penal measures imposed by the Parliament upon the town of Boston and the colony of Massachusetts had been brought upon themselves by the so-called patriots. One rather wonders at the slowness and mildness of the British government, and at their miserable inefficiency, than at any repressive measures that they undertook. They deserved to lose the colonies for their invincible stupidity, which led them from one blunder into another; they irritated when they ought either to have crushed or conciliated; they tried half-measures when vigorous action was necessary; they persisted in affronting all the other colonies while they failed in chastising sedition in Massachusetts. The result was that they drove many men, who were loyal subjects of Great Britain in 1774, into revolution in 1776, while they allowed the rebels of Massachusetts to wreak vengeance at their will upon those who had been faithful in their allegiance to their king.¹⁶⁰

Besides those who were loyalists from conviction and temperament and those who were almost unavoidably so from the political position they occupied, there were also men who were loyalists from the profit it gave them. Such were the holders of the minor offices in the gift of the royal governors, the rich merchants who represented English trading-houses, and dreaded war and disturbance. There were others whose chief desire was to be upon the winning side, who were unable to conceive the possibility of the defeat of the English government by a handful of insurgent colonists, and some also who, from local or personal dislikes or prejudices, or from love of opposition, took a different side from that which was taken by their neighbors. It is probable, however, that there were hardly any whose motives were not to some extent mixed; few on the one hand so disinterested or so devoted as not to be moved in some degree by self-interest or prejudice, few on the other hand whose nature was so biassed by prejudice or so sordid with love of place or pension as not also to be moved by the higher impulse of fidelity.

Loyalty is hard to define; it is one of those virtues which appeals not so much to the head as to the heart. Its critics accuse it of being irrational and illogical, as being based upon sentiment rather than upon conviction. Yet, in spite of logic and reason, or rather, on account of its profounder logic and higher reason, loyalty will hold its own, and strike an answering chord of admiration in the human heart as long as men appreciate disinterested virtue. It may be classed with the other unreasoned qualities that men yet esteem, with faith and truth, honor and courage, decency and chastity. It may be a man's intellectual duty to follow the dictates of his understanding and to act upon his temporary convictions, whatever pain the action cost; nevertheless, the man whom we respect and follow is not the man who is always changing, who is easily influenced by argument, but the man who abides by certain fixed principles, and refuses to desert them, unless it can be shown him that beyond all chance of mistake they are wrong and misleading.

It has been sometimes asserted that loyalty can only be felt towards a personal ruler or a dynasty; such a restriction of the term is entirely unfounded. It is, by its very derivation, devotion to that which is legal and established. Legality and Loyalty are etymologically the same. No one can doubt that there is a high and noble devotion to right and justice which is as admirable and as strong as a devotion to any person. It is a more refined sentiment and appeals to a higher moral sense than does the simple fidelity to a person, beautiful and touching though such devotion be. The loyalty of men who, like the younger Verneys, espoused the side of the Parliament in its struggle with Charles the First, was as true and real a sentiment, though its character was impersonal, as was that of the stout Sir Edmund, who, though "he liked not the quarrel," followed the king, because "he had eaten his bread too long to turn against him in his necessity." There could hardly be a finer example of this loyalty to an idea than was shown by those Americans who condemned the stupid errors of the king and his advisers, and realized fully the danger to liberty in the system of government that George the Third was attempting to carry out in England and in America, and yet, in spite of all, remained patriotic subjects, not from affection but from principle, trusting to constitutional methods to overcome the evils which they felt as strongly as any of those who made them a justification for revolution.

As has been shown, among those who adhered to the side of the mother country in the revolution there were men of all kinds and convictions. There were those who were loyal because they believed in the legal right of the Parliament to tax the colonies, short-sighted as the policy might be, and considered their duty and their allegiance to be due to the united empire. There were those who adhered to the king's cause from personal devotion to him and to his dynasty, an unreasonable devotion in the eyes of some, but certainly not as contemptible as American satirists have loved to describe it. There were those who were by nature conservatives, willing to do anything sooner than change, governed completely by a prejudice which hardly deserves the noble name of loyalty, but still had in it an element of steadiness and sturdiness that redeems it from contempt. There were also, undoubtedly, men who calculated the chances of victory in the struggle and espoused the side that they thought was likely to win; there were those who were for the king from pure gregariousness, because some of their friends and neighbors were on that side; and, finally, some who, from a mere love of opposition, set themselves against the cause of America because their neighbors and townsmen favored it.

And, as the motives which impelled men were different, so also their actions differed when the rupture came between the king and the colonies. Some were active favorers of the cause of the king, doing whatever they could to assist it and to injure the cause of their rebellious neighbors. Others sadly left their homes at the outbreak of the war and took refuge in England or in some of the English provinces, suffering want, anxiety, and despair, snubbed and despised by the insular English, compelled to hear America and Americans insulted, dragging along a miserable existence, like that of the shades whom Virgil found upon the bank of the infernal river, not allowed to return to earth or to enter either Elysium or Tartarus. Others attempted to live in peaceful neutrality in America, experiencing the usual fate of neutrals, animals like the bat neither beast nor bird but plundered and persecuted by both. Such betook themselves usually to the protection of the British arms, and were to be found in the greatest numbers at or near the headquarters of the British generals in Savannah or Charlestown, Newport or New York.

Some American writers have been extremely severe upon the Americans who served in the royal armies; such condemnation is certainly

illogical and unjust. They were fighting, they might have reasoned, to save their country from mob rule, from the dominion of demagogues and traitors, and to preserve to it what, until then, all had agreed to be the greatest of blessings—the connection with Great Britain, the privilege and honor of being Englishmen, heirs of all the free institutions which were embodied in the “great and glorious constitution.”

If the loyalists of New York, Georgia, and the Carolinas reasoned in this manner, we cannot blame them, unless we are ready to maintain the proposition that the cause of every revolution is necessarily so sacred that those who do not sympathize with it should at least abstain from forcibly opposing it. The further charge is made that the worst outrages of the war were committed by Tories, and the ill-doings of Brant and Butler at Wyoming and Cherry Valley, together with the raids of Tryon and Arnold, are held up to the execration of posterity as being something exceptionally brutal and cruel, unparalleled by any similar actions on the part of the Whig militia or the regular forces of either army, Sullivan’s campaign through the Indian country being conveniently forgotten.¹⁶¹ Impartial history will not palliate the barbarities that were committed by either party; but there can be no doubt that the Tory wrong-doings have been grossly exaggerated, or at least have been dwelt upon as dreadful scenes of depravity to form a background for the heroism and fortitude of the patriotic party whose misdeeds are passed over very lightly. The methods of the growth of popular mythology have been the same in America as elsewhere; the gods of one party have become the devils of the other. The haze of distance has thrown a halo around the American leaders, softening their outlines, obscuring their faults, while the misdeeds of Tories and Hessians have grown with the growth of years. But it is an undoubted fact that there were outrages upon both sides, brutal officers on both sides, bad treatment of prisoners on both sides, guerilla warfare with all its evil concomitants on both sides, and in these respects the Tories were no worse than the Whigs. There was not much to choose between a Cowboy and a Skinner, very little difference between Major Ferguson’s command and that of Marion and Sumter. There was no more orderly or better-behaved troop in either army than Simcoe’s Queen’s Rangers;¹⁶² possibly there was none on either side as bad as the mixture of Iroquois Indians and Tory half-breeds who were concerned in the massacres at Wyoming and Cherry Valley.

The Americans, however, do not deserve any credit for abstaining from the use of Indian allies. They tried very hard to make use of them, but without success. A few Englishmen in the Mohawk Valley, faithful to the traditions of just and honest treatment of the Indians, which had been inherited from the Dutch, had succeeded in making the Iroquois regard them as friends, but everywhere else the Indian and the colonist were bitter and irreconcilable foes. The savage had long scores of hatred to pay, not upon the English nation or English army, but upon the American settlers who had stolen his lands, shot his sons, and debauched his daughters. The employment of the Mohawks by the English was an outrage and a crying shame upon civilization; but the responsibility of it lies directly upon the government which allowed it, and the commanding generals who sanctioned the expeditions, and only indirectly upon the men who carried out the directions of their superiors.¹⁶³ It is interesting to remember in this connection that the courteous and chivalrous Lafayette raised a troop of Indians to fight the British and the Tories, though his reputation has been saved by the utter and almost ludicrous failure of his attempt. The fact is that, as far as the Americans were engaged in it, the war of the Revolution was a civil war, in which the two sides were not far different in numbers or in social condition, and very much the same in their manners and customs. The loyalists contended all through the war that they were in a numerical majority, and that if they had been properly supported by the British forces and properly treated by the British generals, the war could have been ended in 1777, before the French alliance had given new hopes and new strength to the separatist party.¹⁶⁴

Sabine, in his well-known work on the loyalists of the Revolution, computes that there were at least twenty thousand Americans in the military service of the king at one time or another during the war.¹⁶⁵ Other authorities think this estimate too high, but the number was extremely large. In New York and New Jersey it is probable that the opponents of separation outnumbered the patriot party, and the same is probably true of the Carolinas and Georgia. Even in New England, the nursery of the Revolution, the number was large and so formidable, in the opinion of the revolutionary leaders, that in order to suppress them they established a reign of terror and anticipated the famous "Law of the Suspected" of the French Revolution. An irresponsible tyranny was established of town and country

committees at whose beck and call were the so-called “Sons of Liberty.” To these committees was entrusted an absolute power over the lives and fortunes of their fellow-citizens, and they proceeded on principles of evidence that would have shocked and scandalized a grand inquisitor.

Virginia and Maryland seem to have been the only provinces in which the body of the people sympathized with the projects of the revolutionary leaders. The few loyalists there were in Virginia retired to England with the last royal governor, and in Maryland a strong sense of local independence and local pride led the colony to act with unanimity and moderation.

The rigorous measures adopted by the new governments in the Eastern States, and the activity of their town committees, succeeded in either driving out their loyalist citizens or reducing them to harmless inefficiency. In New York and New Jersey, however, they remained strong and active throughout the war; and as long as the British forces held Georgia and the Carolinas, loyalty was in the ascendant in those states.

The question will naturally be asked, why, if they were so numerous, were they not more successful, why did they yield to popular violence in New England and desert the country while the contest was going on, why did they not hold the Southern States and keep them from joining the others in the Continental Congresses and in the war. In the first place, a negative attitude is necessarily an inactive one; and in consequence of this and of the fact that they could not take the initiative in any action, the loyalists were put at a disadvantage before the much better organization of the patriotic leaders. Though these were few in number, in the South they were of the best families and of great social influence, and in the North they were popular agitators of long experience. They manipulated the committee system so carefully that the colonies found themselves, before they were aware of the tendency of the actions of their deputies, involved in proceedings of very questionable legality, such as the boycotting agreement known as the American Association, and the other proceedings of the Continental Congress.¹⁶⁶ When the war began, the population of the three southernmost states had very little care, except for their own lives and pockets. They were, with the exception of a few distinguished families, descendants of a very low grade of settlers. Oglethorpe’s philanthropy had left the legacy of disorder and inefficiency to the colony of Georgia, a

legacy which the Empire State of the South has now nobly and grandly outlived. North Carolina had a most heterogeneous population, and was, perhaps, the most barbarous of all the colonies; while in South Carolina the extremes in the social scale were most strongly marked, from the high-spirited Huguenot gentlemen to the poor whites who formed the bulk of the population, worse taught, worse fed, and worse clad than the negro slaves. Such a population as this, living also in constant fear of negro insurrection, was not likely to count for much on the one side or the other; and we shall find, if we read Gates's and Greene's dispatches on the one side, and Rawdon's and Cornwallis's on the other, that the rival commanders agree in one thing at least—in condemning and despising the worthlessness of the militia recruited in the southern country.¹⁶⁷ It was the utter cowardice of this militia that lost the battle of Camden and caused the needless sacrifice of the lives of the braver Continentals; and the correspondence of the English general is full of instances that prove that, except for plundering and bushwhacking, there was little use to be made of the loyalists in the South.

As to the other questions, why, when the loyalists were so numerous, were they not more successful, and why did the eastern loyalists yield to the violence that was offered them, one question nearly answers the other. They were not successful, because they had no leaders of their own stock and country, and because the British commanders blundered throughout the war with as unerring certainty and unfailing regularity as the various British ministries had done from 1764 to 1776. The game was in the hands of the English, if they had known how to play it, for the first three years of the war. Then English inefficiency, rather than any belief in the ability of the colonists to make good their own independence, brought about the French alliance; and the war assumed from thenceforward a very different aspect. The desertion of their cause and their country by the many Tories who left New England for Great Britain or the loyal provinces, and the supineness of the men of place and position who attempted to preserve an attitude of neutrality instead of siding openly either for or against the king, weakened the king's cause in America and prevented the numbers of the loyalist population from counting for as much as they were really worth.

The clever French diplomatist who collected and translated the correspondence of Lord George Germaine with the British generals and

admirals, a remarkably well-informed critic of the military operations in America, states in his Preface his opinion as follows: "Another thing which clearly proves that the affairs of the English have been badly conducted in America, is that the American loyalists alone were superior in number to the rebels. How, then, has it come to pass that troops double in numbers, well paid and wanting nothing, aided besides by a German army, have failed in opposing the partisans of liberty, who, badly paid and badly equipped, often lacked everything? Manifestly it is in the different capacity of the commanders that we must seek for the counterweight which has turned the scale in favor of the latter. If the English had had a Washington at the head of their army there would long since have been no more question of war on the American Continent.... M. Linguet has said somewhere in his annals that the secretaries of the Congress were better than the secretaries of the English generals. The same may be said of the generals themselves."¹⁶⁸

Besides being inefficient in the field, the British commanders alienated their friends and weakened the attachment of the loyalists to the cause of the king by their extremely impolitic treatment of the American provinces within their occupation. The regular officers made no secret of their contempt for the colonists, and plundered them without mercy, making little, if any, distinction between loyalist or rebel, Tory or Whig. Judge Thomas Jones, a New Yorker of prominence and position, who was a devoted loyalist and one of the number especially singled out by name in the Act of Confiscation and Attainder passed by his native state, has left us his record of the way in which the British officers and officials exasperated rather than conciliated the Americans, and punished rather than rewarded the loyal for their attachment to the king and the integrity of the empire. He writes: "In 1780, part of the army went into winter quarters upon the westernmost end of the island, where they robbed, plundered, and pillaged the inhabitants of their cattle, hogs, sheep, poultry, and, in short, of anything they could lay their hands upon. It was no uncommon thing of an afternoon to see a farmer driving a flock of turkeys, geese, ducks, or dunghill fowls and locking them up in his cellar for security at night.... It was no uncommon thing for a farmer, his wife and children to sleep in one room, while his sheep were bleating in the room adjoining, his hogs grunting in the kitchen, and the cocks crowing, hens cackling, ducks quacking, and geese hissing in the cellar.... This robbing was done by people sent to

America to protect loyalists against the persecutions and depredations of rebels. To complain was needless; the officers shared in the plunder.” In Newtown, a Hessian soldier opened a butcher’s shop, where he undersold all competitors, because while they had to pay for their meat he had no such outlay. In 1781, when the troops left Flushing, a resident of that place wrote, “There was not a four-footed animal (a few dogs excepted) left in Flushing, nor a wooden fence.”

We cannot wonder at the indignant words with which Mr. Jones closes his recital of this vandalism. “If Great Britain had, instead of governing by military law, by courts of police, and courts martial, revived the civil law, opened the courts of justice, invested the civil magistrates with their full power, and convened general assemblies in New York, New Jersey, Pennsylvania, Rhode Island, Virginia, and in South and North Carolina (as well as in Georgia, where it produced the most salutary effects), as the rebels abandoned these provinces and fled before the British arms; and prevented, by severely punishing, all kinds of plunder, rapine, and pillage committed by the army, the rebellion in all probability would have terminated in a different manner. The empire would not have been disgraced or dishonored, nor Great Britain reduced to the necessity of asking pardon of her ungrateful children, acknowledging herself in the wrong, and granting them absolute, unconditional independence. But, alas! the very reverse of this marked every step in the royal army in all its proceedings, and Great Britain, as well as the Independent States of America, feel to this day the dire effects of a conduct so very impolitic, so unmilitary, so unjustifiable, and so repugnant to the Constitution, the spirit, the honor, and the sentiments of Englishmen.”¹⁶⁹

And now let us inquire how the loyalists were treated by the new governments of the various states. Besides the irregular violence to which the unfortunate loyalists were exposed at the hands of Sons of Liberty and town committeemen, they were marked out for punishment and plunder by the new state governments as they came into existence. The State of Massachusetts proscribed three hundred and eight persons by name, whom it condemned, if ever found within its borders, to imprisonment and eventual banishment; and if they ventured to return, it denounced the death penalty upon them. Not all of these were the wealthy merchants and lawyers who had offended the populace by their addresses to Hutchinson

and Gage; at least a fifth of the number were from the middle classes of society, and some of them were of still humbler position. The State of New Hampshire, small as its population was at that time, banished seventy-six by name and confiscated twenty-eight estates. New York attainted and confiscated the property of fifty-nine persons by name, three of whom were women whose chief offence lay in the attractiveness of their estates. Pennsylvania summoned sixty-two persons to surrender themselves for trial for treason, and on their failing to appear they were pronounced attainted, and thirty-six estates were confiscated. In Delaware the property of forty-six refugees was confiscated. In North Carolina, sixty-five estates were confiscated. In South Carolina, for the offence of attachment to the royal cause in different degrees of offensiveness, two hundred and fifteen persons were either fined twelve per cent. of their entire property, or deprived of it wholly, or banished from the country.¹⁷⁰ In Rhode Island, death and confiscation of estate were the punishments provided by law for any person who communicated with the ministry or their agents, afforded supplies to their forces, or piloted the armed ships of the king; and certain persons were pronounced by name enemies to liberty, and their property forfeited in consequence. In Connecticut, where the loyalists were very numerous but inclined to be quiet if they were let alone, these offences only involved loss of estate and of liberty for a term not exceeding three years; but to speak, write, or act against the doings of Congress or the Assembly of Connecticut was punishable by disqualification from office, imprisonment, and the disarming the offender. The estates of those who sought the royal fleets or land forces for shelter might, by law, be seized and confiscated. In her treatment of loyalists Connecticut showed the same shrewd sense that had characterized the proceedings of that republic from its earliest days; and the result was seen in the fact that the loyalists, instead of being alienated, became after the war was over some of her best and most patriotic citizens. William Samuel Johnson, who during part of the war, at least, was under surveillance as a suspected Tory, but who when the war was over was one of Connecticut's delegates to the Constitutional Convention of 1787, and Seabury, the author of the clever and exasperating "A. W. Farmer" letters, who had been pulled through the mud by Sons of Liberty at New Haven, were none the less loyal citizens of the commonwealth and of the nation, and none the less respected by men who had differed from them, because they had been loyal to their convictions of duty. In Massachusetts, the

feeling was much more bitter, and, in addition to the special act already mentioned, any person suspected of enmity to the Whig cause might be arrested under a magistrate's warrant and banished, unless he would swear fealty to the friends of liberty; and the selectmen of towns could prefer in town meeting charges of political treachery and the individual thus accused, if convicted by a jury, could be sent into the enemy's jurisdiction. By a second special act the property of twenty-nine persons, "notorious conspirators," was confiscated; of these, fifteen had been "mandamus" councillors; two, governors of the province; one, lieutenant-governor; one, treasurer; one, secretary; one, attorney-general; one, chief-justice; and four, commissioners of customs. The State of Virginia, though passing no special acts, passed a resolution that persons of a given description should be deemed and treated as aliens, and that their property should be sold and the proceeds go into the public treasury for future disposal. In New York, the county commissioners were authorized to apprehend and decide upon the guilt of such inhabitants as were supposed to hold correspondence with the enemy or who had committed some other specified acts, and might punish those whom they adjudged to be guilty with imprisonment for three months or banishment for seven years. Persons opposed to liberty and independence were prohibited from the practice of law in the courts; and any parent whose sons went off and adhered to the enemy was subject to a tax of ninepence in the pound value of such parent's estate for each and every such son.

The Congress naturally left such matters largely to the individual states, but nevertheless passed a resolution subjecting to martial law and death all who should furnish provisions, etc., to the British army in New Jersey, Pennsylvania, and Delaware, and resolved that all loyalists taken in arms should be sent to the states to which they belonged, there to be dealt with as traitors.¹⁷¹

In regard to this subject of legal attainder and exile, Mr. Sabine remarks very moderately and sensibly: "Nor is it believed that either the banishment, or the confiscation laws, as they stood, were more expedient than just. The latter did little towards relieving the public necessities, and served only to create a disposition for rapacity, and to increase the wealth of favored individuals. Had the estates, which were seized and sold, been judiciously or honestly managed, a considerable sum would have found its way to the

treasury; but, as it was, the amount was inconsiderable, some of the wisest and purest Whigs of the time hung their heads in shame, because of the passage of measures so unjustifiable, and never ceased to speak of them in terms of severe reprobation. Mr. Jay's disgust was unconquerable, and he never would purchase any property that had been forfeited under the Confiscation Act of New York."¹⁷²

Curwen, a Salem loyalist who was allowed to return after the war, writes in terms that, though exaggerated, yet describe the result upon public morals of the confiscations:

"So infamously knavish has been the conduct of the commissioners, that though frequent attempts have been made to bring them to justice, and respond for the produce of the funds resting in their hands, so numerous are the defaulters in *that august body*, the General Court, that all efforts have hitherto proved in vain. Not twopence in the pound have arrived to the public treasury of all the confiscations."¹⁷³

It only now remains to notice the treatment the unfortunate loyalists received from their friends in England and the manner in which the British government—for which they had sacrificed home, friends, and property, and had embraced exile, contempt, and penury—threw them upon the tender mercies of their opponents in the treaty of peace. This surrender of their interests by Lord Shelburne called out, in both Houses of the Parliament, expressions of sympathetic indignation; but the sympathy never took any material shape. Sheridan, in the House of Commons, execrated the treatment of these unfortunate men, "who, without the least notice taken of their civil and religious rights, were handed over as subjects to a power that would not fail to take vengeance on them for their zeal and attachment to the religion and government of the 'mother country.'" In the House of Lords, Lord Loughborough said, "that neither in ancient nor modern history had there been so shameful a desertion of men who had sacrificed all to their duty and to their reliance upon British faith."

To such charges Lord Shelburne could only reply by a feeble appeal to the mercy of his condemners: "I have but one answer to give the House; it is the answer I give my own bleeding heart. A part must be wounded that the whole of the empire may not perish. If better terms could be had, think

you, my lords, that I would not have embraced them? I had but the alternative either to accept the terms proposed or continue the war.”¹⁷⁴

Lord Shelburne’s statement was correct. He had entered upon the negotiations for peace full of sympathy for the loyalists and resolved to make their cause the cause of England; but when, to his attempts to obtain for them the restoration of their property and the abolition of penal laws, was opposed a steady *non possumus*, his enthusiasm for his persecuted fellow-countrymen waned; and when at last it was plainly suggested to him that a year’s prolongation of the war would cost more than all the loyalists’ property put together, he consented to accept the assurance, the futility and emptiness of which was evident upon the face of it, that “Congress shall earnestly recommend” to the several states to repeal the laws of attainder and confiscation which had been passed against the Tories and their property. One of the American negotiators brusquely remarked that it was better and more proper that the loyalists should be compensated by their friends than by their enemies. This desertion of their interests almost broke the hearts of some of the best and most public-spirited of the loyalists, who had given up everything for the cause of their country, and now saw themselves consigned to poverty in their old age, or at the best to supplicating aid of the British government and being exposed to all “the insolence of office and the scorns that patient merit of the unworthy takes.”¹⁷⁵

It took a long time to adjust the claims and to distribute the bounty which was doled out by unwilling officials. It was 1783 when the war closed, but not until 1790 was the indemnity paid out to the claimants; and then England forced her unfortunate pensioners, made paupers by their trust in her, to accept about £3,300,000 for losses reckoned at over £8,000,000. It is estimated that over a thousand claimants had in the mean time perished in want and penury. Those were on the whole more fortunate, as events proved, who had braved it out in America than were those who had trusted to the gratitude of England.¹⁷⁶

What was the loss of America was the gain to her nearest neighbors, the coast provinces of New Brunswick and Nova Scotia. As early as 1775 the exodus from Boston to Halifax had begun; and when Howe evacuated the city, a large number of loyalists took refuge with the fleet and army, and

leaving all behind came to Halifax to seek their fortunes under another sky. From that time on, throughout the war, Halifax was the haven of refuge for persecuted loyalists.¹⁷⁷ At the evacuation of New York and Savannah no fewer than 30,000 persons left the United States for Nova Scotia. Halifax was so crowded that houses could not be had at any price, and provisions were held at famine prices.¹⁷⁸ From northern New York and Vermont the loyalists crossed over into Upper Canada and laid the foundation of that prosperous province under the vigorous government of Governor Simcoe, who during the war had commanded a regiment of loyalist rangers which had done efficient service.¹⁷⁹ With many a suffering, many a privation, these exiles for conscience' sake toiled to make homes for themselves in the wilderness, and it is to them that the development of those provinces is due. Familiar New England names meet one at every turn in these provinces, especially in Nova Scotia. Dr. Inglis of Trinity Church, New York, was the first bishop, and Judge Sewall of Massachusetts, the first chief justice there. The harshness of the laws and the greed of the new commonwealths thus drove into exile men who could be ill spared, and whose absence showed itself in the lack of balance and of political steadiness that characterized the early history of the Republic. This, moreover, perpetuated a traditional dislike, grudge, and suspicion between the people of the United States and their nearest neighbors, men of the same blood and the same speech; while the new-founded colonies, composed almost exclusively of conservatives, were naturally slow, if sure, in their development.

This dislike and suspicion is now fortunately diminishing with the lapse of years, but it was a great pity it ever was created. The men who were willing to give up home, friends, and property for an idea, are not men to be despised or laughed at, as was the fashion of the generation which roared with delight over the coarse buffooneries of Trumbull's *McFingal*. They are rather men for us to claim with pride, and to honor as Americans, Americans who were true to their convictions of duty, confessors for their political faith.

Sabine relates the following conversation:

“‘Why did you come here, when you and your associates were almost certain to endure the sufferings and absolute want of shelter and food which you have now narrated?’ asked an American gentleman of one of the first

settlers of St. John, New Brunswick, a man whose life ... was without a stain. 'Why did we come here?' replied he, with emotion that brought tears; —'for our loyalty; think you that our principles were not as dear to us as were yours to you?'"¹⁸⁰

NOTES.

¹⁵² Franklin's *Memoirs* (London, 1818, p. 201), (Sparks, p. 176). "In 1754, war with France being again apprehended, a congress of commissioners from the different colonies was by an order of the lords of trade to be assembled in Albany; there to confer with the chiefs of the six nations, concerning the means of defending both their country and ours.

We met the other commissioners at Albany about the middle of June. In our way thither I projected and drew up a plan for the union of all the colonies under one government, so far as might be necessary for defence, and other important general purposes. As we passed through New York, I had there shown my project to Mr. James Alexander and Mr. Kennedy, two gentlemen of great knowledge in public affairs, and being fortified by their approbation, I ventured to lay it before the congress. It then appeared that several of the commissioners had formed plans of the same kind. A previous question was first taken, whether a union should be established, which passed in the affirmative, unanimously. A committee was then appointed, one member from each colony, to consider the several plans and report. Mine happened to be preferred, and with a few amendments was accordingly reported. By this plan the general government was to be administered by a President General appointed and supported by the Crown; and a grand Council to be chosen by the representatives of the people of the several colonies met in their respective assemblies. The debates upon it in congress went on daily hand in hand with the Indian business. Many objections and difficulties were started, but at length they were all overcome, and the plan was unanimously agreed to, and copies ordered to be transmitted to the board of trade and to the assemblies of the several provinces. Its fate was singular: the assemblies did not adopt it, as they all thought there was too much prerogative in it; and in England

it was judged to have too much of the democratic. The different and contrary reasons of dislike to my plan make me suspect that it was really the true medium: and I am still of opinion it would have been happy for both sides if it had been adopted. The colonies so united would have been sufficiently strong to have defended themselves: there would then have been no need of troops from England; of course the subsequent pretext for taxing America, and the bloody contest it occasioned, would have been avoided.”

The plan proposed may be found in Franklin’s *Works* (Sparks, i. 36), (London, 1833, v. 299); *N. Y. Col. Doc.*, vi. 889. The proceedings of the Congress in *N. Y. Col. Doc.*, vi. 853, other accounts of the Congress by members; Hutchinson, *Hist. Mass. Bay*, iii. 19–25; William Smith, *History of New York*, ii. 180; Stephen Hopkins, *A true representation of the plan formed at Albany (in 1754) for uniting all the British northern Colonies, in order to their common safety and defence* (*R. I. Historical Tracts*, No. 9). For an excellent brief statement of the attempts at consolidation and plans suggested for that purpose, see Winsor, *Narrative and Critical History of the U. S.*, v. 611.

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The Society for the Propagation of the Gospel in Foreign Parts was founded in 1701. A previous organization bearing a similar name had been founded during the period of the Commonwealth, especially for work among the aborigines in New England, and it is to this association that we owe that most interesting of missionary relics, Eliot’s Indian Bible. Great interest was taken in this by the celebrated Robert Boyle, and scholarships were endowed by Sir Leoline Jenkyns in Jesus College, Oxford, one condition of which was that the beneficiary should devote his life after taking his degree to missionary work in the plantations. The reports of Commissary Bray, who had been sent out to Maryland, of the spiritual destitution of the American colonies and of the difficulties under which the ministers of the Church of England labored, led to the organization and incorporation of the Society, which has been from that day to this an active agency in the spread of religion and knowledge in the colonies of Great Britain. Humphreys, *Historical Account of the Society for*

the Propagation of the Gospel. Hawkins, *Missions of the Church of England*.

¹⁵⁴ For a full account of this most interesting revolution, see E. Edwards Beardsley, D. D., *The History of the Church in Connecticut*. See also *Life and Correspondence of Samuel Johnson, D. D.*, and *Yale College and the Church* (*History of the American Episcopal Church*, vol. i. 561). Humphreys, *Historical Account*, 339.

¹⁵⁵ Franklin's *Memoirs*, vol. i. pp. 218, 220. An amusing instance of the prevailing ignorance in regard to American affairs even among its friends is given by Benjamin Vaughan in a note in Franklin's *Memoirs*, vol. v. p. 320. "To guard against the incursions of the Indians a plan was sent over to America (and, as I think, by authority) suggesting the expediency of clearing away the woods and bushes from a tract of land, a mile in breadth, and extending along the back of the colonies." It is said that this plan was the contribution of Dean Tucker towards the solution of the Indian problem of the day.

¹⁵⁶ Jones, *Hist. New York*, ii. 291, 559. *Political Magazine*, Apr., 1780. Hutchinson, *History Mass. Bay*, iii. 86–88, 166 *note*, 254, 293. Hutchinson's *Diary*, i. 65. For reasons assigned by Hutchinson for the patriotism of John Adams, *Hist.* iii. 297.

¹⁵⁷ *North American Review*, lix. p. 270 (Sabine). "It may be asked, why, when the oppressions of the mother country were so very flagrant and apparent, there was not greater unanimity than appears to have existed; and why a party, so large in numbers, which in so many colonies included persons so respectable, and hitherto so universally esteemed, was seemingly, or in fact, averse to breaking away from British dominion. These questions have been put to loyalists themselves. They have answered, that, upon the original formation of parties, they were generally regarded as the common organizations of the ins and outs; the one striving to retain, and the other to gain, patronage and place; and that the mass in taking sides with or against the royal governors, were stimulated by the hopes which politicians have always been able to excite in their followers."

¹⁵⁸ Moore's *Diary of the American Revolution*, i. 37–52, 138. *Massachusetts*, Letters I., III., IV. Hutchinson, *History of Mass. Bay*, iii. passim. A. W. Farmer, *The Congress Canvassed*, p. 8. The name Tory was given first in 1763, as a title of reproach to officers of the crown and such as were for keeping up their authority. *Hist. Mass. Bay*, iii. 103.

¹⁵⁹ Adams's *Works*, ii. 362.

¹⁶⁰ For the manner in which the temperate remonstrance of the loyal colony of New York was treated, see *Parliamentary Register*, vol. i. 467–478.

¹⁶¹ A specimen from a comparatively moderate article upon the loyalists may serve to substantiate the statement of the text (*No. Am. Rev.*, lxxv. p. 142): "The meanest, most dastardly, and most cruel scenes and deeds of the Revolution were enacted as the proper fruits of a civil war by a large majority of the Tories, who remained at home, and who, as regulars, as volunteers, in gangs, or as individual outlaws, were the instigators of nearly every foul and atrocious act in the whole strife. It is from these, the majority of the whole number, that the name of Tory has received its hateful associations, which will cling to it to the end of time. A class that includes an Arnold and a Butler can never hope for complete redemption, at least so long as Judas remains in 'his own place.'"

One is glad to appeal from this intemperate and exaggerated language to the essay upon the loyalists by Dr. George E. Ellis, in Winsor's *Narrative and Critical History*, vol. vii. It would be as undesirable as it is unnecessary to supply, as could readily be done, instances of gross cruelty and barbarity inflicted by the Whigs upon the unfortunate loyalists "who remained at home." The Correspondence of Lord Cornwallis gives a most painful picture of the condition of things in the South (*Corr.*, i. 73), and the letters of Count Fersen, who cannot be suspected of prejudice, reveal the hardly less savage condition of affairs in the North. He says, for example, of Rhode Island (*Letters*, i. 40, 41):

“C’est un pays qui sera fort heureux s’il jouit d’une paix longue, et si les deux partis qui le divisent à present ne lui font subir le sort de la Pologne et de tant d’autres républiques. Ces deux partes sont appelés les Whigs et les Torys. Le premier est entièrement pour la liberté et l’indépendance; il est composé de gens de la plus basse extraction qui ne possèdent point de biens; la plupart des habitants de la compagnie en sont. Les Torys sont pour les Anglais, ou, pour mieux dire, pour la paix, sans trop se soucier d’être libres ou dépendants; ce sont les gens d’une classe plus distinguée, les seuls qui eussent des biens dans le pays. Lorsque les Whigs sont les plus forts, ils pillent les autres tant qu’ils peuvent.”

¹⁶² Simcoe, Lt.-Col. J. G., *A History of the Operations of a Partisan Corps called the Queen’s Rangers, commanded by Lt.-Col. J. G. Simcoe, during the war of the American Revolution*. New York: Bartlett and Welford, 1884, 8vo, pp. 328.

¹⁶³ The Americans made several attempts to make use of the Indians: Montgomery used them in his Canadian expedition; they were in the New England army which laid siege to Boston; in April, 1776, Washington wrote to Congress urging their employment in the army, and reported on July 13th that, without special authority, he had directed General Schuyler to engage the Six Nations on the best terms he and his colleagues could procure; and again, submitting the propriety of engaging the Eastern Indians. John Adams thought “we need not be so delicate as to refuse me assistance of Indians, provided we cannot keep them neutral.” A treaty was exchanged with the Eastern Indians on July 17, 1776, whereby they agreed to furnish six hundred Indians for a regiment which was to be officered by the whites. As a result of this, the Massachusetts Council subsequently reported that seven Penobscot Indians, all that could be procured, were enlisted in October for one year; and in November Major Shaw reported with a few Indians who had enlisted in the Continental service. Winsor, *Narr. and Crit. Hist.*, vol. vi. 656, 657. The following brief entry in a diary will show that even among the patriot forces savage customs sometimes found place: “On Monday the 30th sent out a party for some dead Indians. Toward morning found them, and skinned two of them from their hips down for boot legs: one pair

for the major, the other for myself.” *Proceedings N. J. Hist. Soc.*, ii. p. 31.

¹⁶⁴ *North American Review*, lix. 264 (Sabine). “The opponents of the Revolution were powerful in all the thirteen colonies; in some of them they were nearly if not quite equal in number to its friends the Whigs. On the departure of Hutchinson he was addressed by upwards of two hundred merchants, lawyers and other citizens of Boston, Salem and Marblehead. On arrival of Gage, forty-eight from Salem presented their dutiful respects; on his retirement he received the ‘Loyal address from gentlemen and principal inhabitants of Boston’ to the number of ninety-seven, and eighteen country gentlemen and official personages who had taken refuge in Boston.” ...

* * * * *

“The division of parties in Connecticut, Rhode Island and New Hampshire was much the same as in Massachusetts. New York was the loyalists’ stronghold, and contained more of them than any colony in America. While proof to sustain this assertion can be adduced to almost any extent, we shall cite but a single though conclusive fact; namely, that soon after the close of the war the Assembly of that State passed a bill prohibiting adherents of the crown from holding office, which was objected to and returned by the Council of Revision, who, among other reasons for their course, stated, that if it were suffered to become a law, there would be difficulty, and in some places an impossibility, of finding men of different political sympathies, even to conduct the elections. In some of the southern colonies, the loyalists were almost as numerous as in New York. In the Carolinas it may be hard to determine which party had the majority; and it will be found that there were occasions when the royal generals obtained twelve or fifteen hundred recruits among the inhabitants, merely by issuing a proclamation or call upon them to stand by their allegiance to “the best of sovereigns.... Few of the Carolinians would enlist under the American banner; but after the capitulation (of Charlestown) they flocked to the royal standard by hundreds.” See also Sabine’s *Loyalists*, Introductory Sketch;

Ryerson, *Loyalists of America*, ii. 57, 124. For remarks on the war, as a civil war, see Ramsay, *Hist. U. S.*, ii. 467–9.

¹⁶⁵ Sabine, i. 65.

¹⁶⁶ A. W. Farmer, *The Congress Canvassed*, pp. 17–19, exhibits the manner in which delegates to Congress were chosen in New York. “The New York City committee (a self-appointed body) applied to the supervisors in the several counties to call the people together and to choose committees, which committees were to meet in one grand committee; and this grand committee of committees were to choose the delegates for the county or to declare their approbation of the New York delegates, and if any county did not meet and choose their committee it was to be taken for granted that they acquiesced in the New York choice.” Again as to delegates chosen by the Assemblies: “The Assembly has no legal right to act by itself and claim to represent the people in so doing. The people are not bound by any act of their representatives till it hath received the approbation of the other branches of the legislature. Delegates so appointed are, at best, but delegates of delegates, but representatives of representatives. When therefore the delegates at Philadelphia, in the preamble to their Bill of Rights, and in their letter to his Excellency General Gage, stiled their body ‘a full and free representation of ... all the Colonies from Nova Scotia to Georgia,’ they were guilty of a piece of impudence which was never equalled since the world began, and never will be exceeded while it shall continue.” Again: “No provincial legislature (even if complete) can give them such powers as were lately exercised at Philadelphia. The legislative authority of the province cannot extend further than the province extends. None of its acts are binding one inch beyond its limits. How then can it give authority to a few persons, to make rules and laws for the whole continent?... Before such a mode of legislation can take place, the constitution of our colonies must be subverted and their present independency on one another must be annihilated.”

The logic of the loyalist writers is unanswerable, and their legal reasoning is usually correct and precise; the fallacy of their position was that they were in face of a revolution. Elements had been

introduced into the struggle which, like the presence of an infinite quantity in an equation, vitiated the reasoning, however correct the process may have been. The author argues, for example: "To talk of subjection to the King of Great Britain, while we disclaim submission to the Parliament of Great Britain, is idle and ridiculous. It is a distinction made by the American Republicans to serve their own rebellious purposes, a gilding with which they have enclosed the pill of sedition, to entice the unwary colonists to swallow it the more readily down. The King of Great Britain was placed on the throne by virtue of an Act of Parliament: And he is king of America, by virtue of being king of Great Britain. He is therefore king of America by Act of Parliament. And if we disclaim that authority which made him our king, we, in fact, reject him from being our king, for we disclaim that authority by which he is king at all." It may be noticed that the fundamental Whig doctrine of the supremacy of Parliament, which is here so strongly urged, was never understood or appreciated by those who called themselves Whigs in America.

¹⁶⁷ *Clinton-Cornwallis Correspondence*, i. pp. 263, 265.

¹⁶⁸ *Clinton-Cornwallis Correspondence*, ii. pp. 308, 309.

¹⁶⁹ Jones, Thomas, *History of New York*, i. 362–3, 172–176.

¹⁷⁰ *Christian Examiner*, viii. pp. 127, 128 (Dabney). Curwen, *Journal*, 475, 479.

¹⁷¹ Sabine, *North American Review*, lix. pp. 287, 288. *Loyalists*, i. 71–81. Ryerson, *Loyalists of America*, ii. 130, 136.

¹⁷² *No. Am. Rev.*, lix. p. 289.

¹⁷³ *The Journal and Letters of the late Samuel Curwen*, New York and Boston, 1842, p. 147.

¹⁷⁴ *Parliamentary History*, vol. xxiii. 411, 412, 430, 481. The following extracts may be added to those given in the text; Mr. Burke said: "Better to have left the whole to future negotiation, and to have been totally silent upon the subject in the treaty, than to have consented to

have set our hands to a gross libel on the national character, and in our flagitious article plunged the dagger into the hearts of the loyalists, and manifested our own impotency, ingratitude and disgrace” (p. 468). In the same debate Mr. Lee said: “Europe, Asia, Africa and America beheld the dismemberment and diminution of the British Empire. But this, alarming and calamitous as it was, was nothing when put in competition with another of the crimes of the present peace, the cession of men into the hands of their enemies, and delivering over to confiscation, tyranny, resentment and oppression the unhappy men who trusted to our fair promises and deceitful words. This was the great ground of his objection: and he called it a disgraceful, wicked and treacherous peace; inadequate to its object, and such as no man could vote to be honorable without delivering his character over to damnation for ever” (p. 492).

¹⁷⁵ Ryerson, ii. 64. Curwen’s *Journal*, 367. Jones, *History of N. Y.*, ii. The bitterness of the mortification, and resentment at the treatment they had received from the hands of their friends, is well exhibited in Judge Jones’s remarkable work, which, however trustworthy or the reverse it may be in other respects, may be followed implicitly as an exhibition of loyalist feeling towards the mother country.

¹⁷⁶ Jones, ii. 645–654. Wilmot, *Historical View of the Commission for Enquiry into the Losses, etc.*, London, 1815. Ryerson, ii. 159–182. *Diary and Letters of Thomas Hutchinson*, ii. 435–437. Sabine, i. 86–90. In March, 1784, the number of persons who had preferred their petitions was 2,063, and the alleged losses £7,046,278, besides outstanding debts in America amounting to £2,354,135. “In 1788 Mr. Pitt submitted a plan for classifying the claimants, and of classifying and apportioning the nature and amount of consolation to be allotted to each; and to those whose losses had been caused principally by the deprivation of official or professional incomes, he proposed a system of pensions. By the 5th of April, this year (1790), the Commissioners in England had heard and determined 1,680 claims, and had liquidated the same at the sum of £1,887,548. It appeared, finally, that the number of applicants from England, and from the Canadian provinces, attained to the aggregate of 5,072, of which 954 either withdrew their applications or failed to press them, and the sum of

the losses is stated to have been £8,026,045. Another return is made out by Mr. J. E. Wilmot, one of the Commissioners, wherein the amount of the claim is given as £10,358,413, and the amount of the claims allowed at £3,033,091. The subject was again raised in Parliament in 1821, but though there was much sympathy expressed for the sufferings of those who had trusted to their country to recompense their fidelity, the sympathy exhausted itself in words.” See also Lecky, *England in the Eighteenth Century*, iv. 268. Curwen, 367, 368.

¹⁷⁷ Ryerson, ii. 127. *No. Am. Rev.*, lix. 279. Hawkins, *Missions of the Church of England*, 249. *The Frontier Missionary, or Life of the Rev. Jacob Bailey*, by W. S. Bartlett, New York, 1853 (Collections of the Protestant Episcopal Historical Society, vol. ii.). This work gives a pathetic account of the hardships and privations undergone by the exiles in Nova Scotia, as well as a graphic picture of the methods used by the town committees in New England with those who adhered to the cause of the king.

¹⁷⁸ Hawkins, *Missions*, 371–3. Ryerson, ii. 206. *Mass. Hist. Soc. Proceedings*, Oct., 1886, p. 95. For the treatment of the loyalists in the United States after the treaty of peace, see especially Jones, *Hist. New York*, vol. ii. Roberts, *Hist. of New York*, ii. 449 ff. Lecky (*Hist. England in the Eighteenth Century*, iv. 267) remarks rather sharply: “The loyalists to a great extent sprung from and represented the old gentry of the country. The prospect of seizing their property had been one great motive which induced many to enter the war. The owners of the confiscated property now grasped the helm. New men exercised the social influence of the old families, and they naturally dreaded the restoration of those whom they had displaced.”

¹⁷⁹ *Vide supra*, Note 11.

¹⁸⁰ *No. Am. Rev.*, lix. 262 (Sabine). Lecky’s tribute to the loyalists may be added: “There were brave and honest men in America who were proud of the great and free empire to which they belonged, who had no desire to shrink from the burden of maintaining it, who remembered with gratitude the English blood that had been shed

around Quebec and Montreal, and who, with nothing to hope for from the crown, were prepared to face the most brutal mob violence and the invectives of a scurrilous press, to risk their fortunes, their reputations, and sometimes even their lives, in order to avert civil war and ultimate separation. Most of them ended their days in poverty and exile, and as the supporters of a beaten cause history has paid but a scanty tribute to their memory, but they comprised some of the best and ablest men America has ever produced, and they were contending for an ideal which was at least as worthy as that for which Washington fought. The maintenance of one free, industrial and pacific empire, comprising the whole English race, may have been a dream, but it was at least a noble one.” *History of England in the Eighteenth Century*, iii. 418. For historical notices of the loyalists in Canada, the following are also useful: *Settlement of Upper Canada* (1872), by William Canniff; *Toronto of Old* (1873), by Dr. H. Scadding; *Centennial of the Settlement of Upper Canada by the United Empire Loyalists, 1784–1884*; *The Celebrations at Adolphustown, Toronto, and Niagara*, Toronto, 1885.

THE END.

Transcriber's Notes

Punctuation, hyphenation, and spelling were made consistent when a predominant preference was found in the original book; otherwise they were not changed.

Simple typographical errors were corrected; unbalanced quotation marks were remedied when the change was obvious, and otherwise left unbalanced.

The last footnote of the book ([180](#)) on [page 210](#) had no anchor. Transcriber added one at the end of the last paragraph on page [198](#).

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